



Sequoia Safety Council

500 E. 11th Street
Reedley, CA 93654

EMPLOYEE POLICY MANUAL

Effective:
January 1, 2026

Table of Contents

I.	INTRODUCTION AND WELCOME	1
A.	Mission, Values, and Vision.....	1
B.	History of Sequoia Safety Council.....	2
C.	Introduction	2
II.	EMPLOYMENT POLICIES	3
A.	Employee Policy Manual	3
B.	At-Will Employment.....	3
C.	Employee Bill of Rights.....	3
D.	Equal Employment Practices.....	4
1.	Unlawful Discrimination	5
2.	Reasonable Accommodation of Persons with Disabilities or Religious Belief or Practice	5
3.	Policy Against Unlawful Harassment.....	6
4.	Reporting Procedure Regarding Unlawful Discrimination and Unlawful Harassment.....	8
5.	Protection Against Retaliation	8
6.	Disciplinary Action and Liability for Unlawful Harassment.....	9
7.	Anti-Harassment Training.....	9
E.	Compliance with State and Federal Statutes, Rules and Regulations	9
F.	Non-Fraternization Policy	10
G.	Policy Regarding Workplace Violence	10
H.	Policy on Immigration Law Compliance	11
I.	Policy Against Drug and Alcohol Abuse	11
J.	Health and Safety in the Workplace Policy.....	13
III.	EMPLOYMENT PRACTICES	16
A.	General	16
B.	Employment of Relatives	17
C.	Insurability.....	17
D.	Categories of Employees.....	17
1.	Introductory Employees.....	18
2.	Full-Time Non-Exempt Employees.....	18
3.	Full-Time Exempt Employees	18
4.	Part-Time Non-Exempt Employees(Referred to as Per Diem Employees).....	18
5.	Temporary Employees	18
E.	Seniority	19
F.	Licensing / Certification.....	19
G.	Education.....	20
H.	Job Assignments.....	20
I.	Meal Periods for Employees	21
J.	Rest Periods for Employees	21
K.	Meal and Rest Period Distinctives for Field Employees.....	22
L.	Absences and Punctuality.....	23
M.	Terminations.....	25

N.	References	25
O.	Employee Training Meetings	26
IV.	SALARY/WAGE ADMINISTRATION PROGRAM	27
A.	Pay Periods/Payroll	27
1.	Payroll and Compensation Concerns	27
2.	Pay Periods.....	27
3.	Disbursement of Paychecks	27
4.	Timekeeping Procedures.....	28
5.	Salary Pay Policy for Exempt Employees	28
6.	Long Distance Transports (LDT).....	29
7.	Off-Duty LDT Pay	29
8.	Business Travel Expenses.....	29
9.	Teaching Pay.....	30
10.	Reporting Time (Show-Up) Pay	30
11.	Callback Time and Pay	30
12.	Deductions From Pay.....	31
13.	Final Paycheck Upon Conclusion of Employment.....	31
B.	Overtime.....	31
C.	Shift Incentive	32
V.	GENERAL INFORMATION.....	33
A.	Open Door Policy	33
B.	Performance Evaluations.....	33
C.	Personnel Records	33
D.	Standards of Conduct	34
1.	Job Duties, Assignments, Performance and Personal Conduct	34
2.	Company Premises, Work Areas and Work Hours	35
3.	Company Property, Equipment and Records.....	36
4.	Health, Safety, and Drug Use	36
E.	Cell Phone and Camera Use Policy.....	37
F.	Off-Duty Conduct.....	38
G.	Dress Code	39
H.	Personal Protective Equipment	41
I.	Background Checks and Investigations	41
J.	Medical Examinations	41
K.	Outside Employment Policy and Off-Duty Conduct	42
L.	General Confidentiality Procedures	42
M.	Trade Secrets and Unfair Competition.....	43
N.	Company Property.....	44
O.	Right to Search Company Property, Employees, Conduct Surveillance and Proper Use of Company Equipment.....	44
P.	Electronic Communications	46
Q.	Operation of Vehicles.....	47
R.	Policy Regarding Cell Phone/Electronic Wireless Communications Device Use While Driving.....	48

S.	Employee Property	48
T.	Visitors	49
U.	Security.....	49
V.	Solicitation/Distribution of Literature	49
W.	Bulletin Boards.....	49
X.	Housekeeping	50
Y.	Tobacco-Free Policy.....	50
Z.	Public Relations.....	50
AA.	Social Media Policy.....	50
1.	Statement of Policy	50
2.	Guidelines	51
BB.	Business Conduct/Conflicts of Interests.....	53
VI.	EMPLOYEE BENEFITS.....	54
A.	Holidays.....	54
B.	Vacations	55
C.	Health Insurance Benefits	58
D.	Life/Accidental Death Insurance.....	58
E.	403(b) Retirement Savings Plan.....	58
F.	Employee Assistance Program.....	59
G.	Disability Insurance Benefits	59
H.	Unemployment Insurance Benefits	59
I.	California Paid Family Leave Benefits	59
J.	Social Security Benefits	60
K.	Workers' Compensation Insurance Benefits	60
L.	Sick Leave	60
M.	Lactation Accommodation Policy	62
N.	Leaves of Absence.....	63
1.	General Leave of Absence Policy.....	63
2.	Family and Medical Leave.....	64
3.	Pregnancy Disability Leave	69
4.	Workers' Compensation Disability Leave.....	71
5.	Witness and Victims of Crime Leave of Absence	73
6.	Military Leave (Active and Reserve Service).....	78
7.	Medical Leave of Absence (CFRA non-qualifying employees).....	78
O.	Other Time Off.....	79
1.	Funeral or Bereavement Time Off.....	79
2.	Reproductive Loss Leave.....	79
3.	Civic Duty Time Off.....	80
4.	Voting Time Off	80
5.	Time Off for Volunteer Firefighters, Reserve Peace Officers and Emergency Rescue Personnel	80
6.	Military Spouse Leave	81
7.	Parents' Time Off for School or Day Care Activities.....	81
8.	Time Off for Adult Literacy Programs	81
9.	Personal Leave of Absence.....	82

VII.	CONCLUSION.....	83
VIII.	ADDITIONAL PROCEDURES.....	83
IX.	ACKNOWLEDGEMENTS.....	83
	Agreement and Acknowledgement of Receipt of Employee Manual	1
	Acknowledgement of At-Will Employment.....	1
	Acknowledgement of Meal and Rest Periods Policy.....	1
	FIELD EMPLOYEES ONLY: Agreement & Acknowledgement of 24-hour Shift of Duty	1
	Acknowledgement of Equal Employment Practices Policy	1

I. INTRODUCTION AND WELCOME

Welcome to Sequoia Safety Council (“the Company”). For our current employees, the Company thanks you for your contributions to the Company’s success. For those of you who are new employees or applicants interested in joining our Company, we look forward to a successful business relationship in the future.

A. Mission, Values, and Vision

Mission: To Save Lives and Serve People

Sequoia Safety Council provides compassionate and competent emergency medical care and transportation services. Our team members are highly skilled professionals, with a “Service First” attitude, who endeavor to provide the best experience possible for those they serve. Our company provides training and education services, special events standby, and community service to promote safety and well-being within our service area.

Values: Integrity, Respect, Service

Integrity

- We do the right thing.
- We deal honestly and fairly with all persons.
- We avoid all conduct that will discredit or do injury to the dignity and honor of ourselves, our company, or those with whom we work.

Respect

- We treat everyone with compassion and dignity.
- We maintain the privacy of our patients’ protected health information.
- We value diversity and promote a team environment and a healthy workplace.

Service

- We put the needs of our patients and their family members first.
- We strive to give our patients the best possible care.
- We are committed to the safety and well-being of our patients, team members, and the communities we serve.

Vision:

Sequoia Safety Council is a trusted provider of emergency medical services. Our team members are well trained and respected professionals who put the needs of patients and family members first. We value our team members and promote mutual respect and a healthy workplace. Our modern equipment and facilities support the delivery of exceptional services. Sequoia Safety Council remains a long-standing community partner in the areas we serve. Our actions and attitudes represent the mission and values of our organization.

B. History of Sequoia Safety Council

In 1952, the local provider, Cairns Funeral Home, discontinued their ambulance service. A group of service organizations formed a committee, and in 1953, Sequoia Safety Council was born. The committee raised money to purchase an ambulance, by selling window stickers (3"x 3" green cross) for \$1.00 each. The window stickers were sold throughout the Reedley-Orange Cove area by members of various organizations. A used 1947 Chevrolet ambulance was purchased in July 1953. Judge Paul Eymann created the articles of incorporation and Sequoia Safety Council became a non-profit 501(c)(3) corporation.

The ambulance was first staffed by the Mennonite Central Committee (MCC) volunteers who worked at Kings View Hospital in Reedley. The ambulance was housed at various locations such as the MCC residence at Curtis and Klein Avenue and the Reedley Hospital located at Dinuba and West Avenue. Later the ambulance was housed at the old City Hall/Fire Station. The Parlier area joined Sequoia Safety Council in 1963.

As a non-profit provider, we are governed through a board of directors that maintains the original vision of service to the community by providing oversight of our growth and fiscal solvency. Sequoia Safety Council has steadily grown its operations and facilities to meet the demand for EMS services, as well as continuing to be a source of community involvement and education.

Sequoia Safety Council serves an area of approximately 1250 square miles. Our service area includes the communities of Reedley, Orange Cove, Parlier, Yokuts Valley, Dunlap, Miramonte, Pinehurst, the Sequoia National Forest, and Kings Canyon National Park. We have now expanded to include the community's northeast of the Highway 180 corridor including Minkler, Piedra and Trimmer.

Sequoia Safety Council currently staffs a minimum of four Advanced Life Support ambulances daily, as well as personnel that provide facilities, fleet and administrative services. In 2024, we responded to more than 10,000 calls for service, both in our primary response zones and mutual-aid areas, with over 6,000 transports.

C. Introduction

This employee manual is a guide for the Company employees and supervisors in conducting operations in a legal, efficient, and safe manner. The rules contained in this manual include sections on employee conduct, procedures for accomplishing work, performing work safely, accounting for work hours, proper use of Company facilities, employee benefits and other important matters. It is the responsibility of each employee to read and understand this employee manual. Employees are encouraged to consult with management, as appropriate.

It is impossible to describe appropriate behavior and work practices for all conceivable conditions. Therefore, this employee manual covers only certain common and/or everyday activities that are known through experience to be important to the success of the Company and the safety of our employees. If you have any questions, you may contact your immediate supervisor and other management personnel for assistance.

I look forward to your success as an employee of Sequoia Safety Council.

Mr. Russ Richardson, General Manager

II. EMPLOYMENT POLICIES

A. Employee Policy Manual

This employee manual replaces and supersedes all previously issued manuals and all other written or oral descriptions of terms, conditions, and policies relating to your employment. Each employee is required to read this manual carefully and acknowledge receipt of this employee manual in writing.

Except for the employment at-will policy, the Company reserves the right to revise, delete or add to any and all policies, procedures, work rules or benefits stated in this manual. All revisions, deletions or additions to this employee manual must be in writing and must be signed by the General Manager of the Company. Oral statements and/or Company practices cannot change or alter the provisions of this manual.

Not all Company policies and procedures are set forth in this manual. Additional policies may be issued from time to time and will be applicable to your employment. If you have any questions or concerns about this manual or any other policy or procedure, please ask the General Manager. If the Company's manual is revised, each employee will be provided notice of the changes.

This Employee Manual is not intended to preclude or dissuade employees from engaging in activities protected by state or federal law, including the National Labor Relations Act, such as discussing wages, benefits, or terms and conditions of employment, raising complaints about working conditions for their and their fellow employees' mutual aid or protection, or other legally required or allowed activities.

B. At-Will Employment

The Company's employment policy is "at-will." Under the "at-will" policy, neither you nor the Company is committed to continuing the employment relationship for any specific term. Rather, the employment relationship will continue "at-will." Employees may leave at any time and the Company may terminate an employee at any time, with or without cause, and with or without notice.

In addition, all terms and conditions of employment are covered by the Company's at-will policy. This means that any term or condition of your employment, including promotion, demotion, transfer, hiring and discharge decisions, compensation, benefits, qualifications, discipline, layoff or recall, rules, hours, schedules, work assignments, job location, available equipment, job duties, and other similar terms and conditions of employment may be modified with or without notice and with or without cause at any time by the Company.

In deciding to work for the Company, or continuing to work for the Company, you must understand and accept these terms of employment. The Company prohibits anyone from entering into an employment agreement of any type that deviates from the at-will policy of the Company unless it is in writing and signed by the General Manager of the Company. Any such document must state that it is specifically intending to modify the policy of "at-will" employment.

C. Employee Bill of Rights

You have the right to:

- A workplace free of discrimination and harassment.

- An "open door policy" to discuss any issue or problem with any member of management.
- Be treated by all employees with respect and fairness.
- Be provided a safe, comfortable and professional work environment.
- Access your individual personnel file.
- Be informed of Company job performance expectations.
- Receive training and resources you need to meet or exceed your job expectations.
- Receive timely and objective performance feedback.

Sequoia Safety Council is committed to providing you with a work environment that is free of discrimination and harassment and where relationships are characterized by mutual respect.

D. Equal Employment Practices

The Company is committed to providing a professional work environment free from discrimination and harassment, including discrimination and harassment based on a protected category, and an environment free from retaliation for participating in any protected activity covered by this policy. The Company is committed to providing equal employment opportunities to all employees and applicants for employment. Accordingly, the Company has adopted and maintains this anti-discrimination policy designed to encourage professional and respectful behavior and prevent discriminatory and harassing conduct in the workplace. The Company will implement appropriate corrective action(s), up to and including formal discipline, in response to misconduct – including violations of the Company's anti-discrimination policy – even if the violation does not rise to the level of unlawful conduct. The Company prohibits discrimination or harassment based on the following categories: race (including natural hair texture and protective hair styles), color, religion, religious creed (including religious dress and grooming practices), national origin, ancestry, citizenship, physical or mental disability, medical condition (including cancer and genetic characteristics), genetic information, marital status, sex (including pregnancy, childbirth, breastfeeding, or related medical conditions), reproductive health decision making, gender, gender identity, gender expression, use of cannabis off the job and away from the workplace, age (40 years and over), sexual orientation, veteran and/or military status, qualifying act of violence victim status, political affiliation, the intersection or combination of two or more protected statuses, and any other status protected by state or federal law.

In addition, the Company prohibits retaliation against a person who engages in activities protected under this policy. Reporting, or assisting in reporting, suspected violations of this policy and cooperating in investigations or proceedings arising out of a violation of this policy are protected activities under this policy. All employees are expected to assume responsibility for maintaining a work environment that is free from discrimination, harassment, and retaliation. Employees are encouraged to promptly report conduct that they believe violates this policy so that we have an opportunity to address and resolve any concerns. Managers and supervisors are required to promptly report conduct that they believe violates this policy. The Company is committed to responding to alleged violations of this policy in a timely and fair manner and to taking appropriate action aimed at ending the prohibited conduct. **You are required to make a reasonable effort to bring forward any allegations of unlawful harassment or discrimination so the Company may stop such wrongdoing and prevent future occurrences.**

This policy applies to applicants to and employees (coworkers, supervisors, and managers) of the Company. The policy also applies to contractors and volunteers in the Company's workplace. In

addition, this policy extends to conduct with a connection to an employee's work, even when the conduct takes place away from Company premises, such as a business trip or business-related social function.

1. Unlawful Discrimination

As used in this policy, discrimination is defined as the unequal treatment of an employee or applicant in any aspect of employment, including discrimination based solely or in part on the employee's, or applicant's, protected category. Protected categories include: race (including natural hair texture and protective hair styles), color, religion, religious creed (including religious dress and grooming practices), national origin, ancestry, citizenship, physical or mental disability, medical condition (including cancer and genetic characteristics), genetic information, marital status, sex (including pregnancy, childbirth, breastfeeding, or related medical conditions), reproductive health decision making, gender, gender identity, gender expression, use of cannabis off the job and away from the workplace, age (40 years and over), sexual orientation, veteran and/or military status, qualifying act of violence victim status, political affiliation, the intersection or combination of two or more protected statuses, and any other status protected by state or federal law. Discrimination includes unequal treatment based upon the employee or applicant's association with a member of these protected classes.

Discrimination may include, but is not necessarily limited to: hostile or demeaning behavior towards applicants or employees because of their protected category; allowing the applicant's or employee's protected category to be a factor in hiring, promotion, compensation or other employment-related decisions unless otherwise permitted by applicable law, and providing unwarranted assistance or withholding work-related assistance, cooperation, and/or information to applicants or employees based on their protected status. The Company further prohibits discrimination against customers on the basis of race (including natural hair texture and protective hair styles).

2. Reasonable Accommodation of Persons with Disabilities or Religious Belief or Practice

To comply with applicable laws ensuring equal employment opportunities to qualified individuals with disabilities and medical conditions, the Company will make reasonable accommodation(s) for the known physical or mental disability or medical condition of an otherwise qualified individual who is an applicant or an employee unless undue hardship would result. Any such applicant, employee, or intern who requires accommodation in order to perform the essential functions of the job should contact the General Manager and request accommodation. The Company will engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodation(s), if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition. The individual with the disability should specify what accommodation he or she needs to perform the job. If the accommodation is reasonable and will not impose an undue hardship, the Company will make the accommodation. The Company may also propose alternative accommodation(s).

An applicant, employee or unpaid intern who requires accommodation of a religious belief or practice should also contact the General Manager to discuss the need for accommodation. If the accommodation request is reasonable and will not impose an undue hardship on the Company, the Company will make the accommodation.

3. Policy Against Unlawful Harassment

In accordance with applicable law, the Company prohibits sexual harassment and harassment because of race (including natural hair texture and protective hair styles), color, religion, religious creed (including religious dress and grooming practices), national origin, ancestry, citizenship, physical or mental disability, medical condition (including cancer and genetic characteristics), genetic information, marital status, sex (including pregnancy, childbirth, breastfeeding, or related medical conditions), reproductive health decision making, gender, gender identity, gender expression, use of cannabis off the job and away from the workplace, age (40 years and over), sexual orientation, veteran and/or military status, qualifying act of violence victim status, political affiliation, the intersection or combination of two or more protected statuses, and any other status protected by state or federal law including harassment of employees, independent contractors and business representatives. All such harassment is unlawful and will not be tolerated.

The Company is committed to taking all reasonable steps to prevent harassment from occurring. Any employee, including a supervisor or manager, who engages in unlawful harassment will be subject to discipline, up to and including immediate termination. In addition, any person who engages in, or is accused of, unlawful harassment, may be suspended and required, at the Company's discretion, to remain off Company premises pending the outcome of an investigation.

a. Inappropriate Harassment Defined

Inappropriate harassment includes conduct that is:

- (1) unwelcome;
- (2) related to a protected category identified in the paragraph above;
- (3) offensive to the recipient and to a reasonable person; and
- (4) severe or pervasive so that the conduct unreasonably interferes with the employee's work performance or creates an intimidating, hostile or offensive work environment.

If the conduct is related to a protected category, then the following might constitute unlawful harassment: jokes, graffiti, comments, stories, photographs, gestures, e-mail, written materials, threats of job detriment, or actual changes to an employee's compensation, workload, or assignments. Harassment can be in the form of verbal conduct such as vulgar remarks, ethnic jokes, and threats of physical harm. Harassment may be in the form of physical conduct such as inappropriate touching, blocking of movement, vulgar gestures, hitting, shoving, or other physically threatening conduct such as invading an individual's personal space.

b. Sexual Harassment Defined

This section addresses sexual harassment, a specific type of unlawful harassment. Sexual harassment is defined as unwanted sexual advances, requests for sexual favors or visual, verbal or physical conduct of a sexual nature when:

- (1) submission to such conduct is made a term or condition of employment; or
- (2) submission to or rejection of such conduct is used as a basis for employment decisions affecting the individual; or

- (3) such conduct has the purpose or effect of unreasonably interfering with an employee's work performance or creating an intimidating, hostile or offensive working environment.

Sexual harassment is generally categorized into two types:

1. Quid Pro Quo Sexual Harassment ("this for that")

- Submission to sexual conduct is made explicitly or implicitly a term or condition of an individual's employment.
- Submission to or rejection of the conduct by an employee is used as the basis for employment decisions affecting the employee.

2. Hostile Work Environment Sexual Harassment

- Conduct of a sexual nature or on the basis of sex by any person in the workplace that unreasonably interferes with an employee's work performance and/or creates an intimidating, hostile or otherwise offensive working environment.
- Sexual harassment also may be defined as unwanted sexual advances or visual, verbal, or physical conduct of a sexual nature. This definition includes many forms of offensive behavior. The following is a partial list:
 - Unwanted sexual advances.
 - Offering employment benefits in exchange for sexual favors.
 - Making or threatening reprisals after a negative response to sexual advances.
 - Visual conduct: leering, making sexual gestures, displaying sexually suggestive objects or pictures, cartoons, or posters.
 - Verbal conduct: making or using derogatory comments, epithets, slurs, sexually explicit jokes, or comments about an employee's body or dress.
 - Verbal sexual advances or propositions.
 - Verbal abuse of a sexual nature, graphic verbal commentary about an individual's body, sexually degrading words to describe an individual, suggestive or obscene letters, notes, or invitations.
 - Physical conduct including touching, assaulting, impeding, or blocking movements.
 - Favoritism toward employees who engage in consensual romantic or sexual relationships with their supervisor may, in some situations, create a hostile environment for other employees. A romantic relationship between a supervisor and subordinate will, in most instances, be a violation of Company policy regardless of whether or not it creates a hostile environment for other employees.

It is unlawful for males to sexually harass females or other males, and for females to sexually harass males or other females. Individuals of any gender can be the target of sexual harassment. Sexual harassment on the job is unlawful whether it involves coworker harassment, harassment

by a supervisor or manager, harassment by or of independent contractors of the Company, or by or of persons doing business with or for the Company.

The Company prohibits sexual harassment of employees, applicants, interns, and independent contractors by non-employees. Should you believe you are being sexually harassed by a customer, vendor or other person not employed by the Company, immediately bring your concern to the attention of the Company. Immediate and appropriate corrective action will be taken.

4. Reporting Procedure Regarding Unlawful Discrimination and Unlawful Harassment

Any employee or applicant who witnesses or experiences behavior that they believe violates this policy is encouraged to immediately tell the offending individual that the behavior is inappropriate and, if they feel comfortable doing so, to tell the offending individual to stop the behavior. The applicant or employee should also immediately report the alleged violation to their supervisor, the Field Supervisor, Office Manager or the General Manager. There is no chain of command when contacting the General Manager; an individual does not need supervisor or manager approval to do this. If the alleged offender is the employee's supervisor or manager, the employee should report the conduct to any other manager. A complaint may be brought forward verbally or in writing. Supervisors or managers who learn of any potential violation of this policy are required to immediately report the matter to the General Manager and must follow that officer's instructions as to how best to proceed.

If you believe you have been subjected to any form of unlawful harassment or discrimination, provide a written or verbal report to the General Manager as soon as possible. The report should be specific and should include the names of the individuals involved and the names of any witnesses. The Company will undertake a fair, timely, adequate, and impartial investigation. The Company will strive for a timely response to you as the complainant, and for timely closure of the issues. The Company will keep the investigation confidential, to the extent possible; however, because interviews of employees may occur, the Company cannot guarantee that all aspects of the investigation will remain completely confidential.

If the person to whom you report your concern about discrimination or harassment does not address your concern in a timely way or does not address the concern in a manner that you believe is adequate, you should report the concern to one of the other persons referenced above. Supervisors are required to immediately report to the General Manager all complaints of discrimination and/or harassment, as well as any observed conduct that violates this policy.

If the Company determines that harassment or discrimination has occurred that violates this policy or the law, effective remedial action will be taken commensurate with the severity of the offense up to and including immediate termination. Appropriate action will be taken in all cases to deter any further harassment or discrimination. Any employee, including a supervisor or manager, who engages in discriminatory conduct toward an employee, intern and/or independent contractor of the Company, or any person doing business with or for the Company will be subject to discipline up to and including termination.

5. Protection Against Retaliation

The law also prohibits retaliation against any employee who uses this complaint procedure or who files, testifies, assists, or participates in any manner in any investigation, proceeding or hearing

concerning unlawful discrimination or unlawful harassment. Any report of retaliatory conduct will be investigated in accordance with the Company's investigation procedure outlined above. If a complaint of retaliation is substantiated, appropriate disciplinary action, up to and including termination, will be taken against the person(s) engaging in the retaliatory conduct. The Company will not retaliate against any employee for filing a good faith complaint and will not knowingly permit retaliation by management or co-workers.

6. Disciplinary Action and Liability for Unlawful Harassment

Any employee of the Company, including any supervisor or manager, who is found to have engaged in harassment or discrimination in violation of this policy is subject to disciplinary action, up to and including termination from employment. In addition, an employee who engages in harassment may be held personally liable for monetary damages. The Company will not pay damages assessed personally against an employee for engaging in unlawful harassment or retaliation.

In addition to the Company's internal complaint procedure, employees should also be aware that the federal Equal Employment Opportunity Commission ("EEOC") and the California Civil Rights Department ("CCRD") investigate and prosecute complaints of discrimination and harassment in employment. Employees who believe they have been discriminated against or harassed may file a complaint with either of these agencies. Both the EEOC and the CCRD serve as neutral fact finders and attempt to help the parties voluntarily resolve disputes.

For more information, contact the General Manager. You also may contact the nearest office of the CCRD or EEOC, as listed in the telephone directory, or on the internet at contact.center@calcivilrights.ca.gov or www.cacivilrights.ca.gov or www.eeoc.gov/employees.

7. Anti-Harassment Training

Every Company employee is required to undergo Sexual Harassment Prevention training following their date of hire, within the first six (6) months of employment (unless hired for a temporary position), and at least once every two (2) years thereafter. In addition, all employees hired as or promoted into a supervisory or management position must undergo at least two (2) hours of interactive sexual harassment prevention training within the first six (6) months of assuming a new supervisory or management position.

Additionally, all supervisors and managers must complete at least two (2) hours of interactive sexual harassment training at least once every two (2) years thereafter. An employee who fails to comply with this section may be subject to disciplinary action, up to and including termination of employment.

E. Compliance with State and Federal Statutes, Rules and Regulations

The Company expects each employee of the Company to comply with all state and federal laws. All employees of the Company must accept the responsibility to comply with applicable laws and are required to bring to the attention of both their supervisor, the Field Supervisor or Office Manager, or the General Manager of the Company any suspected violation of a state or federal statute, rule, or regulation.

In support of this policy, the Company does not limit or restrict an employee from disclosing information to a government or law enforcement agency where the employee has reasonable cause to believe the information discloses a violation of, or noncompliance with, a state or federal statute, rule, or regulation. The Company will not retaliate against an employee for disclosing information to a government or law enforcement agency where the employee has reasonable cause to believe the information discloses a violation of, or noncompliance with, a state or federal statute, rule, or regulation. Similarly, the Company will not retaliate against an employee for refusing to participate in an activity that would result in a violation of, or noncompliance with, a state or federal statute, rule, or regulation.

Notwithstanding the foregoing, the Company may take disciplinary action, up to and including termination, against employees who improperly disclose trade secret or other confidential information.

With respect to employees who disclosed information to a government or law enforcement agency about a violation of, or noncompliance with, a state or federal statute, rule or regulation during any former employment, the Company will not retaliate against the employee for that prior conduct.

F. Non-Fraternization Policy

The Company maintains a strong policy against all forms of illegal discrimination and harassment. Consistent with this objective, a policy with respect to workplace relationships is necessary to address sexual harassment as well as to avoid any real or perceived favoritism among employees. The Company does not want to interfere unduly with the private lives of its employees. However, some limitation on relationships is necessary to protect the Company and its employees. To meet these goals, a non-fraternization policy must be followed.

In order to prevent favoritism, the appearance of favoritism, morale problems, disputes or misunderstandings, and potential sexual harassment claims, Company employees must not engage in romantic, sexual, or dating encounters or relationships with any other Company employee he or she supervises, directly or indirectly.

Violation of this policy will result in appropriate discipline of both individuals violating the policy up to and including termination.

G. Policy Regarding Workplace Violence

The safety and security of the Company employees and customers is of vital importance. Acts or threats of physical violence, including intimidation, harassment and/or coercion, which involve or affect the Company, or which occur on Company property, will not be tolerated. This prohibition against threats and acts of violence applies to all persons involved in the operation of the Company, including, but not limited to, the Company personnel, contract and temporary workers, and anyone else on the Company property. Violations of this policy, by any individual, will lead to disciplinary action, up to and including immediate termination and/or legal action as appropriate.

Threats or acts of violence may be considered inappropriate if they occur on Company premises, regardless of the relationship between the Company and the parties involved in the incident. In addition, threats or acts of violence occurring off Company premises involving an employee of the Company if the threats or acts affect the business interests of the Company, may also be considered inappropriate.

Employees who believe threats or acts of violence have been made against them or others should report the details of the incident(s) to their supervisor, the Field Supervisor or Office Manager, or the General Manager, as soon as possible. All incidents of violence and threats of violence that are reported will be investigated. The Company will determine the appropriate response.

H. Policy on Immigration Law Compliance

The Company complies with applicable immigration law, including the Immigration Reform and Control Act of 1986 and the Immigration Act of 1990. Federal law requires that every individual applying for employment completes a Homeland Security Form I-9 before they begin work. Completion of the Form I-9 includes a requirement that the applicant provide satisfactory evidence of his or her identity and legal authority to work in the United States. If you have any questions or need more information on immigration law issues, please contact the Field Supervisor or Office Manager.

I. Policy Against Drug and Alcohol Abuse

The Company maintains zero tolerance for drug and alcohol abuse by its employees. The use of any illegal drug, intoxicants or unprescribed controlled substances is strictly prohibited, as is the misuse of prescribed medication. Illicit drug use and being under the influence of alcohol puts everyone at risk and cannot be tolerated. In keeping with our efforts to promote health and safety and protect the interests of our employees and the Company, we cannot allow anyone to use, possess, sell, manufacture, purchase, or be under the influence of alcohol, illegal drugs, intoxicants, or controlled substances at any time on Company premises, in Company vehicles, while on Company business, or when responsible for the safety of others while performing Company-related activities. Violation of this policy may lead to discipline up to and including termination. Furthermore, the involvement of employees in illegal drug use off the job raises significant concerns for the Company and will be treated with equal severity.

Despite California's legalization of marijuana, the Company's zero tolerance policy prohibits any employee from having the psychoactive metabolites of marijuana in their system while working and also prohibits any employee from being under the influence of, possessing, using, selling, or distributing marijuana while on Company property.

The Company recognizes that employees may, from time to time, be prescribed legal drugs that, when taken as prescribed or according to the instructions, may result in impairment. Employees may not work while impaired by the use of legal drugs (including alcohol and/or over-the-counter medications) if the impairment might endanger the employee or someone else, pose a risk of significant damage to Company property, or substantially interfere with the employee's job performance.

If an employee is so impaired by the appropriate use of legal drugs, the employee may not report to work. To accommodate the absence, the employee may use accrued sick leave or vacation time. The employee may also contact the General Manager to determine whether an unpaid leave of absence may be available.

Nothing in this policy is intended to diminish the Company's commitment to employ and reasonably accommodate qualified individuals with a disability. The Company will reasonably accommodate qualified employees with a disability who take legal drugs because of their disability.

The Company strictly prohibits the following:

- a. Possessing, using, or being under the influence of alcohol or an illegal drug, intoxicant, or controlled substance during working hours or while on Company business;
- b. Driving a vehicle on Company business while under the influence of alcohol or an illegal drug, intoxicant, or controlled substance;
- c. Distributing, selling, manufacturing, or purchasing of—or attempting to distribute, sell, manufacture, or purchase—an illegal drug, intoxicant, or controlled substance during working hours, while on Company business, or while on Company-owned or occupied premises;
- d. Testing positive on a drug or alcohol test or screen;
- e. Refusing to take a drug or alcohol test or screen;
- f. Refusing to be driven to a drug testing facility by an employer representative;
- g. Refusing to authorize the release to the Company of the results (pass/fail) of a drug or alcohol test or screen;
- h. Refusing to allow a search of personal bags, purses, briefcases, clothing, vehicles on Company property or Company property, such as desks, lockers and other storage areas;
- i. Being convicted under a criminal drug statute for a violation occurring in the workplace or during any Company-related activity or event. Employees must notify the Company within five days after any such conviction. When required by federal law, the Company will notify any federal agency with which it has a contract of any employee who has been convicted under a criminal drug statute for a violation occurring in the workplace; and
- j. Violating any Company rule or policy regarding alcohol and drug use.

The Company may require drug and/or alcohol testing:

- a. As part of the Company's employment screening process for positions considered safety, environmentally, or security sensitive.
- b. When a reasonable suspicion exists that any employee is impaired or appears under the influence of any illegal drug, intoxicant, or controlled substance while on the job, or is otherwise in violation of this policy. Reasonable suspicion means suspicion based on information regarding, among other things, the appearance, behavior, speech, attitude, mood, and/or breath odor of any employee.
- c. When any employee is found in possession of alcohol or any illegal drug, intoxicant, or controlled substance in violation of Company policy, or when any of those items are found in an area controlled or used by the employee, such as a desk or locker.
- d. When required by a state or federal law or regulation.
- e. On a random basis for those employees working in safety sensitive positions where there is a real and substantial danger to themselves or others if they are impaired or under the influence of drugs, alcohol, or controlled substances. Employees applying for or in safety sensitive positions are hereby notified that they are required to submit to random drug testing.

- f. When an employee is involved in an incident or accident while on duty (regardless of location), and in which the employee's actions, or failure to act appear to have played a part in the accident, and the circumstances of the incident reasonably suggest that drugs and/or alcohol may have been a contributing factor to the incident, the employee may be asked to submit to a post-incident/accident drug and/or alcohol test as part of the Company's investigation of the incident. Typically, such testing will take place regardless of the seriousness of the incident/accident, although the Company reserves the right to take the seriousness of the situation into account.

The Company maintains an Employee Assistance Program (EAP) which can provide help to employees who seek assistance for drug or alcohol use and abuse, as well as for other personal or emotional problems. Employees who have a concern regarding their use of drugs or alcohol are encouraged to voluntarily seek diagnosis and to follow through with treatment as prescribed by qualified professionals. Participation in the EAP will not necessarily shield an employee from disciplinary action for a violation of this policy.

The Company has, in its sole discretion, the opportunity to not discharge an employee for a first violation of this policy, if the employee participates in and satisfactorily completes an approved drug or alcohol abuse 'assistance' or rehabilitation program recommended by a Substance Abuse Professional (SAP). Employees who are discharged for a violation of this policy will not be eligible for rehire by the Company.

J. Health and Safety in the Workplace Policy

The health and safety of employees and others on Company property are of critical concern to the Company. We strive to attain the highest possible level of safety in all activities and operations. The Company also intends to comply with all health and safety laws applicable to our business.

To this end, the Company must rely upon our employees to ensure that work areas are kept safe and free of hazardous conditions. Employees should be conscientious about workplace safety including proper operating methods and known dangerous conditions or hazards. Employees should attempt to correct any unsafe conditions if it is safe to do so and then report the unsafe conditions or potential hazards to a supervisor immediately, even if you believe you have corrected the problem. If you suspect a concealed danger is present on Company premises, or in a product, facility, piece of equipment, process, or business practice for which the Company is responsible, bring it to the attention of your supervisor and the Field Supervisor or Office Manager, or the General Manager of the Company immediately. Supervisors should arrange for the correction of any unsafe condition or concealed danger immediately and should contact the Field Supervisor or Office Manager, or the General Manager regarding the problem.

Periodically, the Company may issue rules and guidelines governing workplace safety and health. The Company may also issue rules and guidelines regarding the handling and disposal of hazardous substances and waste. All employees should familiarize themselves with these rules and guidelines, as strict compliance will be expected. Contact your supervisor for copies of current rules and guidelines. Failure to strictly comply with rules and guidelines regarding health and safety or negligent work performance which endangers health and safety, will not be tolerated.

The Company is committed to correcting any unsafe, unhealthy, or hazardous work conditions. If at any time any employee has information that will assist management in performing this task, they must come forward with that information.

Additionally, the Company has developed a written Injury and Illness Prevention Program (“IIPP”) as required by law. If you wish to have a copy, please contact the Office Manager or the General Manager. It is your responsibility to read, understand and observe the Injury and Illness Prevention Program provisions applicable to your job.

Any workplace injury, accident or illness must be reported to your supervisor as soon as possible, regardless of the severity of the injury or accident. Failure to report a work-related injury as soon as possible will lead to discipline, up to and including termination. If medical attention is required immediately, supervisors will assist employees in obtaining medical care, after which the details of the injury or accident must be reported. If it is determined that medical care is required after consultation with a supervisor, the employee is required to see the medical care provider selected by the Company except in very limited circumstances. Do not assume that medical attention is or is not necessary prior to discussing the incident with appropriate personnel. You must speak with your supervisor, the Field Supervisor or Office Manager, or the General Manager before seeking medical care unless delay in seeking medical treatment could lead to a worsening of the injury. If delay could cause additional harm, you should take appropriate steps to obtain immediate medical treatment.

Accidents or injuries attributable to employee negligence, inattentiveness, horseplay, or unlawful conduct may result in employee discipline up to and including termination.

We encourage every employee to promptly report any hazard that may come to their attention. Help us to provide an environment in which you can work safely and productively. If you are at the scene of an accident or observe any kind of injury/incident, immediately report it to someone who can get medical help. All accidents/injuries/incidents must immediately be reported to a supervisor!

Unsafe conditions should be reported to your supervisor immediately.

1. Inherent Risks of EMS Personnel

The nature of providing emergency medical services requires personnel to respond to a wide range of emergencies. Many situations are fluid, can change quickly and contain an element of uncertainty or danger that cannot be immediately mitigated. Each response poses inherent risks to the safety of personnel. Identifying and managing risk involves each department and employee, working as a team to maintain a “Workplace Safety Culture”. Personal and responder safety is the first and primary responsibility in all situations. Personal and partner safety is the responsibility of every team member.

- All members must maintain situational awareness during all aspects of an emergency response.
 - Pay attention to the surroundings and what is going on.
 - LISTEN to radio traffic, both EMS and allied agencies.
- Be continuously watchful of threats, hazards, abnormal behavior or events that could escalate to an unsafe or hazardous scene.
- Team members will only enter a scene or an area that is deemed safe.

- Any information or signs that indicate an unsafe scene will cause team members to “hold-back” until confirmed safe by the designated authority or Incident Commander (IC).
- Never knowingly place yourself in an unsafe situation. If an unsafe situation develops, leave until it is deemed safe to return and complete your patient care.

III. EMPLOYMENT PRACTICES

A. General

Whether you are applying for a job for the first time or you worked for the Company previously, the following requirements must be met in order to be eligible for employment:

- a. You must have a valid Social Security Number.
- b. You must complete W-4 and DE-4 forms.
- c. For field positions, you must be at least 21 years of age in order to drive a vehicle.
- d. You must have completed an employment application. Any false statement, misrepresentation, or omission of facts on the employment application, on any supporting documents, or in any interview, regardless of when discovered to be false or omitted, may result in immediate dismissal.
- e. You must meet or exceed the standards of education, experience, skills, abilities and personal or physical characteristics as required for the performance of the duties for the position you are applying for or currently hold.
- f. Applicants must pass a written test with a score of at least 80% and successfully pass the oral interview process.
- g. Applicants must successfully complete a satisfactory physical examination conducted by a licensed medical practitioner, including a drug-screening test.
- h. You must assure the Company that you are able to perform the essential functions of the job for which you apply either with or without reasonable accommodation.
- i. You must have appropriate documentation establishing your right to work in the United States in compliance with state and federal law.
- j. You must be and must remain insurable under the Company's general liability insurance policy. If any employee is declared uninsurable by the Company's insurance carrier, the employee will immediately be considered ineligible for further employment and will be considered to have voluntarily terminated their employment as of the date of notification of uninsurability by the insurance carrier.
- k. Prospective employees who will be required to drive Company vehicles or drive on behalf of the Company will be required to provide the Company with current and acceptable motor vehicle driving information. Employment and assignment will be conditional pending the receipt of a satisfactory report from the State of California Department of Motor Vehicles. All employees required to drive a vehicle in the performance of their duties are expected to remain insurable at all times and may be required to provide a copy of their Department of Motor Vehicles driving record report at any time. All drivers of Company vehicles must be at least 21 years of age.

B. Employment of Relatives

A familial relationship among employees can create an actual or at least a potential conflict of interest in the employment setting, especially where one relative supervises another relative. Therefore, it is required that all familial relationships be disclosed to the Field Supervisor or Office Manager, or the General Manager. Such relationships may impact issues relating to supervision, safety, security, and/or morale. To avoid these problems, the Company may refuse to hire or place a relative in a position where the potential for these problems exists. Failure to disclose a familial relationship with an applicant or employee will lead to discipline up to and including termination.

In other cases where a conflict or the potential for conflict arises, even if there is no supervisory relationship involved, the parties may be separated by reassignment or terminated from employment, at the discretion of the Company.

If two employees marry, become registered domestic partners, become related, or enter into an intimate relationship, they may not remain in a reporting relationship or in positions where one individual may affect the compensation or other terms or conditions of employment of the other individual. The Company will attempt to identify other available positions, and the employees will have 30 days to decide which individual will remain in their current position. If no alternate position is available, the employees will have 30 days to decide which employee will remain with the Company. If this decision is not made in the time allowed, the Company will make the decision to terminate one or both of the employees.

For the purposes of this policy, a relative is any person who is related by blood or marriage, or whose relationship with the employee is similar to that of persons who are related by blood or marriage, including registered domestic partners and children of registered domestic partners. Examples include a person who is related as a spouse, parent, stepparent, father-in-law, mother-in-law, child, stepchild, brother, sister, brother-in-law, sister-in-law, aunts, uncles, grandparent, grandchild, or any persons living in the same household in a relationship substantially comparable to any of the above. Additionally, a relative relationship shall be established between two employees when both employees are the parents of one or more children, irrespective of custody arrangements, marital status, amount of time spent with the child(ren), or any other factor.

C. Insurability

All employees required to drive a vehicle in the performance of their duties are expected to remain insurable at all times. All employees must remain insurable under the Company's general liability insurance and/or other insurance policies as deemed appropriate by the Company. If any employee is declared uninsurable by the Company's insurance carrier, the employee will immediately be considered ineligible for further employment and will be considered to have voluntarily terminated his/her employment as of the date of notification by the insurance carrier that the employee is uninsurable.

D. Categories of Employees

Employees at the Company are classified as introductory, full-time non-exempt, full-time exempt, part-time non-exempt, or temporary employees.

1. Introductory Employees

All employees are hired on an at-will basis as previously stated in this manual. Employees hired into the classification of full-time/part-time non-exempt or full-time exempt are classified as introductory employees during the first six months of their employment or as extended for additional periods at the discretion of the Company. During the time the employee remains classified as an introductory employee, the employee is not entitled to any discretionary benefits offered by the Company. The Company will notify introductory employees at the time they become eligible for discretionary employee benefits in the new position. The employee's date of hire for purposes of calculation of continuous employment will be the date the employee was hired as an introductory employee for the full-time/part-time non-exempt or full-time exempt position. Completion of the introductory period does not entitle an employee to remain employed by the Company for a definite period of time.

2. Full-Time Non-Exempt Employees

A full-time non-exempt employee is one who is no longer classified as an introductory employee and who is normally scheduled to work and who regularly does work a minimum of 32 hours per workweek for administrative personnel or 60 hours per workweek for field personnel. Full-time non-exempt employees are paid on an hourly basis and are eligible for discretionary employee benefits as described in later sections of this manual. A full-time employee who does not continue to work 32 hours per workweek for administrative personnel or 60 hours per workweek for field personnel or is not scheduled to work 32 hours per workweek for administrative personnel or 60 hours per workweek for field personnel, may be classified as a part-time employee at the discretion of the Company.

3. Full-Time Exempt Employees

A full-time exempt employee is one who is no longer classified as an introductory employee, is compensated on a salary basis, and whose job assignments meet the federal and state requirements for overtime exemption. Exempt employees are not eligible for overtime pay. Generally, persons who meet the requirements of the executive, administrative, professional, and certain sales exemptions are overtime exempt. The Field Supervisor, Office Manager, or the General Manager will inform you if your status is exempt. Exempt employees are eligible for discretionary employee benefits as described in later sections of this manual.

4. Part-Time Non-Exempt Employees (Referred to as Per Diem Employees)

A part-time non-exempt employee is one who is normally scheduled to work less than 32 hours per workweek for administrative personnel or 60 hours per workweek for field personnel depending on their classification and are referred to as a "per diem" employee. Part-time non-exempt (per diem) employees may be assigned a work schedule in advance or may work on an as-needed basis. Part-time non-exempt (per diem) employees are not eligible for other discretionary employee benefits described in later sections of this manual, unless required by law or specifically eligible for participation in certain retirement plans as described in applicable summary plan descriptions.

5. Temporary Employees

Temporary and/or occasional employees are those who are employed for short-term assignments or on an intermittent or sporadic basis. Short-term assignments will generally be periods of three

months or less. Temporary employees are not eligible for discretionary employee benefits, except as required by law, and may be classified as exempt or non-exempt on the basis of job duties and compensation.

E. Seniority

Seniority is used by the Company to determine who has been with the company longest as an impartial method of resolving situations where two people make similar requests. Seniority is also used for shift bidding, per diem employee shift requests, and as a factor in reduction in staff decisions. Seniority is divided into five primary categories, each with their own ranking:

1. Full-time Paramedics,
2. Full-time EMTs,
3. Part-time (Per Diem) Paramedics,
4. Part-time (Per Diem) EMTs, and
5. Supervisors.

The first four (4) categories above follow the same procedure for determining seniority, as follows: Employees are separated into their appropriate categories and arranged in order by seniority date. If two employees have the same seniority date and are in the same category, the local accreditation number (CCEMSA certificate number) will be used to break the tie with the lower accreditation number getting the higher seniority position.

When an employee transitions from one category to another (EMT to Paramedic, Per Diem to Full-time, etc.), the date of the change becomes the new seniority date in the new category. Seniority listings will be posted and updated on an as-needed basis.

Generally, the seniority ranking is based on the employee's date of hire; however, there are factors that may adjust the date of seniority, including leaves of absence. Unless specifically prohibited by law, all leaves of absence will adjust the date of hire (or change of category) equal to the number of days spent on the leave of absence. This means that a leave of absence could change one's seniority position, if their newly calculated date falls after another employee's date of hire (or change in category).

F. Licensing / Certification

All field personnel are required to maintain active and have in their possession at all times while on duty, the following licenses and certificates: (Note: New ambulance personnel must show proof of County licensing before reporting to work.)

1. Valid California Drivers' License (Class C minimum)
2. Valid California Ambulance Driver's Certificate
3. Paramedic or EMT-1 Certificate (as applicable)
4. California Medical Examiner Certificate
 - a. The Company provides a designated doctor for this exam.
 - b. Reimbursement for a non-designated provider exam will not exceed the cost of the Company's designated provider.

5. Cardiopulmonary Resuscitation (CPR) Card (Basic Life Support)
6. Advanced Cardiac Life Support (ACLS) for Paramedics
7. Pediatric Advanced Life Support (PALS) or Pediatric Education for Prehospital Professionals (PEPP) for Paramedics
8. FEMA courses:
 - a. IS 100 – An Introduction to the Incident Command System
 - b. IS 200 – Basic Incident Command System for Initial Response
 - c. IS 700 – An Introduction to the National Incident Management System
 - d. IS 800 – National Response Framework, An Introduction

Additional courses may be required for field personnel who are part of the special operations teams, supervisory team, or other specified roles.

It is the responsibility of each employee to maintain and renew the required licenses and certificates. Employees must provide proof of renewal at least fourteen (14) days before the expiration date. Employees who do not submit proof of renewal within seven (7) days of expiration, will be removed from the schedule until proof of renewal is provided. Failure to maintain currency and renew the required licenses and certificates may subject the employee to disciplinary action, up to and including termination.

Upon receiving required licenses/certifications, Sequoia Safety Council will reimburse the fees for the required licenses and certificates.

- Regular full-time employees will be reimbursed 100%.
 - ACLS/PALS/CPR/FEMA Courses based on cost of “in house” presentation.
- Per Diem employees will be reimbursed (unless covered by other employer) 50% for the fees.
 - ACLS/PALS/CPR/FEMA Courses based on cost of “in house” presentation.

G. Education

All employees are required to maintain the required licenses and certifications for their position which includes the continuing education units (CEU) necessary for recertification. Sequoia Safety Council provides CE credits at the quarterly company training meetings. All employees are compensated at their normal base rate of pay to attend training at the quarterly Company training meetings. The Company will not compensate employees for any other CEUs. The Company may, at its discretion, pay for outside training when it benefits the Company. Employees must submit a written Training Request to the General Manager for approval, at least seven (7) days in advance. Reimbursement for outside training must be approved by the General Manager or his/her designee.

H. Job Assignments

Your supervisor will explain your job responsibilities and the standards which will be expected. Because flexibility is necessary, your job responsibilities may change at any time during your employment. The Company has the final say as to your work assignments. In addition to your regularly assigned job responsibilities and duties, from time to time, you may be asked to work on

special projects or to assist with other work important to the operation of your department or the Company. Your cooperation and assistance in performing additional work is expected.

The Company reserves the right at any time, with or without notice, to alter or change job responsibilities, reassign or transfer job positions, or assign additional job responsibilities.

I. Meal Periods for Employees

Non-exempt employees are provided with an unpaid duty-free meal period of a minimum of 30 minutes. An uninterrupted off-duty meal period must be taken if you work more than 5 hours in any day unless your workday is concluded in 6 hours or less and the meal period has been waived by the mutual consent of the Company and the employee. The meal period is expected to be started by the fifth hour of work. Non-exempt employees are provided with a second unpaid uninterrupted duty-free meal period of a minimum of 30 minutes when the employee works more than 10 hours in a workday, except that if the total hours worked is no more than 12 hours, the second meal period may be waived by mutual consent of the Company and the employee. Any second meal period must be started by the tenth hour of work.

Every nonexempt employee must record on their timecards when each meal period begins and ends. In no event shall a meal period last for less than 30 minutes. Meal periods cannot be taken at the beginning or end of shifts. No work is to be performed during the meal period. If an employee is unable to take a 30-minute duty free meal period on a given day or is unable to start the meal period by the fifth hour of work or tenth hour of work, or the meal period is interrupted for work related reasons, the employee must notify the employee's supervisor immediately. Employees are free to leave the premises during meal periods.

J. Rest Periods for Employees

Each non-exempt employee is authorized, permitted, and expected to take a minimum net ten-minute paid rest period for each four hours of work or major portion thereof. The rest period is to be taken near the middle of the 4-hour work period. During an eight-hour workday, employees will be expected to take two minimum net ten-minute rest periods. Additional rest periods are authorized and permitted if employees work longer workdays. For example, employees who work up to 6 hours are entitled to one rest period, employees who work more than 6 hours up to 10 hours are entitled to two rest periods, and employees who work 10 to 14 hours are entitled to three rest periods. An employee may not "skip" a rest period for the purpose of taking extra time at lunch or leaving early. It is each non-exempt employee's responsibility to inform his/her supervisor in advance if the employee believes some work responsibility will prevent him/her from taking a rest period. Employees are not to perform work during the rest period(s). In the event an employee is unable to take a rest period as required, the employee must notify the Field Supervisor or Office Manager, or the General Manager immediately. Employees are free to spend their meal and rest period times as they choose and are free to leave the premises during those periods, as applicable for their position.

Employees are expected to observe assigned working hours and the time allowed for meal and rest periods. Do not abuse these break periods by taking more time than is allowed. In the event an employee has any questions regarding the Company's meal/rest period policy, please see the Field Supervisor, the Office Manager or the General Manager.

K. Meal and Rest Period Distinctives for Field Employees

Because of the nature of EMS work, in addition to the requirements above, there are specific requirements for those who work as ambulance employees.

1. All rest and meal periods are paid time.
2. Ambulance employees must remain on-call during rest and meal breaks and must be available to respond when alerted to a call.
3. Meal breaks cannot be in the first or last hour of the work shift and must be at least two (2) hours apart.
4. Rest and meal breaks must be uninterrupted.

Rest and Meal Break Opportunities for Field Employees:

Rest and meal break opportunities occur throughout the shift. Given the dynamic nature of EMS work, breaks for field employees may be taken in a variety of ways. This is not an all-inclusive list of every possible break opportunity:

- 1) **Area of Station** – You and your partner are free to utilize the ambulance to obtain food or conduct lawful and appropriate personal business while in the area of the station.
- 2) **At Station** – When at station, you are encouraged to rest and relax as much as possible after the daily vehicle inspection and station chores are completed.
 - a. You may conduct lawful and appropriate personal business while at the station. The stations are furnished with kitchens, bathrooms, showers, beds, and laundry facilities. Television and WIFI are also provided.
- 3) **Long Distance Transfer** – Take a break prior to making contact with your patient. Upon transfer of care at the receiving facility, take another break prior to returning to ensure you are rested for the drive.
- 4) **Stand-By or Special Event** – Breaks may occur when there is a break in the action, such as halftime or intermission. Rotate taking breaks with your partner.
- 5) **Bed Delay** – When possible, alternate attending to the patient to rotate break opportunities.
- 6) **Pending Paperwork** – The crew is free to take a break at the hospital when the ambulance has been readied for the next call.
- 7) **On-Call Status** – Employees shall remain on-call during rest and meal breaks and must be available to respond immediately when alerted to a call. Employees shall monitor their communications devices during meal and rest breaks. Employees shall not take a break in an area where there is no reception for their alerting devices. Do not notify EMS Communications of break status.
- 8) **Reporting** – Sequoia Safety Council is obligated to make rest and meal break opportunities available to you. It is your obligation to use the opportunities and report when you have not had an opportunity for a break. If you have not had a break opportunity, please notify your supervisor immediately so a break can be arranged. Document the missed break on your timecard.

You must report any missed rest or meal periods via email to the on-duty supervisor. In the absence of an on-duty supervisor, submit the missed break to the General Manager. Missed breaks must be reported no later than twelve (12) hours after the end of the shift in which the missed break occurred. The claim will be verified, and you will be paid accordingly.

L. Absences and Punctuality

As an employee of the Company, you are expected to be regular in attendance and punctual. The absence of any employee, including reporting late or quitting early, means less service to our customers and additional workloads for other personnel. For these reasons, it is expected that you will be present and on time each day you are scheduled to work.

Typical Schedules:

- Full-time field employees are required to work a minimum of one hundred-twenty (120) hours per pay period. Typically, this is accomplished by working 48 hours one week (short week) and 72 hours one week (long week). Unless otherwise noted, all regular schedules are based on working 24-hour shifts, which begin at 6:00 am.
- Part-time (per diem) field employees are required to work a minimum of forty-eight (48) hours per month.
 - Part-time employees are required to contact the Field Supervisor to check availability and schedule shifts.
 - Failure to meet part-time minimum hours in any consecutive 2-month period without notification to the General Manager will be considered as a voluntary resignation, with resulting termination of employment.
- Full-time administrative employees are required to work a minimum of thirty-two (32) hours per week. Company work hours are from 7:30 am to 16:30 pm, Monday through Friday.
- Part-time (per diem) administrative employees will work less than full-time hours.
- No employee can be pre-scheduled to work 3 consecutive 24-hour shifts, except during a disaster, or when on a specific assignment, such as an out-of-area deployment or strike team.
 - In order to maintain proper ambulance coverage and staffing, routine adjustments to the System Schedule need to be made. Generally, this is done on the smallest scale to impact the fewest number of employees' schedules. This may also be done as a "bid process" where the entire schedule is adjusted. Additionally, in order to both ensure daily supervisor coverage and adhere to work hour policies, specific shifts may need to be set aside specific to supervisors or employees that commit to working a weekend day and every other full weekend. All bids will otherwise be completed by seniority, based on position.
- Periodically, one or more shifts become open due to either a temporary or permanent status change. These open shifts may be available to full-time employees to make adjustments to their schedules, or per diem employees may be offered the chance to commit to working these shifts for the duration of the opening (either the end of the current bid or until the temporary opening is resolved). After the bid is complete, employees may request permanent shift changes with other employees, provided the trade adheres to other outlined policies, does not increase overtime, and does not create a pre-scheduled 72-hour shift.

Bid Scheduling eligibility:

- Employees on Workers' Compensation/Workers' Compensation – Modified Duty Leaves of Absences cannot bid until they have returned to regular duty.
- Employees on Pregnancy Disability, FMLA/CFRA Leave for baby bonding or supportive care, Military Leaves of Absence, and/or other types of approved leaves, will only be allowed to bid a schedule if they will be returning to work by the first day of the new schedule.
- After all Full-Time employees have bid, Part-Time (per diem) employees may have the opportunity to commit to specific open shifts.

Employees are expected to report to work as scheduled, on time, in uniforms as applicable, and prepared to start work. Employees should be at their workstation, ready to start work, at their assigned start time. Employees also are expected to remain at work for their entire work schedule, except for meal periods or when required to leave on authorized Company business. Late arrival, early departure or other absences from scheduled hours are disruptive and must be avoided. Failure to comply with these requirements will lead to disciplinary action, up to and including termination.

The Company maintains the right and responsibility of assigning or changing individual work schedules to meet its needs and staffing requirements for maintaining appropriate staffing levels. Staffing needs may change throughout the year, and each employee should be prepared to adjust accordingly. The Company will make every attempt to post schedules prior to the beginning of each pay period and, in those instances in which major changes in the schedule are made, sufficient advance notice will be given to all affected individuals.

If you are unable to report for work on any particular day, you must personally call your supervisor as soon as you are aware of the need for an absence, as far in advance as possible, and in accordance with the rules established for your specific employment position. Generally, notice to your supervisor at least one (1) hour in advance is required. If you are unable to report for work on any particular day, you must personally call your supervisor. You must personally speak directly to your supervisor to discuss pending work. Contacting your supervisor by voicemail, email or by text message is not sufficient. If your supervisor is unavailable during this time, you must telephone the General Manager. If your absence will require that a substitute be obtained, you will be expected to call far enough in advance so that arrangements can be made for your replacement. If your absence continues through the end of the day, you must call your supervisor before the end of the day to report the probability of your return on the following day. You must personally contact your supervisor each day you are absent; a call from your spouse, child, doctor, or other person is not sufficient unless it is impossible or detrimental to your health (based upon the medical opinion of your healthcare provider) for you to contact your supervisor personally.

In all cases of absence or tardiness, employees must provide their supervisor with an honest reason or explanation. Employees also must inform their supervisor of the expected duration of any absence. Unless there are extenuating circumstances, you must personally call in on any day you are scheduled to work and will not report to work. The Company will comply with applicable laws relating to time off from work, but it is the employee's responsibility to provide sufficient information to enable the Company to determine if any such law(s) applies to their absence. Employees must keep in touch with their supervisor and notify the Company of any change in their status as soon as possible.

If you are absent due to illness or injury and you have no paid sick leave available to use, you will be required to provide certification from a healthcare provider verifying the need for your absence as well as your ability to return to work. If your absence is two days or more in length and is the result of a personal emergency other than illness or injury, documentation will generally be required verifying that your absence was necessary.

In the event a personal emergency necessitates your absence from work, time off may or may not be approved by your supervisor. Unless your absence can be covered by vacation or other paid time off as may be provided by our employee benefit program, time off is taken without pay as allowed by applicable law. Requests should be infrequent and limited to emergency situations.

Excessive absenteeism or tardiness may lead to disciplinary action, up to and including termination of employment. Other patterns of absences or tardiness — regardless of the exact number of days — may warrant disciplinary action. Unreported, unexcused, or excessive absenteeism (including tardiness and early departures) will result in discharge or other discipline. For all personnel, tardiness beyond thirty (30) minutes without proper notification is considered shift abandonment.

If you fail to report for work without any notification to your supervisor, you may be considered to have abandoned your employment with the Company. Any employee who is absent for two (2) consecutively scheduled shifts without notifying the employee's supervisor will be considered to have voluntarily quit their employment with the Company effective at the beginning of the third day of absence.

Individuals with disabilities may be granted reasonable accommodation in complying with these policies if undue hardship to the Company's operations does not result. However, regular attendance and promptness are considered part of an employee's essential job functions.

The Company will comply with California Labor Code section 233 allowing employees to use up to one-half of their yearly accrual of applicable paid sick leave (or other authorized paid time off) for the care of an ill child, parent, spouse, domestic partner, designated person of the employee, or as otherwise required by law. The Company will also comply with California's mandatory paid sick leave laws.

M. Terminations

All employees have the right to terminate their employment with the Company, at any time for any reason, with or without notice. Similarly, the Company has the right to terminate any employee at any time for any reason with or without notice.

Any and all Company property in your possession must be returned to the Company at the time of termination. If Company property is not returned, you will be responsible to pay for the property. In addition, all confidential, sensitive, and proprietary information must be returned to the Company immediately.

Please provide a forwarding address if the address on file is no longer correct.

N. References

All requests for references, including references for home or personal loans, must be directed to the General Manager. No other manager, supervisor or employee is authorized to release references for current or former employees. The Company's policy as to references for current and former employees is to disclose only the dates of employment and the title of the last position held. If you

authorize disclosure in writing, the Company will also provide a prospective employer or loan company with information on the amount of the salary or wage you last earned.

O. Employee Training Meetings

Employee Training meetings are held quarterly for the purpose of providing information to employees concerning the Company, new policies and procedures, patient care practices, changes in operation, protocols, etc. This opportunity provides each employee an opportunity to ask questions and provide feedback to management. These meetings are mandatory for all field personnel. Failure to attend a training meeting without prior notification and approval of the General Manager will result in disciplinary action. All employees will be compensated at their base hourly rate of pay for attendance at the meetings.

IV. SALARY/WAGE ADMINISTRATION PROGRAM

A. Pay Periods/Payroll

1. Payroll and Compensation Concerns

The Company strives to make sure all employees are properly and accurately compensated. Employees must assist the Company in that endeavor by following all policies regarding recording all time worked, not engaging in any off-the-clock work, immediately informing the Company if any time is worked that has not been recorded, taking meal and rest periods in accordance with policy, and otherwise adhering to Company policies. Each pay period, employees should review their paystub and time clock receipts to make sure they are correct. Any errors should be brought to the attention of the Field Supervisor or Office Manager, or the General Manager immediately. If the error is not corrected right away, the employee must inform the General Manager as soon as possible. The types of payroll and compensation issues that can be brought to the attention of the Company include, but are not limited to, the following:

- Compensation
- Information on a paystub
- Deductions from compensation
- Vacation
- Sick Pay
- Meal or rest periods
- Bonuses
- Overtime compensation
- Failure to compensate for hours worked
- Inaccurate record of hours worked

2. Pay Periods

Each regular workweek begins on Sunday at 12:01 a.m. and ends the following Saturday at 12:00 pm (midnight). The pay period for calculation of payroll is every two weeks. Paychecks are scheduled for distribution every other Friday after the end of the second week of the pay period. Automatic direct deposit of paychecks is available. If the normal day you receive your paycheck falls on a Saturday, Sunday or holiday, your paycheck may be provided to you the preceding day but will be available no later than the next business day. Ask your supervisor about the paycheck distribution date and place and how to sign up for automatic direct deposit.

3. Disbursement of Paychecks

Payment will be made to each employee in person or by automatic direct deposit. Any employee that requests his/her paycheck be delivered by mail must make that request in person and in writing.

Paychecks will not be issued to any person other than the employee without prior authorization. The employee may only give this authorization in person and in writing to management. In emergencies, the employee's supervisor will determine whether distribution of an employee's paycheck to an individual, other than the employee, is appropriate.

Any questions concerning your paycheck or wages should be directed to the Field Supervisor or Office Manager, or the General Manager.

4. Timekeeping Procedures

All non-exempt employees are required to record time worked for payroll purposes. Employees must record their own time at the start and at the end of each work period, including before and after each meal period. Employees must also record their time whenever they leave the workplace for any reason other than Company business. Making a time entry for another employee, allowing or requesting another employee to make a time entry for you, altering or falsifying a time entry will lead to discipline up to and including termination. Any errors in your time entries should be reported immediately to your supervisor who will take steps to correct legitimate errors.

The Company understands that mistakes can happen by the employee or by the payroll department. If an employee forgets to clock in or makes a mistake, the employee must inform his or her supervisor immediately. If an employee discovers an error on his or her paycheck, the employee should report the error to the Field Supervisor or Office Manager, or the General Manager immediately. In the event the employee does not advise their supervisor in a timely manner, the supervisor may make corrections based upon the supervisor's knowledge or the oral information from the employee. If an employee believes the corrections are not accurate, the employee should inform their supervisor, the Field Supervisor or Office Manager, or the General Manager immediately.

Employees must record all time worked. "Off-the-clock" work is not expected or permitted. Failure to record all time worked may lead to discipline, up to and including discharge.

Timecards must be submitted to the General Manager no later than 8:00 am on the Monday following the end of the pay period.

5. Salary Pay Policy for Exempt Employees

Exempt employees will generally receive their full salary for any week in which work is performed. However, an exempt employee's salary may be reduced for:

- (1) complete days of absence due to personal reasons,
- (2) full day absences due to sickness, provided the exempt employee is allowed to participate in the Company's sick leave plan and the exempt employee has not yet accrued sick leave benefits or the exempt employee's sick leave benefits are exhausted,
- (3) absences for a full workweek, and/or
- (4) incomplete initial and final weeks of work.

An exempt employee's accrued vacation time will be reduced for full days of absence while on vacation. An exempt employee's accrued vacation time will be reduced for partial day absences of one (1) hour or more when the exempt employee is absent for personal reasons. An exempt employee's salary and/or accrued vacation will be reduced for full workweek absences due to required service as a juror or witness, or when the time away is due to military service. An exempt employee's salary and/or accrued vacation will not be reduced when an employee works only a partial day or week when the time away from work is due to required service as a juror or witness,

or the time away is due to military service. An exempt employee's salary will not be reduced when time away from work is due to a lack of work.

An exempt employee's accrued sick leave will be reduced for full or partial day absences due to sickness provided the employee is allowed to participate in the Company's sick leave plan. After accrued sick leave is exhausted, an exempt employee's salary will not be reduced for partial day absences but will be reduced for full day absences.

The Company prohibits deductions from the salary of exempt employees that violate state or federal law. If an exempt employee believes his or her salary has been improperly reduced, the employee must notify their direct supervisor, or the Field Supervisor or Office Manager, or the General Manager immediately. If it is determined the employee's salary has been improperly reduced, the employee will be reimbursed as soon as practicable.

Exempt employees may be required to record time worked even though exempt employees are not paid on an hourly basis.

This Salary Pay Policy for Exempt Employees is intended to comply with the salary pay requirements of the California Wage and Hour laws and the Fair Labor Standards Act and shall be construed in accordance with these laws. Exempt employees are encouraged to bring any question concerning this Salary Pay Policy for Exempt Employees to the Field Supervisor or Office Manager or the General Manager.

6. Long Distance Transports (LDT)

All employees are eligible for reimbursement of meals purchased during long-distance transports (LDT). A LDT is defined as a distance of one hundred (100) miles or more, one-way. Employees are granted \$25.00 for meal reimbursement. Receipts are not necessary for this reimbursement. LDT reimbursement forms should be completed no later than the end of the following shift. Employees on a LDT should take sufficient breaks so they are able to drive safely.

7. Off-Duty LDT Pay

Employees who are not currently on shift and who report to work to handle a LDT, when requested by the Field Supervisor, will receive a stipend. This additional pay will be included on the employee's paycheck. To request this additional pay, the employee shall make a notation on their timecard.

8. Business Travel Expenses

The Company will reimburse all employees for reasonable business travel expenses if the General Manager approves the trip in advance. Travel expenses such as travel, meals, lodging, and other expenses are reimbursed as long as they were necessary to meet the objectives of the trip. Employees are expected to keep expenses within reasonable limits. A per diem allowance will be granted for those employees traveling out of town on overnight stays for a period of twenty-four (24) hours or more. Per diem meals will be paid at a maximum total amount of \$45.00 per day. Per diem for Breakfast on the day of departure and Dinner on the day of return will not normally be paid based on the assumption an employee is able to obtain those meals at home. If for some reason, the employee has a late return home and dinner is eaten on the road, that meal will be included in the per diem for that trip. Late return is defined to be after 7:00 p.m. All expenses must be supported by receipts.

If you are involved in an accident while on business travel, immediately report the accident to a supervisor. If you use a vehicle owned, leased, or rented by the Company, you may not use that vehicle for personal reasons while on business travel unless you have obtained advance approval from the General Manager.

Completed travel expense reports must be submitted within seven (7) days of the end of the business trip. Receipts for every expense item must be submitted, as well.

9. Teaching Pay

Sequoia Safety Council encourages its team members to grow into teaching roles because it benefits both the Company and the employee. Employees who teach a course pre-approved by the General Manager will be paid at their normal base rate of pay, counted as hours worked, towards both daily and weekly overtime.

10. Reporting Time (Show-Up) Pay

a. Scheduled Workday

When an employee reports to work at their scheduled time and the Company finds it necessary to send the employee home, the employee is paid as follows:

1. If the employee reports to work and there is no work, the employee must be paid for at least half of the hours they were scheduled to work. In no event is this amount to be less than two or more than four hours. For example, if the employee was scheduled to work eight hours, they receive four hours pay. If the employee was scheduled four hours or fewer of work, they must be paid for two hours.
2. If the employee reports a second time during the same day, they must receive at least two hours' work or pay for the second appearance.

These provisions do not apply to employees:

1. When operations cannot begin due to threats to the employer or property or when recommended by civil authority.
2. When public utilities fail, such as water, gas, electricity or sewer.
3. When work is interrupted by an act of God or other causes not within the employer's control.

b. Unscheduled Workday

When an employee is required to report to work on a day that is not an employee's scheduled workday, the employee will be paid the appropriate hourly rate for all hours worked, with a minimum of two hours.

11. Callback Time and Pay

A non-exempt employee who is called back to work for a second work period in a workday and is given less than two hours' work will be paid a minimum of two hours' pay at the employee's regular rate of pay for the second work period, without regard to the number of hours actually worked, unless the reasons for any failure to furnish two hours of work are beyond the Company's

control. Callback time is not counted as “hours worked” for overtime purposes beyond the time during which the employee is actually performing work.

12. Deductions From Pay

Under Federal and California law, the Company is required to withhold certain amounts of pay for income tax, social security, and state disability insurance for all employees. In addition, other deductions from your paychecks may be made if you authorize the deduction in writing.

If you have any questions or requests concerning any deduction from your pay, please bring it to the attention of your supervisor.

13. Final Paycheck Upon Conclusion of Employment

Terminated employees will receive all earned wages due (including vacation, bonus, commission, or other calculable wages) at the time and place of termination. Employees who resign without giving 72-hours’ notice will be provided all earned wages due within 72 hours of quitting. In the case of resignation, the final paycheck will be available at the place where the employee’s paychecks are regularly distributed. If an employee who quits or is discharged requests in writing that the final paycheck be mailed, it will be mailed to the address provided by the employee. If an employee is on direct deposit of wages at the time of termination or resignation, the final paycheck may be provided to the employee by direct deposit or made available for pick-up within the time limits specified above. If the resigning employee gives 72-hours’ notice of the resignation, the final paycheck will be provided to the employee on the employee’s last day of employment.

B. Overtime

As necessary, non-exempt employees may be required to work overtime at the Company’s discretion. Refusal to work overtime as requested by the Company will lead to disciplinary action, up to and including discharge. Employees should NOT work overtime unless it has been requested or approved by a supervisor. Working overtime without prior approval will lead to disciplinary action, up to and including termination. However, the Company will pay all overtime hours worked by non-exempt employees in accordance with state and federal law. Generally, for administrative employees, overtime compensation is paid at the rate of time-and-one-half for hours worked over eight (8) in a workday and for the first eight (8) hours worked on the seventh consecutive day of the workweek. Double-time is paid for hours worked over twelve (12) in a workday and for hours worked over eight (8) on the seventh consecutive day of the workweek. There may be exceptions to the above overtime computation for nonexempt employees who are subject to an Alternative Workweek Schedule.

Only those hours that are actually worked are counted to determine an employee’s eligibility for overtime pay. For example, compensated holidays are not hours worked and, therefore, are not counted in making overtime calculations, unless the employee actually worked on the holiday.

For Field employees, the Emergency Ambulance Employee Safety and Preparedness Act created special requirements for “emergency ambulance employee[s]” who work for private ambulance companies. In accordance with the law, ambulance personnel who are scheduled for 24-hour shifts must sign a 24-hour shift agreement to ensure the Company is in compliance with daily meal, rest and overtime rules and exemptions, as they apply to 24-hour shifts.

Additionally, all non-exempt employees are entitled to one day of rest per work week. Employees are not permitted to work more than six days within one work week, unless:

- Assigned to a specialty deployment,
- During a declared disaster, or
- Assigned as part of a strike team.

Employees who feel they were not provided a day of rest as required by this policy should inform their supervisor, and (if not corrected) the General Manager immediately.

Non-exempt employees should be on the premises only during their scheduled hours of work. You should arrive for work early enough to begin work at your scheduled starting time but not so early as to create overtime. Your departure should be promptly after the quitting time scheduled by your supervisor.

For overtime purposes, the workday begins at 12:01 a.m. and ends at 12:00 p.m. (midnight). The workweek begins at 12:01 a.m. Sunday and ends at midnight the following Saturday for all employees.

Exempt employees are expected to work as much of each workday as is necessary to complete their job responsibilities. No overtime or additional compensation is provided to exempt employees. Exempt employees also may be required to record their time worked and report full days of absence from work due to vacation, sick leave, personal business, etc.

Any errors in your pay should be reported immediately to your supervisor.

C. Shift Incentive

Situations may arise which result in the General Manager or Field Supervisor to offer a “shift incentive” stipend, up to double time pay, to employees as an incentive to fill open shifts. Incentives will only be offered within the current guidelines established for the supervisory team. Double time pay incentive supersedes any overtime rate that would have been paid for those hours worked. Incentive time must be noted on the schedule. Employees reporting to work for a shift that earns an incentive shall make a note on their timecard prior to submitting. Failure to note on timecard may result in delayed payment.

V. GENERAL INFORMATION

A. Open Door Policy

At some time during your employment, you may have a complaint, suggestion, or question about your job, your working conditions, or the treatment you are receiving. Immediately bring the situation to the attention of the Field Supervisor or Office Manager.

If the problem is not resolved, you may put it in writing and present it to the General Manager of the Company, who will investigate and provide a solution or explanation. It is recommended that you bring this matter to the General Manager of the Company as soon as possible after you believe that your immediate supervisor has not resolved the matter.

This procedure, which we believe is important for both you and the Company, cannot result in every problem being resolved to your satisfaction. You must accept that the decision of the General Manager of the Company is final. However, the Company values your input, and you should feel free to raise in good faith issues of concern without fear of retaliation.

B. Performance Evaluations

If or when the Company provides performance evaluations, they will include a review of the quality and quantity of the work you perform, your knowledge of your job, your initiative, and your work attitude. The performance evaluation should help you become aware of the progress you are making, the areas in which you need to improve, and objectives or goals for future work performance. You are not guaranteed to receive performance evaluations and your failure to receive performance evaluations will not be a basis upon which to claim the Company has failed to properly train you. It is each employee's responsibility to seek out appropriate training. In addition, positive performance evaluations do not guarantee increases in salary/wages or promotions. Salary/wage increases, promotions, salary/wage reductions and demotions are solely within the discretion of the Company and depend upon many factors in addition to your individual performance. Nothing in the performance evaluation process has any impact upon the at-will nature of your employment with the Company.

C. Personnel Records

The information recorded in your personnel file is extremely important. Make sure that the personal data in the file is accurate and up to date. Your current address and telephone number are essential for many purposes, including direct mail from the Company. Similarly, the current name, address, and telephone number of your emergency contact must be on file with the Company. If your marital status, domestic partner status, or dependents change, you may need to change the number of exemptions claimed for income tax purposes and/or add or delete individuals to or from group insurance plan(s) for which you are eligible and in which you are participating. It is your responsibility to keep the Company informed of any changes. Please report any change to the Field Supervisor, the Office Manager, or the General Manager immediately.

As an employee of the Company, you may inspect your personnel file, as provided by law, in the presence of a supervisor at a mutually convenient time. You may add your version of any disputed item to the file. Any request to inspect your personnel file or obtain copies from your personnel file must be made in writing to the Office Manager or the General Manager to be effective. A form to be used for the purpose of obtaining a copy of your personnel file may be obtained from the Field Supervisor or Office Manager. Generally, the copy will be provided within 30 days of the date of the request.

The Company will restrict disclosure of your personnel file to authorized individuals within the Company. Any request for information from personnel files must be directed to the Office Manager or the General Manager. Only the Company is authorized to release information about current or former employees. Disclosure of personnel information to outside sources will be limited to dates of employment; however, the Company will cooperate with requests from authorized law enforcement or local, state or federal agencies conducting investigations. Any unauthorized disclosure of information will lead to disciplinary action, up to and including termination.

Health/medical records are not included in your personnel file. The Company will safeguard them from disclosure and will divulge such information only (1) as allowed by law; (2) to the employee's personal physician upon written request with permission of the employee; or (3) as required for workers' compensation cases.

D. Standards of Conduct

There are many of us working together here at the Company and it is important to all of us that we guard our security, personal safety and general welfare. Standards of conduct will assist everyone in avoiding activity that is or could be detrimental to the welfare of the Company and/or its employees.

The following are examples of conduct that is prohibited and will not be tolerated by the Company. Violation of these rules will lead to disciplinary action, up to and including termination. This list of prohibited conduct is illustrative only. Other types of conduct detrimental to security, personal safety, employee welfare and the Company's interests also may lead to disciplinary action, up to and including termination. Violation of any rule or standard set forth in this manual may lead to discipline.

1. Job Duties, Assignments, Performance and Personal Conduct

- 1.1. Inability to perform assigned duties due to failure to meet job qualifications; for example, unsatisfactory work quality or quantity.
- 1.2. Incompetence or inefficiency in the performance of the duties of the position.
- 1.3. Refusing to follow instructions or Company procedures and failing to do your assigned work.
- 1.4. Failure to observe working schedules, including taking excessive or unscheduled rest breaks or other abuses of break and lunch privileges.
- 1.5. Violation of any safety, health, security or other Company policy, rule, or procedure.
- 1.6. Carelessness or negligence resulting in damage, waste, loss or inferior work.
- 1.7. Employees will not be discourteous, rude or disrespectful to a customer, vendor, co-worker, or other individuals doing business with the Company, or any member of the public while in the course and scope of Company business.
- 1.8. Insubordination, including but not limited to the use of abusive or threatening language or gestures toward a supervisor or member of management, failure or refusal to obey lawful orders or instructions of a supervisor or member of management.
- 1.9. Excessive and/or unexcused absenteeism and/or tardiness including failure to notify your supervisor at least one (1) hour before your starting time that you will be absent or tardy.
- 1.10. Sleeping, loafing, or wasting time during working hours.

- 1.11. Falsifying personnel records or other Company records. This includes falsifying your employment application, making false oral or written statements, or omitting information from oral or written statements.
- 1.12. Conviction of a felony or conviction of any misdemeanor involving moral turpitude or conviction of any crime, which renders the employee unsuitable for employee's position.
- 1.13. Dishonesty or committing a fraudulent act or a breach of trust in any circumstances.
- 1.14. Violating conflict of interest rules or disclosing or using confidential proprietary information, such as the Company's trade secrets, without authorization.

2. Company Premises, Work Areas and Work Hours

- 2.1 Leaving the assigned workplace without notifying your supervisor or leaving early or returning late to work following lunch or break periods.
- 2.2 Working overtime without authorization or refusing to work assigned overtime.
- 2.3 Failure to keep work areas clean.
- 2.4 Bringing food or drinks, including soda, into work areas.
- 2.5 Bringing unauthorized persons, non-employees, or dependents onto Company property.
- 2.6 Unauthorized use of cellular telephones during working hours.
- 2.7 Using cellular telephones, pagers, PDAs, or remote wireless access while driving during working hours or in a Company vehicle.
- 2.8 Willful delays in responding to calls or assignments.
- 2.9 Carrying firearms or any other dangerous weapons on Company premises at any time or while conducting Company business.
- 2.10 Engaging in criminal conduct whether or not related to job performance, or being convicted of a crime that indicates unfitness for the job or raises a threat to the safety or well-being of the Company, its employees, customers, or property.
- 2.11 Working for another employer or entity while on a leave of absence from the Company, without prior written notice and agreement by the Company.
- 2.12 Failing to obtain permission to leave work for any reason during normal working hours.
- 2.13 Failing to notify a supervisor when unable to report to work.
- 2.14 Revocation of or failure to renew required certifications or licensing.
- 2.15 Immoral or unethical conduct while on duty.
- 2.16 Committing of or involvement in any act of unlawful harassment of another individual.
- 2.17 Speeding, failing to operate a vehicle in a safe manner, or otherwise driving in an unsafe fashion in any parking area, on the Company's premises, or while driving on Company business.
- 2.18 Possession of weapons or firearms on Company premises or in Company vehicles.

- 2.19 Betting, wagering, gambling or the solicitation of any bet or wager on Company property.
- 2.20 Smoking inside a Company building, in a hazardous area, in an area marked no smoking or any place the employee has been told not to smoke.
- 2.21 Attempting to physically intimidate, provoke a fight, or fight with an employee, client, vendor or independent contractor or other person at any time whether on or off Company property.
- 2.22 Interfering with the work performance of others or participating in horseplay or practical jokes on Company time or Company premises.
- 2.23 Violating the Company's rules against discrimination and harassment; using vulgarity, sexually suggestive comments or gestures, or abusive language at any time during working hours or on Company premises;
- 2.24 Solicitation of money or sale of merchandise on Company property during working hours. Working hours do not include lunchtime and hours before and after work.

3. Company Property, Equipment and Records

- 3.1 Taking Company property and/or inventory from the premises without permission.
- 3.2 Unauthorized use of Company equipment, time, materials, or facilities.
- 3.3 Misuse of Company property or intentional or careless damage to Company property or equipment including marring, defacing or otherwise abusing the facilities.
- 3.4 Taking, copying, disclosing or otherwise misusing Company information, including employment and business records.
- 3.5 Destruction of Company property, or property of another employee or guest of the Company or careless handling of Company property.
- 3.6 Violation of Company rules regarding operation of vehicles or violation of public laws while operating Company vehicles.
- 3.7 Failure to wear a seatbelt in Company vehicles or mobile equipment, where seatbelts are provided.
- 3.8 Making personal telephone calls without prior approval of management. Using the Company telephones for long-distance calls without charging the call to a personal phone card.
- 3.9 Theft from the Company or fellow employees including removing or “borrowing” Company property without prior authorization. Removing any Company owned property from the premises without prior approval of immediate supervisor or other management personnel.
- 3.10 Recording the work time of another employee or allowing any other employee to record your work time or allowing falsification of any Company record.
- 3.11 Using the postage meter for personal letters or packages.

4. Health, Safety, and Drug Use

- 4.1 Failure to immediately report work-related accidents to management.

- 4.2 Horseplay, running, jumping, fighting or deliberately injuring another employee. Causing accidents or injuries in which the cause is found to be attributable to employee negligence, inattentiveness, horseplay, or unlawful conduct.
- 4.3 Violation of the Company's drug and alcohol policy which includes possessing, distributing, selling, transferring, using or being impaired or under the influence of alcohol, an illegal drug, or a controlled substance during work time.
- 4.4 Refusal to see a physician selected by the Company subsequent to incurring a work-related injury or illness. Exceptions may be made for emergencies and when an employee has satisfied all conditions necessary to pre-designate a personal physician to be seen in place of the Company designated provider.
- 4.5 Failure to provide a physician's certificate with respect to absences or medical conditions when requested to do so.
- 4.6 Failure to observe safety rules and regulations.

E. Cell Phone and Camera Use Policy

Cell Phone Use:

Personal cellular telephones are permitted to be carried while on duty, but must be placed in silent mode, and allow voice mail to answer the call. Messages may be checked on "down time" when not actively involved in a call or about to perform or in the process of performing work duties. You may use your personal cell phone for:

- Business purposes like mapping or obtaining call information (not while driving).
- Receiving company or call related text messages, in lieu of a pager.

Personnel are prohibited from using cell phones for personal reasons between the dispatch of a call and the time that the patient is safely turned over at the destination, except for legitimate Company business related to the incident, such as contacting Field Supervisor, or performing a call-in to a Base Hospital. Under no circumstances shall this be done while driving. This is to prevent any distractions while engaged in patient care, and to avoid any possible interference with equipment that may occur based upon cellular activity.

Cellular phones may be used for personal purposes only on a limited basis. Personal cell phone use must never be cause for delay in responding to a patient or beginning an assignment and must never be in violation of the law.

While attending to a patient or while operating a Company vehicle, personnel shall not, under any circumstances, respond to (or make) a personal cellular telephone call, send text messages, or check electronic mail. Use of your personal cell phone for business purposes is solely your voluntary choice and is not required or requested by the company. Generally speaking, our personal cell phones and similar devices must be put away to minimize distractions while we work.

Camera Use:

Employees are only permitted to use cameras or other picture taking or image generating devices authorized by the Company while on a call. The authorized devices are intended to be used for medical

purposes only, such as to document the position of vehicles and patients at the scene of an accident or to document mechanism of injury for the purposes of training within the Company and the Company only.

1. All on-scene photography shall be for clinical and/or documentation purposes only and conducted only at the direction of the Company personnel in charge at the scene, or by medical control.
2. Any photographs containing individually identifiable information are covered by the HIPAA Privacy Rule and must be protected in the same manner as patient care reports and other such documentation.
3. Any on-scene images and any other images taken by an employee in the course and scope of their employment are solely the property of the Company and not the property of the individual staff member. This includes any image inadvertently taken with a staff member's personally owned cell phone camera or other digital imaging device.
4. No images taken by an employee in the course and scope of their employment may be used, printed, copied, scanned, e-mailed, posted, shared or distributed in any manner without the express, written approval of the Company's Privacy Officer.
 - a. Example: This prohibition includes posting photos on social media sites such as Facebook or Instagram, or on other public safety agency web sites, or e-mailing images to friends, colleagues or others in the EMS industry.

F. Off-Duty Conduct

While the Company does not seek to interfere with the off-duty and personal conduct of its employees, certain types of off-duty conduct may interfere with the Company's legitimate business interests. For this reason, employees are expected to conduct their personal affairs in a manner that does not adversely affect the Company's or their own integrity, reputation, or credibility. Illegal or immoral off-duty conduct by an employee that adversely affects the Company's legitimate business interests or the employee's ability to perform his/her job will not be tolerated.

While employed by the Company, employees are expected to devote their energies to their jobs with the Company. The following types of employment elsewhere are strictly prohibited:

- Additional employment that conflicts with an employee's work schedule, duties, and responsibilities at the Company.
- Additional employment that creates a conflict of interest or is incompatible with the employee's position with the Company.
- Additional employment that impairs or has a detrimental effect on the employee's work performance with the Company.
- Additional employment that requires the employee to conduct work or related activities on Company property during the employer's working hours or using Company facilities and/or equipment.
- Additional employment that directly or indirectly competes with the business or interests of the Company.

Employees who wish to engage in additional employment that may create a real or apparent conflict of interest must submit a written request to the Company explaining the details of the additional

employment. If the additional employment is authorized, the Company assumes no responsibility for it. The Company shall not provide Workers' Compensation coverage or any other benefit for injuries occurring from or arising out of additional employment. Authorization to engage in additional employment can be revoked at any time.

This statement of prohibited conduct does not alter the Company's policy of employment at-will. Whether or not you violate any of the rules listed above, either you or the Company may terminate the employment relationship at any time for any or no reason, with or without cause or notice.

G. Dress Code

The Company wishes to maintain a professional atmosphere in order to welcome our customers, vendors and other visitors into our business. For this reason, we have adopted a Business Casual dress code. You are expected to dress and groom in accordance with accepted social and business standards, particularly if your job involves dealing with customers or visitors in person.

Administrative employees are to adhere to the following guidelines for appropriate business casual dress:

Acceptable attire: Slacks, khakis, jeans, skirts or dresses, shirts with collars, sports shirts, blouses, turtlenecks, sweaters, loafers, tennis shoes or sandals.

Unacceptable attire: Sweatpants, sweatshirts, workout attire (including sports jerseys, bicycle shorts, and yoga pants), cutoffs or shorts, halter or tank tops, dresses or skirts that are excessively short; sheer clothing or clothing that is revealing, distracting, or provocative. Torn or tattered clothes.

Field employees are required to meet special dress, grooming, and hygiene standards such as wearing uniforms or protective clothing, due to the nature of their job. Field employees should refer to the Standard Operating Procedures for specific details.

Uniforms will be maintained neat, clean, unfaded and in good repair. Field employees will remain in uniform at all times while on duty, including approved footwear, except during sleep, exercise, or while performing maintenance duties that are likely to soil or damage the uniform. All approved uniform tops will be worn over a white or navy blue, crew neck T-shirt or turtleneck shirt. Long sleeves are acceptable, if worn under a long sleeve uniform shirt. All uniform shirts will be worn "tucked in." Uniform pants will be worn "un-bloused" with footwear.

Employees will maintain extra uniforms while on duty in case a change is necessary during the shift. Uniform items not included in this policy are not authorized for use, except with the approval of the General Manager. Company patches and logo items are available for purchase through management. Some uniform stores may stock Company and CCEMSA patches onsite; check with the vendor.

Uniform Reimbursement

Full-time field employees will be provided a maximum uniform reimbursement of \$600.00 annually, split in allotments of a maximum of \$300.00 each six months (January – June and July – December). Allotments may be carried over within a calendar year with management approval. Allotments will not be carried over into another calendar year. Part-time field employees will be provided a maximum uniform reimbursement of \$200 annually (January – December), after six months of employment.

Authorized uniform items may be purchased from any source. **NOTE: Most uniform stores WILL NOT alter or embroider purchases made from outside sources.** It is the employee's responsibility to confirm this BEFORE making purchases from an outside source.

Employees shall make payment for items and submit receipts for reimbursement for all uniform purchases. **DO NOT REQUEST THE VENDOR TO BILL SEQUOIA SAFETY COUNCIL.**

Reimbursement will be provided to the employee within thirty days of submitting a receipt. Management will provide current uniform allotment balance to the employee upon request.

Grooming Guidelines

No matter your position with the organization, a well-groomed, clean appearance is also expected in order to maintain a professional and efficient workplace. Consider the following grooming and hygiene guidelines when determining what is appropriate for work:

- Clean, trimmed and properly groomed hair (including facial hair for males).
- Makeup and jewelry should be tasteful and not excessive.
- Avoid excessive use of perfume, cologne, or other scented products.
- Tattoos or jewelry that could be construed as offensive or contribute to a hostile work environment must be covered. In addition, any adornment that would diminish your role or effectiveness with the Company is not permitted.
- The Company will consider appropriate accommodation for religious garments and grooming.

All employees should use their own common sense regarding what is acceptable work attire and appearance and if in doubt, should consult with the Field Supervisor or Office Manager, or the General Manager. If at any time your supervisor feels your attire/appearance is not appropriate for work, you may be asked to leave your workplace until you are properly attired. You will not be paid for the time you are off-the-job for this purpose. Examples of unacceptable appearance and grooming include:

- Unacceptable/unprofessional piercings, including, but not limited to, jewelry in the nose, tongue, eyebrows, lips, cheeks, or other parts of the body exposed to public view. If ear gauges are worn, they must be flesh colored.
- Fingernails longer than $\frac{3}{8}$ inch or with offensive colors or offensive "nail art".
- Extreme hairstyles, including unnatural hair colors.
- Clothing with offensive graphics, words, sayings, or quotes.
- Dirty or damaged clothing (e.g., holes, tears, stains).
- Clothing through which a person's underwear can be seen.
- Clothing which allows a person's midriff/abdomen to be seen.
- Immodest clothing which, in the sole discretion of management, inappropriately accentuates or reveals an employee's physical attributes.

Any employee that requires reasonable accommodation for reasons based on religion, pregnancy, disability, or other grounds protected by federal, state or local laws should contact the Field Supervisor or Office Manager, or the General Manager. The Company grants reasonable accommodation unless the accommodation would cause an undue hardship.

H. Personal Protective Equipment

Personal protective equipment includes all clothing and accessories designed to protect employees from workplace hazards. All personal protective equipment provided must be worn in the circumstances for which it is issued and when you are instructed to do so by management.

Under no circumstances are employees who work with heavy equipment, machinery or tools to wear loose fitting clothing, shorts or neckties. Employees must wear pants and a long-sleeved shirt with the sleeves rolled down and buttoned at the wrists or with the sleeves rolled up above the elbows. Rings, bracelets, wristwatches, and neck jewelry must not be worn if it increases the risk of injury from coming in contact with moving parts of equipment, machinery or tools.

Safety goggles, glasses, gloves, steel-toed shoes, or other safety equipment you are directed to wear must be worn at all times while performing the duties for which the safety equipment is required. Violation of any safety rule or standard set forth in this manual may lead to discipline, up to and including termination.

Field employees should refer to the Company's Injury and Illness Prevention Plan (IIPP) for specific details regarding personal protective equipment related to patient care

I. Background Checks and Investigations

The Company recognizes the importance of maintaining a safe and productive workplace with honest, trustworthy, qualified, reliable, and non-violent employees who do not present a risk of serious harm to their co-employees or others. For the benefit of all employees and the Company in furthering these interests and enforcing the Company's policies, Sequoia Safety Council shall perform a background check on each candidate that has successfully passed the written exam, oral interview and medical/physical exam testing processes. Any candidate that refuses to participate in a background investigation will be deemed unqualified and removed from consideration for employment. Any candidate that is found to be unsuitable for employment due to discoveries during a background investigation will also be considered unsuitable for employment.

These background checks and investigations may be performed by the Company in whole or in part, at the Company's discretion. Before any background check is performed, proper written authorization, if required by law, will be obtained.

The Company will comply with state and federal law regarding notice and the provision to the employee of a copy of any report received from a consumer reporting agency.

J. Medical Examinations

The Sequoia Safety Council will pay for medical examinations required by the Company. Medical examinations will be guided by the following:

- **Post Offer Employment:** All qualified final candidates for employment are required to undergo a post-offer employment medical examination at the Company's expense.
- **Post-Employment:** The Company may require medical examinations at any time in the event

management is unable to otherwise determine an employee's continuing fitness for a job. Such examinations shall be at the Company's expense.

- **Selection of Examiner:** In all such cases, the Company will determine and select an examiner of professional competence.

K. Outside Employment Policy and Off-Duty Conduct

While the Company does not seek to interfere with the off-duty and personal conduct of its employees, certain types of off-duty conduct may interfere with the Company's legitimate business interests. For this reason, you should be aware of the following policies.

While employed by the Company you are expected to devote your energy to your job with the Company. For this reason, second jobs are strongly discouraged. Certain types of outside employment are strictly prohibited:

- Employment which conflicts with your work schedule, duties, and responsibilities.
- Employment which creates a conflict of interest or is incompatible with your employment with the Company.
- Employment which impairs or has a detrimental effect on your work performance with the Company.
- Employment which requires you to conduct work or related activities on Company property, during Company working hours or using Company facilities and/or equipment.
- Employment which directly or indirectly competes with the business or the interests of the Company.

For the purposes of this policy, self-employment is considered outside employment.

If you wish to engage in outside employment, which may create a conflict of interest, you must submit a written request to the General Manager, explaining the details of the outside employment. If the General Manager authorizes your request, the Company shall in no way assume any responsibility for your outside employment. Specifically, the Company shall not provide workers' compensation coverage or any other benefit for injuries occurring from or arising out of such outside employment. Authorization to engage in outside employment can be revoked at any time.

L. General Confidentiality Procedures

Non-public information about the Company, its policies, employees, suppliers and vendors are to be kept confidential and divulged only to individuals within the Company with a need to receive, and authorized to receive, such information. If in doubt as to whether information should be divulged, decide in favor of not divulging information and discuss the situation with your supervisor.

Company stationery and letterhead may be used only for business purposes. In addition, all records and files maintained by the Company are confidential and remain the property of the Company. Records, files, and other information are not to be disclosed to any outside party without the express permission of the Field Supervisor or Office Manager, or the General Manager. Confidential information includes but is in no way limited to non-public financial records, medical records, others' personnel and payroll records (regarding current or past employees), information regarding billings, client records, information regarding vendors or suppliers, or any documents or information regarding

Company operations, procedures or practices. Such confidential information may not be removed from the Company premises without express authorization from the General Manager. Confidential information does not include an employee's disclosure of the amount of his or her wages or his or her working conditions but does include information regarding the amount of wages earned by other employees, unless specifically allowed by law.

Confidential information obtained during or through employment with the Company may not be used by any employee for the purpose of furthering current or future outside employment or for obtaining personal gain or profit. The Company reserves the right to avail itself of all legal or equitable remedies to prevent impermissible use of confidential information or to recover damages incurred as a result of such impermissible use of confidential information.

No confidential information is to be given by any employee over the telephone to any person without prior approval. If a call is suspect, it should be routed or reported immediately to the Field Supervisor or Office Manager, or the General Manager. Again, the Field Supervisor or Office Manager, or the General Manager, should be notified immediately. Unauthorized disclosure of any information shall result in disciplinary action, up to and including termination.

M. Trade Secrets and Unfair Competition

While employed by the Company, employees will have access to and become acquainted with information that is of a confidential, proprietary, or secret nature, which is or may be applicable to the present or future business of the Company including the business of any customer of the Company. For example, trade secret information includes, but is not limited to, procedures, customer lists, confidential information, records regarding customers, information regarding the Company's business methods, and other information concerning customers and/or vendors.

Employees are prohibited from disclosing any of the above-mentioned trade secrets, directly or indirectly. In addition, employees must not use this information in any way, either during the term of their employment or at any time thereafter, except as required in the course of employment with the Company.

California law prohibits unfair competition, which includes misuse of confidential information obtained by employees from their employers. Some of the acts of employees which would be deemed to be unfair competition include, but are not limited to:

- solicitation of present customers by a former employee using confidential information or confidential customer lists (trade secrets),
- use of confidential information in the solicitation of current employees by former employees,
- use of confidential information obtained by a former employee to compete with the employer,
- false representations and trade libel,
- misappropriation of trade secrets,
- failing to inform the Company of opportunities the employee learned about during the course of their employment,
- using customer lists obtained while an employee to go into competition with the employer,

- going to work for a competitor and providing that competitor with confidential Company information, and
- gathering information while an employee that is confidential in nature to use in a competing business.

All of the foregoing conduct would constitute unfair competition and be in violation of the law and employees should recognize that the Company will take all appropriate steps to protect its trade secrets, confidential information and protect its rights against unfair competition by current or former employees. Employees and applicants may be required to sign a separate agreement relating to the confidentiality of trade secrets and promising not to engage in unfair competition.

N. Company Property

As an employee of the Company, you may be placed in charge of certain articles of Company property. You are responsible for the care and safekeeping of Company property. The Company recognizes in the normal course of performing your duties, some of these articles of Company property may be lost or damaged in circumstances where the fault is not yours. However, in circumstances where the loss or damage is due to dishonesty, willful acts, or the gross negligence of the employee, the Company may be entitled to recover the amount of loss through a wage deduction or by seeking reimbursement.

O. Right to Search Company Property, Employees, Conduct Surveillance, and Proper Use of Company Equipment

Desks, storage areas, work areas, lockers, file cabinets, credenzas, computer systems, office and cellular telephones, modems, facsimile machines, duplicating machines and Company vehicles are the Company's property and must be maintained according to this policy. All such areas and items must be kept clean and are to be used only for work purposes, except as provided in this policy. The Company reserves the right at all times, and without prior notice, to inspect and search any and all the Company property for the purpose of determining whether this policy or any other Company policy has been violated or when such inspection and investigation is necessary for purposes of promoting safety in the workplace or compliance with state and federal laws. Such inspections may be conducted during or after business hours and in the presence or absence of the employee.

In addition, in order to ensure the safety and security of employees and customers, and to protect the Company's legitimate business interests, the Company reserves the right to question, inspect, or search any employee or other individual entering onto or leaving the Company's premises. The inspection or search may include any packages or items that the individual may be carrying, including briefcases, handbags, knapsacks, shopping bags, clothing, pockets of jackets and similar hiding places. These items are subject to inspection and search at any time, with or without prior notice. The Company also may require employees while on the job or on the Company's premises to agree to reasonable inspection of their personal property and/or persons. The individual may be requested to self-inspect his or her personal property or person by displaying the contents of any packages and/or turning out his or her pockets, et cetera, in the presence of a representative of the Company, typically a management employee of the same gender. The Company will not tolerate any employee's refusal to submit to a search. Refusal to submit to a search will be grounds for disciplinary action, up to and including termination.

The Company's technical resources, such as its computer system, voicemail system, and E-mail, are provided for use in the pursuit of the Company's business and are to be reviewed, monitored, and used

only in that pursuit, except as provided in this policy. As a result, computer data, voicemail messages, telephone calls, texts, and E-mail transmissions are readily available to numerous persons. If, during the course of your employment, you perform or transmit work on the Company's computer systems or other technical resources, your work may be subject to the investigation, search, and review of others in accordance with this policy. In addition, any electronically stored communications that you either send to or receive from others may be retrieved and reviewed by the Company.

Employees have no right of privacy as to any information or file maintained in or on Company property (including cellular telephones, laptops, pagers, tablets or other electronic devices, etc.) or transmitted on Company time or stored through the Company's computer systems, voicemail, E-mail, text messages or other technical resources. All bills and other documentation related to the use of the Company's equipment or property are the property of the Company and may be reviewed and used for purposes that the Company considers appropriate.

Although it is a common practice to refer to a Company computer, cell phone, pager, or other electronic device as a particular employee's device, all company-provided or company-paid-for devices, subscriptions and electronic applications, are owned by the Company and employees have no right of privacy as to any information or file maintained in or on said device or application. All files and other information on the Company property or transmitted or stored through the Company's computer systems, voicemail, E-mail, or other technical resources remain Company property at all times. All documentation related to the use of the Company equipment or property is the property of the Company and may be reviewed and used for purposes that the Company considers appropriate. Similarly, although you may be provided a password, the Company retains the right to review the entire contents of your computer at any time, as well as your voicemail or E-mail. Do not share your password with other employees. Passwords are used to track computer use. Failure to follow this policy may lead to disciplinary action, up to and including termination.

Employees may access only files, electronic applications, or programs, whether computerized or not, that they have permission to use. Computer software is protected from unauthorized copying and use by federal and state law; unauthorized copying or use of computer software exposes both the Company and the individual employee to substantial fines and/or imprisonment. Therefore, employees may not load personal software or electronic applications onto the Company's computer system, may not load any computer software on a Company computer unless a license for the software has been purchased, and may not copy software from the Company for personal use. All employees must contact the Field Supervisor or Office Manager, or the General Manager to install any software or electronic application on the Company's computer system. Unauthorized review, duplication, dissemination, removal, installation, damage, or alteration of files, passwords, computer systems or programs, or other property of the Company, or improper use of information obtained by unauthorized means, may be grounds for disciplinary action, up to and including termination.

Messages stored and/or transmitted by voicemail, text, or E-mail must not contain content that may reasonably be considered offensive or disruptive to any employee. Offensive content would include, but not be limited to, sexual comments or images, racial slurs, gender-specific comments or any comments or images that would offend someone on the basis of his or her age, sexual orientation, religious or political beliefs, national origin, or disability. The Company recognizes that employees may receive unsolicited E-mail "spam," which may violate these rules. Such unsolicited E-mail should be immediately deleted.

P. Electronic Communications

Internet access has been provided to Company employees for the benefit of the Company and its customers. This access enables employees to connect to information and other resources around the world. All employees are required to maintain and enhance the Company's public image and to use the Internet in a productive manner. The following guidelines have been established for using the Internet and the Company's electronic mail system.

Employees accessing the Internet and/or the Company's own Intranet are representing the Company when doing so. Accordingly, all such communications should be for professional, business reasons and should not be for personal use. Each employee is responsible for ensuring that they use their Internet access privilege in an effective, ethical and lawful manner.

The Internet and/or the Company's Intranet should not be used on Company property for personal gain or advancement of individual views. Solicitation of non-Company business, or any use of the Internet for personal gain, is strictly prohibited. Use of the Internet must not disrupt the operation of the Company network or the networks of other users and must not interfere with an employee's productivity.

Copyrighted materials belonging to entities other than this Company may not be transmitted by employees on the Internet. Employees are not permitted to copy, transfer, rename, add, or delete information or programs belonging to other users unless given express permission to do so by the owner of such information or programs. Failure to observe copyright or license agreements may result in disciplinary action up to and including termination from the Company or legal action by the copyright owner.

The use of the electronic communication systems is reserved solely for the conduct of business of the Company. It is NOT intended to be used for personal business. Employees accessing the Internet, the Company's Intranet, or World Wide Web represent the Company when doing so. Accordingly, all such communications should be for professional, business reasons. Each employee is responsible for ensuring that he or she uses his or her Internet access privilege in an effective, responsible, ethical, and lawful manner. Employees should not use the Company's electronic communication systems to access social media including, but not limited to, Facebook, Twitter, Reddit, TikTok, or YouTube.

The Company's electronic communication systems shall not be used to send (upload) or receive (download) copyrighted materials, trade secrets, proprietary financial information, or other confidential materials without prior authorization. The Company purchases and licenses the use of various computer software and electronic applications for business purposes and does not own the copyright to this software or its related documentation. Unless authorized by the software developer, the Company does not have the right to reproduce such software for use on more than one computer. Employees may only use software on local area networks or on multiple machines according to the software license agreement. The Company prohibits the illegal duplication of software and its related documentation.

All electronic communications shall comply with the Equal Employment Opportunity, Unlawful Discrimination and Unlawful Harassment policies. In no circumstance are the Company's electronic communication systems to be used to create any offensive or disruptive messages, or any message that might constitute (or indicate the condoning or encouragement of) harassment, lewd, illicit or illegal activities. Among those which are considered offensive are any messages which contain sexual

implications, racial slurs, gender specific comments, or any other comment that offensively addresses someone's age, sexual orientation, religious or political beliefs, national origin or disability. The electronic communication systems may not be used to solicit for commercial ventures, religious or political causes, outside organizations, or other non-job-related solicitations. Employees learning of any misuse of the voicemail/e-mail/instant messaging systems, or violations of this policy shall notify the Field Supervisor or Office Manager, or the General Manager immediately.

Employees may access only messages, files or programs, whether computerized or not, that they have permission to enter. Exceeding authorized access to confidential information and unauthorized review, duplication, dissemination, removal, damage or alteration of files, passwords, computer systems, data bases or programs, voicemail messages or other property of the Company, or improper use of information obtained by unauthorized means, will be grounds for disciplinary action, up to and including termination and may result in criminal prosecution under state and federal law, including the Computer Fraud and Abuse Act.

The Company's E-mail and voicemail systems are available to assist in conducting the Company's business. These systems, including the equipment and the data stored in the system, are and remain at all times the property of the Company. As such, all messages created, sent, received or stored in the system are and remain the property of the Company. Therefore, should you send or receive "personal" messages, understand that the Company may review and copy any and all such messages. Messages should be limited to conducting the business of the Company. Voicemail and E-mail may not be used for conducting personal matters except in very limited circumstances and with the approval of your supervisor.

The Company reserves the right to retrieve and review any message composed, sent or received. Please note that even when a message is deleted or erased, it is still possible to recreate the message; therefore, ultimate privacy of messages cannot be ensured to anyone, and the Company reserves the right to review deleted messages. While voicemail and E-mail may accommodate the use of passwords for security, confidentiality cannot be guaranteed. Messages may be reviewed by someone other than the intended recipient. Furthermore, although you may be granted the use of a "password," it is not for the protection of your privacy. Rather the use of passwords is for the protection of the Company. Moreover, all passwords must be made known to the Company and the Company will at all times have the ability to review E-mail and voicemail messages regardless of an employee's use of a personal password.

Employees learning of any misuse of the voicemail or E-mail systems, or violations of this policy shall notify the Field Supervisor or Office Manager, or the General Manager immediately. As appropriate, the Company will investigate the matter. Employees found to have misused the Company's electronic resources may be subject to disciplinary action, up to and including termination.

Internet use, use of personal E-mail and/or voicemail which in the sole discretion of the Company is determined to be excessive, disruptive, or an inappropriate use of Company time and resources is prohibited and may lead to disciplinary action, up to and including termination.

Q. Operation of Vehicles

Only authorized persons may operate vehicles owned or leased by the Company. Unless prior approval has been granted by the General Manager, they are not to be used for personal business.

Similarly, they are not to be operated by family, friends, or persons other than the person to whom they are assigned unless prior approval has been granted by management.

Any employee who operates a vehicle as a part of his/her duties must hold a valid drivers' license and possess an acceptable driving record. Having a driving record that is unacceptable to the Company or the Company's insurance carrier, or failure to make prompt notification of a change in your driving record or of a drivers' license suspension or restriction may result in loss of driving privileges and/or disciplinary action, up to and including termination.

Vehicle operation in the course of your employment must display safe driving habits and not reflect exhibitions of speed or recklessness. Compliance with all local, state, and federal traffic laws is required.

In the event of collisions/accidents, whether or not property or vehicle damage, or personal injury is observed, management must be immediately notified, and a police report obtained. Employees found to be at fault in a collision/accident may be subject to disciplinary action, up to and including discharge depending upon the circumstances.

All persons are required to wear seat belts when operating or riding in a vehicle while on business for the Company.

Do not put any type of bumper sticker, poster, insignia, label, or other form of advertisement on any Company vehicles. Failure to follow this rule and those set forth above will lead to discipline up to and including termination.

R. Policy Regarding Cell Phone/Electronic Wireless Communications Device Use While Driving

Employees are prohibited from using cell phones or any type of electronic wireless communications device (pagers, texting devices, laptops, etc.) while driving on Company business and/or Company time (except in emergency situations when the use of a cell phone is necessary to contact law enforcement, an emergency health care provider, the fire department, etc.).

In the event an employee's job requires that the employee's cell phone or electronic wireless communications device be kept on while driving, the employee must use a hands-free device or safely pull off the road before using the cell phone to conduct Company business and must safely pull off the road before attempting to write, send or read any text-based communication. Except in emergency situations, under no circumstances should an employee make/take phone calls without using a hands-free device or use an electronic wireless communications device while operating a motor vehicle on Company business and/or Company time.

California law prohibits a driver of a motor vehicle from using a wireless telephone unless a hands-free device is used except in emergency situations (i.e., calling law enforcement, an emergency health care provider, the fire department, etc.) and prohibits a driver of a motor vehicle from using an electronic wireless communications device to write, send or read a text-based communication. Accordingly, violation of this policy regarding the use of cell phones and/or electronic wireless communications devices will also constitute a violation of California law.

S. Employee Property

Employees are urged not to bring valuables to work. If necessary to do so, all valuables should be kept in a secure location. The Company assumes no responsibility for the loss, theft or damage of employee personal property.

T. Visitors

Friends and relatives should be asked not to visit employees at work without prior approval from the Field Supervisor or Office Manager, or the General Manager of the Company. Unattended children are not allowed in the facility or on the premises at any time. For safety and insurance reasons, friends, relatives, and other visitors are not permitted in areas restricted to employees only, unless authorized by management.

U. Security

Security of Company facilities as well as the welfare of our employees requires that every individual be constantly alert to security risks. In this regard, please note the following:

- Immediately notify your supervisor of suspicious persons, or persons acting in a suspicious manner, in or around the facility.
- Do not disclose computer passwords or any other security access information to anyone who is not authorized to have that information.

V. Solicitation/Distribution of Literature

The Company has established rules applicable to all employees which govern solicitation or distribution of written material during working time and entry onto the premises and work areas. All employees are expected to comply strictly with these Company rules.

- No employee shall solicit or promote support for any cause or organization during his or her working time or during the working time of the employee or employees at whom such activity is directed.
- No employee shall distribute or circulate any written or printed material in work areas at any time, or during his or her working time or during the working time of the employee or employees at whom such activity is directed.
- Under no circumstances will non-employees be permitted to solicit or to distribute written material for any purpose on Company property.
- Off-duty employees are not permitted in areas not open to the public.

As used in this policy, “working time” includes all time for which an employee is paid and/or is scheduled to be performing services for the Company; it does not include break periods, meal periods, or periods in which an employee is not performing and is not scheduled to be performing services or work for the Company.

W. Bulletin Boards

Official Company bulletin boards are reserved for the exclusive use of the Company for posting work-related notices or notices which must be posted pursuant to local, state, and federal law. From time to time, special notices and information for employees will be posted by the Company on the bulletin boards. Please check the boards regularly for such notices. Employee postings are not permitted.

X. Housekeeping

All employees are expected to keep their work areas clean and organized. Common areas such as lunchrooms, locker rooms and restrooms should be kept clean by those using them. Please clean up after meals. Dispose of trash properly.

Y. Tobacco-Free Policy

The Company will provide a healthy, smoke-free environment for all individuals that work and receive services at the Company. No smoking (including E-cigarettes, vaping, or similar products) or use of tobacco products such as cigars, cigarettes, snuff, or similar goods prepared for smoking, chewing, dipping, or other such personal use is allowed in any Company vehicle or in any Company owned/occupied facility or in any area other than a “designated smoking area.” Company facilities encompass all those facilities operated by the Company and include property, buildings, private offices, and vehicles owned or leased by the Company. Individuals are allowed to possess, but not use, tobacco products in Company vehicles while on Company property or while on-duty. Employees will not use tobacco while in contact with clients regardless of location. Violation of the Company’s tobacco-free policy may result in disciplinary action, up to and including termination.

Z. Public Relations

Each of us has the obligation of promoting goodwill for the Company through our individual efforts to provide helpful assistance and prompt service to our customers and clients. We must keep in mind that the customer always comes first. It is the customer who pays our wages. Remember, while the customer is not always right, the customer is never wrong. People who make contact with the Company are to be treated courteously and given proper attention at all times. Inquiries, whether in person or by telephone, must be addressed promptly and professionally. Never regard a customer’s question or concerns as an interruption or an annoyance. A pleasant manner and helpful attitude are to be extended, whether in person, by telephone or by letter. Never argue with a customer. If a problem develops or if a customer remains dissatisfied, ask your supervisor to intervene. Never place a telephone call on hold for an extended period. Direct incoming calls to the appropriate person and make sure the call is received.

All work performed, including correspondence and documents, whether to customers, visitors, vendors, or others must be neatly prepared and error-free. Attention to accuracy and detail in all paperwork demonstrates your commitment to those with whom we do business. Even simple errors cause unnecessary inconvenience and irritation. Furthermore, the time required to correct them is wasteful and expensive.

Any and all contact from or with any media representative will be handled by the General Manager of the Company. Employees must not make any statements to media representatives concerning the Company or any of its employees concerning Company business matters.

AA. Social Media Policy

1. Statement of Policy

At the Company, we understand that social media can be a fun and entertaining way to share one's life and opinions with family, friends, and co-workers around the world. The Company respects the right of employees to use them as a medium of self-expression. However, use of social media also presents certain risks and carries with it certain responsibilities. To assist employees in

making responsible decisions about using social media, the Company has established these guidelines for appropriate social media. This policy applies to all employees who work for the Company. All employees need to follow these requirements when posting on social media.

2. Guidelines

In the rapidly expanding world of electronic communication, social media can mean many things. Social media includes all means of communicating or posting information or content of any sort on the Internet, including to an employee's own or someone else's web log or blog, journal or diary, personal website, social networking or affinity web site, web bulletin board or a chat room, whether or not associated or affiliated with the Company, as well as any other form of electronic communication.

The same principles and guidelines found in the Company's policies apply to employees' activities online. Ultimately, employees are solely responsible for what they post online. Before creating online content, employees should consider some of the risks and rewards that are involved. Employee conduct that adversely affects job performance, the performance of fellow employees or otherwise adversely affects customers, suppliers, people who work on behalf of the Company or the Company's legitimate business interests may result in disciplinary action up to and including termination.

a. Know and follow the rules

Employees should carefully read these guidelines and the Company's employment policies that address social media, including the Company Property, General Confidentiality Procedures, Personal Information Policy, the Electronic Communications Policy, the Equal Employment Opportunity Policy, and the Policy against Harassment and Discrimination, and ensure their postings are consistent with these policies. Inappropriate postings that may include discriminatory remarks, harassment, and threats of violence or similar inappropriate or unlawful conduct will not be tolerated and may subject employees to disciplinary action up to and including termination. Employees should not have an expectation of privacy with respect to information or communications that they post using the Company's computers or networks. The Company has the right to monitor all activity on its equipment and systems.

b. Exercise best judgment and discretion

Employees should always be fair to fellow employees and people who work on behalf of the Company. Also, employees should keep in mind that they are more likely to resolve work-related complaints not by posting complaints to a social media outlet, but instead by speaking directly with co-workers or by utilizing any of the Company's procedures for raising concerns or complaints (i.e., the Company's Open Door Policy or Procedure for Reporting Employee Complaints, or for concerns involving suspected harassment, discrimination or retaliation, by using the complaint reporting procedure described in the Policy Against Harassment and Discrimination). Nevertheless, if employees decide to post complaints or criticism, they should avoid using statements, photographs, video or audio that reasonably could be viewed as malicious, obscene, threatening, or intimidating, that might constitute harassment or bullying. Examples of such conduct might include offensive posts meant to intentionally harm someone's reputation or posts that could contribute to a hostile work environment on the basis of race, sex, disability, religion or any other status protected by law or Company policy.

Employees are personally responsible for what they post, and the Company will not assume any liability for those statements.

c. **Be honest, accurate and transparent**

Employees should be sure that they will always be honest and accurate when posting information or news, and if they make a mistake, they should be open about it and correct it quickly. This includes being open about any previous posts they have altered. The Internet archives almost everything; therefore, even removed or deleted postings can be searched. Employees should never post any information or rumors that they know to be maliciously false about the Company, fellow employees or people working on behalf of the Company. When using social media, employees should comply with the site's terms of service, acceptable use policy and any other posted guidelines.

d. **Post only appropriate and respectful content**

- Employees must maintain the confidentiality of the Company's non-public information. Such information may include information regarding unreleased financial data, potential acquisitions, internal analyses, pricing, etc., and other information pertaining to the Company's processes. Employees are prohibited from posting internal reports, memorandums, policies, procedures, work product or attorney-client privileged communications, or other internal Company-related confidential communications.
- Employees should not create a link from their blog, website, or other social networking site to the Company's website without identifying themselves as a Company employee. In addition, they must use their best judgment and exercise discretion when linking to people on social media sites. Co-workers and members of the public may see employee connections and make judgments about them or their work.
- Employees must not violate copyright, trade secret, fair use, privacy, libel and defamation, federal securities and financial disclosure laws.
- Employees should express only their personal opinions. They should never represent themselves as a spokesperson for the Company. Employees are not authorized to speak on behalf of the Company unless given specific prior written approval from the Company. If the Company is a subject of the content employees are creating, employees should be clear and open about the fact that they are an employee and make it clear that their views do not represent those of the Company, fellow employees or people working on behalf of the Company. If employees do publish a blog or post online related to the work they do or subjects associated with the Company, they should make it clear that they are not speaking on behalf of the Company. It is best to include a disclaimer such as "The postings on this site are my own and do not necessarily reflect the views of the Company." Employees may not promote any of the Company's products or services without fully disclosing their relationship with the Company.
- Employees should respect others in the online community. They should not use ethnic or racial slurs, or obscenity, and avoid personal attacks or threats.
- Employees should strive to be interesting and constructive. As a content provider, whether publishing personal information or information about the Company, they should always add value by being thoughtful and relevant.

- Employees who travel internationally should be careful to avoid making online comments that are openly critical or hostile of the countries to which they plan future travel (including the countries' governments, ruling parties, officials, and religious values) as some governments have criminal penalties, including imprisonment, for such online statements.

e. **Using social media at work**

Employees should refrain from using social media while on work time unless it is work-related as authorized by their supervisor or consistent with the Company's policies. Also, employees may not use the Company's email address to register on social networks, blogs or other online tools utilized for personal use.

f. **Retaliation is prohibited**

The Company prohibits taking negative action against any employee for reporting a possible deviation from this policy or for cooperating in an investigation. Any employee who retaliates against another employee for reporting a possible deviation from this policy or for cooperating in an investigation will be subject to disciplinary action, up to and including termination. Nothing in this policy is intended to discourage or prohibit Company employees from discussing wages or terms and conditions of employment with other employees or third parties. This policy will be administered in compliance with applicable laws and regulations.

g. **Media contact**

Employees who are contacted by the media should not speak on the Company's behalf without contacting the General Manager. All media inquiries should be directed to the General Manager.

h. **Questions regarding this Social Media Policy**

Employees with any questions or who need further guidance should contact the Field Supervisor or Office Manager, or the General Manager.

BB. Business Conduct/Conflicts of Interests

No employee may engage in any conduct which creates or could potentially create a conflict of interest between the employee's personal interests and the interests of the Company. For example, no employee may accept a gift or gratuity valued in excess of \$25.00 from any vendor, supplier, or other person who is doing business with the Company or who is attempting to establish a business relationship with the Company without clearing the matter with the Field Supervisor or Office Manager, or the General Manager. In the case of expenses paid by such persons for business meals or trips, please discuss this with the Field Supervisor or Office Manager, or the General Manager in advance. In no event may a gift, gratuity or expense payment influence a business decision, transaction or service.

Similarly, no employee may continue to use the services of a vendor if the employee engages in a dating relationship with the vendor or an employee of the vendor. In such circumstances, the Company employee must disclose the dating relationship and thereafter use other vendors from the approved list.

VI. EMPLOYEE BENEFITS

A. Holidays

Due to the emergency nature of our business, most holidays are considered normal workdays. Since there is special significance of some holidays, additional pay at their straight time rate will be given to full-time and part-time (per diem) employees that work shifts that start on a Company holiday. All other employees will either receive a day off without pay or, if required to work, will receive their customary pay. The Company observes the following holidays:

- New Year's Day
- President's Day (third Monday in February)
- Memorial Day (fourth Monday in May)
- Independence Day (July 4th)
- Labor Day (first Monday in September)
- Veteran's Day (November 11)
- Thanksgiving Day (fourth Thursday in November)
- Day after Thanksgiving Day
- Christmas Eve (December 24)
- Christmas Day (December 25)

When a holiday falls on a Saturday or Sunday, it is usually observed on the preceding Friday or the following Monday. However, the Company may recognize the holiday on another day or grant individual days depending upon whether the Company will be closing. Additional holidays may be granted at the sole discretion of management. Holiday observance will be announced in advance.

As stated in the section defining introductory employees, non-exempt employees are not entitled to holiday pay until their introductory period is completed. Exempt employees will receive a full week's salary during weeks a holiday occurs regardless of whether the employee has completed the introductory period.

To be eligible for holiday pay, you must be regularly scheduled to work on the day on which the holiday falls and non-exempt employees must work the scheduled working day immediately preceding and the scheduled working day immediately following the holiday, unless an absence on either day is approved in advance by your supervisor or is covered by the use of paid sick leave. Employees absent due to workers' compensation leave, state disability leave, pregnancy leave, personal leave or other leaves of absence are not eligible.

Holiday pay for administrative employees is paid up to eight hours of regular pay at the employee's normal rate depending on the number of hours for which the employee is normally scheduled to work. For example, an administrative employee who is regularly scheduled for 7.0 hours of work will receive 7.0 hours of holiday pay.

Non-exempt field employees working a shift that starts on a Company holiday, are paid additional straight time, for up to 50% of hours worked. Additional pay, as follows, will be given to full-time

and part-time field employees who work at least 12 hours on the approved holiday and complete their entire shift:

1. Worked Scheduled 12-hour shift = 6 hours additional pay at straight time rate.
2. Worked Scheduled 24-hour shift = 12 hours additional pay at straight time rate.

Sometimes, not all employees may be off work on the day traditionally celebrated because of the staffing needs of the Company. Should this occur, the Company's customary practice will be to rotate which employees take the traditional day off. For Administrative Employees, if you are required to work on a designated holiday, you will be paid for all hours worked and receive an alternate day off with pay as scheduled with your supervisor or you may receive holiday pay in lieu of time off which will be paid during the pay period in which the holiday occurred.

Holiday pay is not counted for the purpose of calculating an employee's overtime hours of work or overtime premiums.

B. Vacations

Full-time employees accrue paid vacation time based upon their anniversary date (date of hire). Please review the appropriate schedule, based on your position in the Company:

<u>ADMINISTRATIVE EMPLOYEES</u> <i>Length of Employment</i>	<i>Maximum Amount of Annual Vacation Accrual</i> <i>(for an employee working 40 hours/week)</i>	<i>Accrual Rate</i>
Start of employment through end of third year/ thirty-sixth month:	80 hours	0.03846/straight time hour worked
Start of 4 th year/thirty-seventh month through end of 14 th year/one hundred sixty-eighth month:	120 hours	0.05769/straight time hour worked
Start of 15 th year/one hundred sixty-ninth month and thereafter:	160 hours	0.07692/straight time hour worked

Only full-time administrative employees are entitled to vacation benefits. Introductory, temporary, part-time and on-call administrative employees do not accrue paid vacation time.

In instances where an administrative employee's accrual rate changes in the middle of a pay period, the new accrual rate will not go into effect until the beginning of the next complete pay period worked by the employee.

Introductory, temporary, and part-time administrative employees do not accrue vacation. A year of service is defined as twelve consecutive months of employment with the Company. Time off work in excess of accrued vacation and holidays will not be counted for purposes of reaching your next anniversary date, unless the time off is protected under state or federal law.

Vacation accrual begins at the start of employment. No vacation may be taken until it is accrued and available. In other words, vacation must be earned before it can be taken. All accrued vacation must

Sequoia Safety Council

be used prior to requesting unpaid time off. Time off after accrued vacation has been exhausted will be without pay. Time off due to injury or illness is unpaid if accrued vacation is not available or is exhausted during the absence.

For Administrative employees, vacation pay will be calculated by multiplying the employee's straight time hourly rate in effect as of the date the vacation starts by the number of vacation hours used. Bonuses, commissions, overtime or any amounts other than the employee's regular straight time hourly rate will not be used to determine vacation pay. Overtime hours, double time hours and any other form of compensation do not accrue vacation time.

<u>FIELD EMPLOYEES</u> <i>Length of Employment</i>	<i>Maximum Annual Amount of Vacation Accrual</i> <i>(for an employee working 120 hours per pay period)</i>	<i>Accrual Rate</i>
Start of employment through end of third year/ thirty-sixth month:	120 hours (10 hours per month)	0.03846/hour worked
Start of 4 th year/thirty-seventh month through end of 14 th year/one hundred sixty-eighth month:	180 hours (15 hours per month)	0.05769/hour worked
Start of 15 th year/one hundred sixty-ninth month and thereafter:	240 hours (20 hours per month)	0.07692/hour worked

Only full-time field employees are entitled to vacation benefits. Introductory, temporary, part-time and on-call employees do not accrue paid vacation time.

In instances where a field employee's accrual rate changes in the middle of a pay period, the new accrual rate will not go into effect until the beginning of the next complete pay period worked by the employee.

Introductory, temporary, and part-time field employees do not accrue vacation. A year of service is defined as twelve consecutive months of employment with the Company. Time off work in excess of accrued vacation and holidays will not be counted for purposes of reaching your next anniversary date, unless the time off is protected under state or federal law.

Vacation accrual begins at the start of employment. No vacation may be taken until it is accrued and available. In other words, vacation must be earned before it can be taken. All accrued vacation must be used prior to requesting unpaid time off. Time off after accrued vacation has been exhausted will be without pay. Time off due to injury or illness is unpaid if accrued vacation is not available or is exhausted during the absence.

For field employees utilizing a minimum 24-hour increment of vacation time (normal shift), vacation pay will be calculated in the same manner an employee's typical 24 shift is paid (i.e., including the applicable overtime). Should a field employee utilize vacation time in an increment of less than 24

hours, such vacation pay will be calculated by multiplying the employee's straight time hourly rate in effect as of the date the vacation starts by the number of vacation hours used. Vacation time taken by field employees in less than 24-hour increments may affect the employees' daily/weekly overtime calculation. When a field employee is taking a day of vacation time, the number of hours deducted will equal the regularly scheduled workday of the employee.

Exempt administrative or field employees accrue 40 regular work hours of credit toward accrual of vacation during each week the employee is entitled to full salary, regardless of the number of hours actually worked. However, if an exempt employee's salary is reduced under the Salary Pay Policy for Exempt Employees, the employee earns credit toward vacation accrual on a pro-rata basis equal to the percentage of the workweek for which the exempt employee is paid.

All non-exempt employees are required to use vacation time for absences, late arrival to work or early departure from work, except in unusual circumstances and during pregnancy disability leave. Exempt employees are required to use vacation when absent for personal reasons for full day absences or partial day absences of one (1) hour or more. Except when on vacation after reaching the cap on vacation accrual, vacation is accrued for all hours of paid vacation time.

A year of service for all employees is defined as twelve consecutive months of employment with the Company. Time off work in excess of holidays, accrued vacation and sick leave will not be counted for purposes of reaching your next anniversary date, unless the time off is protected under state or federal law.

Vacation pay is not counted for the purpose of calculating an employee's overtime hours of work or overtime premiums.

In the event of termination of your employment with the Company, accrued vacation will be paid through the date of separation calculated based upon your rate of pay effective on your last day of employment.

The Company encourages all employees to take vacation time on an annual basis. Earned vacation time accrues to a maximum cap of one and one-half times your annual accrual. For example, an employee who normally accrues 80 hours of vacation each year can accrue up to a maximum of 120 hours of accrued vacation time. Once the maximum accrual amount has been reached, no additional vacation will be earned until previously accrued vacation time is used. When some vacation time is used, vacation accrual begins accruing at the employee's regular accrual rate on the day the employee returns from vacation. There is no retroactive grant of vacation from the period of time vacation accrual was at the cap. Employees should keep track of their accrued vacation time. If business demands make it difficult to utilize an employee's accrued vacation benefits, an employee may request pay in lieu of vacation time off, upon written approval of the General Manager. The amount of vacation pay in lieu of vacation time off will be at the sole discretion of the General Manager.

Employees should request vacation as far in advance as possible – generally two weeks prior to commencement of the vacation period. Employees are encouraged to schedule their vacation time for one-week periods. Vacations will be scheduled so as to provide adequate coverage of jobs and staff requirements. Generally, a maximum of one employee in each classification may be scheduled for vacation per day. In the event two or more employees have requested vacation during the same period and may not be absent simultaneously, preference shall be given to the employee taking an entire week

of vacation, or the employee that makes the request first, or the employee with the greater length of service. The Company will make the final determination in this regard.

To assist in pre-planning of vacations, requests for vacation in weekly increments can be submitted for the entire year, anytime after January 1st of that year. Vacations can be pre-approved based on a projection of available hours. Employees that do not have the requested number of vacation hours within two weeks of approved vacations will have the approval declined.

- Example: An employee projects they will have vacation hours earned to preschedule vacation time several months in advance. The employee takes additional vacation time and will not have enough accrued hours as the original prescheduled date approaches. The vacation approval will be declined.

Employees on a leave of absence or other periods of inactive service do not accrue vacation time. Vacation pay for eligible non-exempt employees is based only upon regular hours worked. Accrual of vacation time for exempt employees is calculated based upon a 40-hour week regardless of the actual number of hours worked. Exempt employees do not earn vacation during weeks in which no work is performed and do not earn vacation on full days of absence for personal reasons. If an exempt employee's salary is reduced under the Salary Pay Policy for Exempt Employees, the employee earns credit toward vacation accrual on a pro-rata basis equal to the percentage of the workweek for which the exempt employee is paid.

An employee entitled to Paid Family Leave ("PFL") benefits through the State of California may request up to two (2) weeks of earned but unused vacation during the time before the employee qualifies for FTDI (Family Temporary Disability Insurance) benefits.

C. Health Insurance Benefits

Discretionary health insurance benefits including medical, dental, and vision are available to full-time employees and part-time employees who work an average of 30 hours per week for 16 consecutive weeks. The benefits are fully described in the benefit packet provided to you upon your date of hire, after completion of your introductory period, or as the benefit plans are amended from time to time. Refer to those documents for answers to any questions you may have or contact the Office Manager or the General Manager. The Company will continue to pay the employer's portion of group health insurance benefits during the first 60 days of an approved leave of absence, or as required by federal or state laws. Thereafter, the employee may only continue coverage by converting to COBRA (Consolidated Omnibus Budget Reconciliation Act of 1985) or Cal-COBRA (California Continuation of Benefits Replacement Act) and must pay all costs associated with such coverage. Employees must continue to pay their portion of group health benefits while on leave.

D. Life/Accidental Death Insurance

Full-time employees become eligible for accidental death and dismemberment insurance after 30 days of employment. The Company pays the premiums for a \$30,000 Accidental Death/Life Insurance policy for each eligible employee. Employees are responsible for choosing a beneficiary.

E. 403(b) Retirement Savings Plan

The Company offers a 403(b) Retirement Savings Plan for eligible employees to provide an opportunity to save for retirement. Employees who are at least 21 years of age are eligible to

participate upon start of employment. Employees may join the plan during open enrollment (January 1 or July 1 each year). Once an employee has completed twelve (12) months of service and has enrolled in the Plan, the Company contributes matching funds, dollar for dollar, up to six percent (6%) of the employee's eligible wages. The terms of the Plan are fully described in the benefit packet provided to you upon your date of hire, or as the Plan is amended from time to time. For detailed information concerning all eligibility requirements of the 403(b) Retirement Savings Plan and details concerning the Plan, please speak with the Office Manager or the General Manager.

F. Employee Assistance Program

The Company recognizes that employees and their families may benefit from professional assistance with personal or work-related problems. The Company provides an Employee Assistance Program (EAP) administered by Simple EAP, providing confidential and professional counseling, or referral to other support services. All participation through this program is on a voluntary basis and does not relieve employees of their obligation to perform their work in a satisfactory manner and to comply with other Company rules and guidelines, including the Company's Drug-Free Workplace policy. Family members eligible for participation in this program include an employee's spouse, registered domestic partner, dependent children and stepchildren, and adult children living with the employee. This program is available to employees and their families seven days a week, 24 hours per day.

G. Disability Insurance Benefits

You are covered by California State Disability Insurance ("SDI"). SDI may be payable when you cannot work because of illness or injury not caused by employment at the Company or when you are entitled to temporary workers' compensation at a rate less than the daily disability benefit amount.

H. Unemployment Insurance Benefits

The Company contributes to the Unemployment Insurance Fund on behalf of its employees. In the event your employment with the Company ends, you may be entitled to benefits in accordance with this Fund.

I. California Paid Family Leave Benefits

All employees contribute to California's Family Temporary Disability Insurance fund ("FTDI," also known as "Paid Family Leave" or "PFL"). The PFL fund is administered by the California Employment Development Department ("EDD"), not the Company. Through the PFL fund, EDD provides eligible employees with a wage supplement for a maximum of eight (8) weeks within a rolling 12-month period. PFL benefits may be available from EDD:

1. To bond with a new child entering the employee's life through birth or placement of a child through adoption or foster care; or
2. To care for an immediate family member (spouse, domestic partner, child, parent, parent-in-law, sibling, grandparent, or grandchild) or a designated person who is seriously ill and requires care. For purposes of this section, a "designated person" is defined as any individual related by blood or whose association with the employee is the equivalent of a family relationship.

Like State Disability Insurance contributions, employee PFL contributions to the PFL fund are not optional and must be deducted automatically from each employee's paycheck. The amount of the contributions is fixed by the EDD, not the Company.

The EDD decides whether an employee is eligible for PFL benefits, not the Company. Employees must apply for PFL benefits through the EDD. Requests to take time off from work will be evaluated in accordance with Company policies and applicable law. The EDD may require the employee to submit medical information or other documentation to support the request for benefits. The EDD may be contacted at 1-877-238-4373 (English) or 1-877-379-3819 (Spanish).

Employees may request to use up to two weeks of vacation before being eligible to receive PFL benefits. This means PFL benefits will start at the beginning of the third week of the benefit period. The EDD may determine that an eligible employee will still receive the maximum amount of benefits. The use of PFL benefits and vacation will not extend the length of the benefit period. PFL does not provide an employee with any independent right to time off work or otherwise require an employer to guarantee reinstatement to the employee's job or to any other position. However, the Company will comply with all applicable state and federal laws covering employee leaves and reinstatement.

J. Social Security Benefits

Social Security is an important part of every employee's retirement benefit. The Company pays a matching contribution to each employee's Social Security taxes.

K. Workers' Compensation Insurance Benefits

At no cost to you, you are protected by Workers' Compensation Insurance while an employee at the Company. The policy covers you in case of occupational injury or illness by providing, among other things, medical care and compensation.

To ensure that you receive any workers' compensation benefits to which you may be entitled, you will need to:

1. Immediately report any work-related injury to your supervisor.
2. Complete a written Employee's Claim Form (DWC-1) and return it to the Field Supervisor or Office Manager, or the General Manager.
3. Unless a prior designation is on file, you are required to report to the medical provider selected by the Company for medical treatment and follow-up care if required.

The Company is required by law to notify the workers' compensation insurance carrier of any concerns of false or fraudulent claims. Any person who makes or causes to be made any knowingly false or fraudulent material statement or material misrepresentation for the purpose of obtaining or denying workers' compensation benefits or payments is guilty of a felony. A violation of this law is punishable by imprisonment for one to five years, or by a fine not exceeding \$150,000.00 or double the value of the fraud, whichever is greater, or both. Additional civil penalties may also be assessed.

L. Sick Leave

Employees are eligible to accrue paid sick leave under this policy beginning with the first day of employment. Employees may not use any accrued sick leave until their 90th day of employment. **The annual cycle of sick leave accrual is January 1 through December 31 each year.** The accrual rate varies depending on the position and employee classification:

- Full-time Field Employees accrue up to 120 hours per year (with a maximum carryover of 120 hours to the following calendar year). Sick Leave accrues at a rate of 10 hours per month.
- Administrative Employees accrue up to 80 hours per year (with a maximum carryover of 80 hours to the following calendar year). Sick Leave accrues at a rate of 0.03846 hour per hour worked.
- Part-time Employees accrue at the rate of 1 hour for every 30 hours worked (with a maximum carryover of 48 hours to the following calendar year).

The following limitations apply:

- Employees may not use any accrued sick leave until the 90th day of an employee's employment.
- An employee's use of sick leave is limited to their maximum annual accrual of sick leave each year of employment.
- The minimum increment of sick leave employees may use is 2 hours.
- Accrued but unused sick leave will be carried over to the following year as noted above for each position/classification.
- Through December 31, 2025, employees will be paid for unused sick leave hours above the maximum carryover from the previous year. The payout will be at the employee's straight time hourly rate. This payout program will be discontinued as of January 1, 2026.
- Unused sick leave is not paid to employees upon separation of employment.
- Former employees who are re-hired within one year of their employment ending will have any unused accrued sick leave reinstated at the time of re-hire.
- For purposes of accrual, exempt employees will be considered to be working 40 hours per week.
- If an employee's need for paid sick leave is foreseeable, the employee must provide reasonable advance notification to the Company. If an employee's need for paid sick leave is not foreseeable, the employee must provide notice of the need for the leave as soon as practicable.
- The rate of pay for paid sick leave will be the employee's straight time hourly rate.
- Sick leave does not count as hours worked which may affect employees' daily or weekly overtime pay.
- Employees using Pregnancy Disability Leave ("PDL") may elect to have their paid sick leave run concurrently with their PDL. Vacation and sick leave hours will not accrue during any unpaid portion of the leave of absence, and employees will not receive pay for official holidays that are observed during leaves of absence except during those periods when employees are substituting vacation or sick leave for unpaid leave.
- Sick leave may be used for the following reasons:

- a. Diagnosis, care, or treatment of an existing health condition of, or preventative care for, an employee or an employee's family member, or a designated person.
 - b. For an employee who is a victim of a qualifying act of violence (see Labor Code section 230).
 - c. Jury or witness duty, when approved by the General Manager.
- 1) For purposes of this policy, family members are:
- i. a child, stepchild, legal ward, or a child to whom the employee stands in loco parentis
 - ii. a biological, adoptive or foster parent, stepparent, or legal guardian of an employee or the employee's spouse or registered domestic partner, or a person who stood in loco parentis when the employee was a minor child,
 - iii. a spouse,
 - iv. a registered domestic partner,
 - v. a grandparent,
 - vi. a grandchild, or
 - vii. a sibling.
- 2) For purposes of this policy, a designated person is a person identified by the employee at the time of request for paid sick leave. The Company may limit the employee to one (1) designated person per 12-month period.
- 3) The Company will comply with California Labor Code section 233 allowing employees to use up to one-half of their yearly accrual of applicable paid sick leave (or other authorized paid time off) for the care of an ill child, parent, spouse, domestic partner or designated person of the employee, or as otherwise required by law.

M. Lactation Accommodation Policy

The Company will provide a reasonable amount of break time to accommodate an employee desiring to express breast milk for the employee's infant child each time the employee has the need to express milk. The break time shall, whenever possible, run concurrently with any 10-minute rest period or other break time already provided to the employee. However, the break time to express milk will not be limited to the rest periods. Break time for expressing breast milk for an employee that does not run concurrently with the Company's 10-minute rest periods may be unpaid.

Any employee who wishes to express milk in the workplace shall notify her immediate supervisor and request lactation accommodation. The request may be made orally or in writing and should indicate that the employee will need accommodation for expressing breast milk at work. The Company may ask the employee to prepare a request form and submit it to the Company. The Company will respond to a request for lactation accommodation as quickly as possible and will strive to respond in no more than five (5) business days. If the Company cannot provide a break time or location in accordance with this policy, the Company will inform the employee in writing.

The Company will provide an employee requesting accommodation to express breast milk with the use of a room or other location for the employee to express milk in private. The room or location may include the place where the employee normally works. The room provided by the Company

will not be a bathroom, will be in close proximity to the employee's work area and will be free from intrusion while the employee is expressing milk. The room provided may be used for other purposes but the use of the room for lactation shall take precedence over the other uses during the time it is used for lactation purposes. The room will be clean, safe, and free from hazardous materials. It will have a place to sit and contain a surface to place a breast pump and personal items. The employee will have access to electricity or alternative devices, including but not limited to, extension cords or charging stations needed to operate an electric or battery-powered breast pump. The Company will also provide the employee with access to a sink with running water and a refrigerator suitable for storing milk in close proximity to the employee's workspace. If a refrigerator cannot be provided another cooling device suitable for storing milk will be provided.

An employee who believes she has not been appropriately accommodated to express milk at work may file a complaint with the California Labor Commissioner.

N. Leaves of Absence

1. General Leave of Absence Policy

The Company may grant a leave of absence in certain circumstances. Possible reasons for granting a leave include time necessary to recover from an injury, elective surgery, or other injury or illness unrelated to your employment with the Company. If a leave is needed it is important to request the time off in writing as far in advance as possible, to keep in touch with the General Manager during your leave and to give prompt notice if there is any change in your return date.

You may not obtain other employment or apply for unemployment insurance while you are on a leave of absence. Acceptance of other employment or self-employment while on leave will be treated as a voluntary resignation from employment with the Company.

Vacation, holidays, and other benefits will not accrue while you are on leave of absence unless otherwise required by law. You are not guaranteed reinstatement at the conclusion of your leave of absence or that you will be returned to the same or similar position with the Company unless required by law. You will not receive employment credit for the time during the leave, except that if you are reinstated, you will retain your original date of hire.

For those eligible employees receiving group health benefits at the time they go on leave, the Company does not pay group health premiums during the leave of absence unless the employee is entitled to the rights explained below in the section describing family and medical leave. Employees who are not entitled to family and medical leave rights but who wish to maintain their insurance coverage during a leave of absence, must elect to continue insurance coverage under COBRA or Cal-COBRA ("COBRA"). Employees electing COBRA continuation of insurance must prepay health insurance premiums on a monthly basis. If an employee takes a leave of absence of less than one (1) month and elects to continue his/her insurance under COBRA, the premium must be paid by the employee on a pro rata basis.

The Company is not required to pay claims made by a qualified beneficiary after termination of group health coverage during the election period under an indemnity-type group health plan unless and until the qualified beneficiary both (1) elects COBRA coverage in a timely manner and (2) makes the initial premium payment in a timely manner.

Employees who elect COBRA must pay their initial premium within forty-five days of the date of election to continue their healthcare coverage. Subsequent payments must be made within the

latest of: (1) thirty days; (2) the date employees are required to pay premiums to the plan if employees are required to pay at all; or (3) the grace period allowed by the insurance carrier for the payment of premiums by the employer. If payments are not received on a timely basis, and depending upon the circumstances, this may lead to retroactive termination of COBRA coverage.

Employees electing COBRA continuation of insurance must prepay health insurance premiums on a monthly basis.

2. Family and Medical Leave

The Company will grant family and medical leave in accordance with the requirements of applicable state law in effect at the time the leave is granted. The Company refers to this type of leave as “CFRA Leave” (California Family Rights Act).

Please contact your supervisor as soon as you become aware of the need for a CFRA Leave. Employees are expected to provide prompt notice to the Company of any change(s) to an employee’s return to work date. Accepting other employment, continuing to work in another job, or filing for unemployment insurance benefits while on leave may be treated as a voluntary resignation from employment.

a. Employee Eligibility

To be eligible for CFRA Leave, you must:

- 1) have worked for the Company for a total of at least 12 months; and
- 2) have worked at least 1,250 hours over the previous 12 months as of the start of the leave.

b. Reasons for Leave

CFRA Leave may be taken for various reasons. Because an employee’s rights and obligations may vary depending upon the reason for the CFRA Leave, it is important to identify the purpose or reason for the leave.

CFRA Leave may be used for one of the following reasons:

- i. The birth of a child of the employee or the placement of a child with an employee in connection with the adoption or foster care of the child by the employee (Bonding Leave”).
- ii. To care for an immediate family member (spouse, child, parent, grandparent, grandchild, sibling, domestic partner) or designated person with a serious health condition (“Family Care Leave”).
- iii. An employee’s own serious health condition that makes the employee unable to perform the functions of the position of that employee, except for leave taken for disability on account of pregnancy, childbirth, or related medical conditions (“Serious Health Condition Leave”).
- iv. A qualifying exigency related to the covered active duty or call to covered active duty of an employee’s spouse, domestic partner, child, or parent in the Armed Forces of the United States, as specified in Section 3302.2 of the Unemployment Insurance Code.

For purposes of this CFRA Leave policy, the following definitions will apply:

- 1) “Child” means a biological, adopted, or foster child, a stepchild, a legal ward, a child of a domestic partner, or a person to whom the employee stands in loco parentis.
- 2) “Designated person” means any individual related by blood or whose association with the employee is the equivalent of a family relationship. The employee is required to designate such person at the time of request for the CFRA Leave. The Company may limit the employee to one (1) designated person per 12-month period.
- 3) “Domestic partner” has the same meaning as defined in Section 297 of the Family Code.
- 4) “Grandchild” means a child of the employee’s child.
- 5) “Grandparent” means a parent of the employee’s parent.
- 6) “Parent” means a biological, foster, or adoptive parent, a stepparent, a legal guardian, or other person who stood in loco parentis to the employee when the employee was a child.
- 7) “Parent-in-law” means a parent of a current spouse or domestic partner.
- 8) “Sibling” means a person related to another person by blood, adoption, or affinity through a common legal or biological parent.
- 9) “Serious health condition” means an illness, injury, impairment, or physical or mental condition that involves either of the following:
 - Inpatient care in a hospital, hospice, or residential health care facility.
 - Continuing treatment or continuing supervision by a health care provider.

c. **Length of Leave**

The maximum amount of CFRA Leave will be twelve (12) workweeks in any 12-month period. A “rolling” 12-month period is measured backward from the date an employee requests CFRA Leave start. Under the “rolling” option, leave is calculated by looking backward one year from the date the employee uses CFRA Leave. Each time an employee requests CFRA Leave, the leave entitlement equals any balance of the 12 weeks which has not been used during the immediately preceding 12 months. For example, if an employee has taken eight weeks of leave during the past 12 months, an additional four weeks of leave could be taken together with additional leave that becomes available as the 12-month period rolls forward.

Under some circumstances, you may take family or medical leave intermittently – which means taking leave in blocks of time, or by reducing your normal weekly or daily work schedule. Leave taken intermittently may be taken in increments of no less than one (1) hour. Any leave taken for the birth, adoption, or foster care placement of a child does not have to be taken in one continuous period of time. Bonding Leave may be requested in one continuous period or in minimum two weeks’ duration on any two occasions during the first year after the birth or placement of the child. Additionally, the Company may also grant additional requests for Bonding Leave lasting less than two weeks’ duration at its discretion. Any Bonding Leave taken must be concluded within one year of the birth or placement of the child.

For Bonding Leave, if both spouses (or registered domestic partners) work for the Company and are eligible for leave under this policy, the spouses (or registered domestic partners) may each take 12 workweeks off.

To the extent required by law, some extensions to leave beyond an employee's CFRA entitlement may be granted when the leave is necessitated by an employee's work-related injury/illness, a pregnancy related disability, or a "disability" as defined under the Americans with Disabilities Act and/or applicable state or local law. Certain restrictions on these benefits may apply.

d. Notice and Certification – Bonding, Family Care, and Serious Health Condition Leave Requirements

1. Notice

Employees are required to provide notice as follows:

- i. If the employee's need for a leave pursuant to this section is foreseeable, the employee shall provide the employer with reasonable advance notice of the need for the leave.
- ii. If the employee's need for leave pursuant to this section is foreseeable due to a planned medical treatment or supervision, the employee shall make a reasonable effort to schedule the treatment or supervision to avoid disruption to the operations of the employer, subject to the approval of the health care provider of the individual requiring the treatment or supervision.
- iii. When the need for leave is not foreseeable, notice within the time prescribed by the Company's normal absence reporting policy, unless unusual circumstances prevent compliance, in which case notice is required as soon as is otherwise possible and practical.

2. Certification

Certification forms are available from the Office Manager or the General Manager.

- i. Employees may be requested to provide certification if the request for leave is for leave to care for a child, parent, grandparent, grandchild, sibling, spouse, domestic partner or designated person who has a serious health condition. The certification must be issued by the health care provider of the individual requiring care. That certification shall be sufficient if it includes all of the following:
 - The date on which the serious health condition commenced.
 - The probable duration of the condition.
 - An estimate of the amount of time that the health care provider believes the employee needs to care for the individual requiring care.
 - A statement that the serious health condition warrants the participation of a family member to provide care during a period of the treatment or supervision of the individual requiring care.
- ii. The employee may be required to provide certification if the request for leave is because of the employee's own serious health condition. The certification must be

issued by the employee's health care provider. That certification shall be sufficient if it includes all of the following:

- The date on which the serious health condition commenced.
 - The probable duration of the condition.
 - A statement that, due to the serious health condition, the employee is unable to perform the function(s) of the employee's position.
- iii. The Company may require the employee obtain subsequent recertification regarding the employee's serious health condition on a reasonable basis, in accordance with the procedure provided in paragraph d.1. ("Notice") above, if additional leave is required.
- iv. In any case in which the Company has reason to doubt the validity of the certification provided pursuant to this section, the Company may require, at the Company's expense, that the employee obtain the opinion of a second health care provider, designated or approved by the employer, concerning any information certified under paragraph 2. ii. ("Certification"). The health care provider designated or approved for the second opinion shall not be employed on a regular basis by the Company. If the second opinion differs from the opinion in the original certification, the Company may require, at the Company's expense, that the employee obtain the opinion of a third health care provider, designated or approved jointly by the Company and the employee, concerning the information initially certified. The opinion of the third health care provider shall be considered to be final and binding on the employer and the employee. Employees are expected to cooperate with the Company in obtaining additional medical opinions that the Company may require.

e. Failure to Provide Certification and/or to Return from Leave

Absent unusual circumstances, failure to comply with these notice and certification requirements may result in a delay or denial of the leave. If you fail to return to work at your leave's expiration and have not obtained an extension of the leave, the Company may presume that you do not plan to return to work and have voluntarily terminated your employment.

f. Military Emergency Leave Requirements

Employees are required to provide:

- as much advance notice as is reasonable and practicable under the circumstances;
- a copy of the covered military member's active-duty orders when the employee requests leave; and
- a completed Certification of Qualifying Exigency form within 15 calendar days, unless unusual circumstances exist to justify providing the form at a later date.

g. **Compensation During Leave**

Generally, CFRA Leave is unpaid. However, you may be eligible to receive benefits through State-sponsored or Company-sponsored wage-replacement benefit programs. If you are eligible to receive these benefits, you may also choose to supplement these benefits with the use of accrued vacation and sick leave, to the extent permitted by law and Company policy. All such payments will be integrated so that you will receive no more than your regular compensation during this period. If you are not eligible to receive any of these wage-replacement benefits, and if the reason for CFRA Leave is your own serious health condition, you may elect or the Company may require you to use accrued vacation and sick leave. If the reason for CFRA Leave is in connection with the birth, adoption, or foster care of a child, or to care for a child, parent, or spouse with a serious health condition, you may use vacation, sick leave or other paid time off if mutually agreed by you and the Company. The use of paid benefits will not extend the length of a CFRA leave.

During any period that you are eligible for CFRA Leave, the Company shall maintain and pay for health insurance coverage under a group health plan for the duration of the leave, not to exceed 12 workweeks in a 12-month period, commencing on the date the CFRA Leave begins, at the level and under the conditions coverage would have been provided if the employee had continued in employment continuously for the duration of the leave. The Company may recover the premium that the employer paid for the insurance coverage for you under the group health plan if both of the following conditions occur:

- a. You fail to return from leave after the period of leave to which the employee is entitled has expired.
- b. The employee's failure to return from leave is for a reason other than the continuation, recurrence, or onset of a serious health condition that entitles the employee to leave or other circumstances beyond the control of the employee.

h. **Job Reinstatement**

Under most circumstances, you will be reinstated to the same position held at the time of the leave or to a comparable position with equivalent pay, benefits, and other employment terms and conditions of employment. However, you have no greater right to reinstatement than if you had been continuously employed rather than on leave. For example, if you would have been laid off had you not gone on leave, or if your position has been eliminated during the leave, then you will not be entitled to reinstatement.

Prior to being allowed to return to work, an employee wishing to return from a Serious Health Condition Leave must submit an acceptable release from a health care provider that certifies the employee can perform the essential functions of the job as those essential functions relate to the employee's serious health condition. For an employee on intermittent CFRA Leave, such a release may be required if reasonable safety concerns exist regarding the employee's ability to perform his or her duties, based on the serious health condition for which the employee took the intermittent leave.

3. Pregnancy Disability Leave

The Company will grant an unpaid pregnancy disability leave to employees disabled on account of their pregnancy, childbirth, or related medical conditions.

a. Leave Available

If you are disabled due to pregnancy, childbirth, or related medical condition you may take up to a maximum of four months (17½ weeks) leave. As an alternative, the Company may transfer you to a less strenuous or hazardous position upon your request and with the advice of your physician, if the transfer can be reasonably accommodated. For purposes of this policy, you are disabled when, in the opinion of your healthcare provider, you cannot work at all or are unable to perform any one or more of the essential functions of your job or to perform them without undue risk to yourself, the successful completion of your pregnancy, or to other persons as determined by a health care provider. This term also applies to certain pregnancy-related conditions such as severe morning sickness or if you need to take time off for prenatal or postnatal care, bed rest, post-partum depression, and the loss or end of pregnancy (among other pregnancy-related conditions that are considered to be disabling). Leave taken under the pregnancy disability policy does not run concurrently with family and medical leave under California law.

b. Reasonable Accommodation for Pregnancy-Related Disabilities

Any employee who is affected by pregnancy may also be eligible for a temporary transfer or another accommodation. There is no length of service requirement. You are affected by pregnancy if you are pregnant or have a related medical condition, and because of pregnancy, your health care provider has certified that it is medically advisable for you to temporarily transfer or to receive some other accommodation.

The Company will provide a temporary transfer to a less strenuous or hazardous position or duties or other accommodation to an employee affected by pregnancy if:

1. The employee requests a transfer or other accommodation;
2. The request is based upon the certification of the employee's health care provider as "medically advisable;" and
3. The transfer or other requested accommodation can be reasonably accommodated pursuant to applicable law.

No additional position will be created, the Company will not discharge another employee, transfer another employee with more seniority, or promote or transfer any employee who is not qualified to perform the new job as a part of the accommodation process.

c. Notice and Certification Requirements

To be approved for a pregnancy disability leave of absence, a temporary transfer or other reasonable accommodation, you must:

1. Provide 30 days' advance notice before the leave of absence, transfer or reasonable accommodation is to begin, if the need is foreseeable;

2. Provide as much notice as practicable before the leave, transfer or reasonable accommodation when 30 days' notice is not foreseeable; and
3. Provide a signed medical certification from your health care provider that states you are disabled due to pregnancy or that it is medically advisable for you to be temporarily transferred or to receive some other requested accommodation.

Notice regarding the need for pregnancy disability leave, transfer or other reasonable accommodation must be made to the the General Manager. The Company may require you to provide a new certification if you request an extension of time for your leave, transfer, or other requested accommodation.

d. **Compensation During Leave**

Pregnancy disability leaves are without pay. Pregnant employees must use all accrued sick leave while on pregnancy leave. Pregnant employees are not required to take accrued vacation but may request to take accrued vacation time at the employee's option. All such payments may be integrated with any state disability or other wage reimbursement benefits that you may receive.

e. **Benefits During Leave**

Pregnancy disability leaves and accommodation(s) that require you to work a reduced work schedule or to take time off from work intermittently are unpaid. You may elect to use accrued sick leave and/or accrued vacation benefits during the unpaid leave of absence. However, use of paid time off will not extend the available leave of absence time. Vacation and sick leave hours will not accrue during any unpaid portion of the leave of absence, and you will not receive pay for official holidays that are observed during your leave of absence except during those periods when you are substituting vacation or sick leave for unpaid leave.

Employees should apply for California State Disability Insurance ("SDI") benefits. SDI forms are available online, from the Company, or your health care provider. Any SDI benefits for which you are eligible will be integrated with accrued vacation, sick leave, or other paid time off benefits so that you do not receive more than 100% of your regular pay.

As required by applicable law, the Company will maintain any group health insurance coverage that you were provided before the leave was taken and on the same terms as if you had continued to work. In some instances, the Company may recover premiums it paid to maintain health coverage if you fail to return to work following your pregnancy disability leave.

Each employee remains responsible for, and must continue to pay, the employee's share of the health premiums during leave that the employee was paying while working. If premiums are raised or lowered, an employee on leave is required to pay the new premium rates. The Company will require payment on the same schedule as payments are made pursuant to the payroll cycle. If an employee's premium payment is more than 30 days late, the insurance coverage may be canceled. If the Company provided other benefits, such as life insurance and disability insurance before the leave was taken, the Company will maintain coverage at the Company's expense under the same terms as if the employee had continued to work.

If you do not return to work following pregnancy disability leave for a reason other than: (1) the continuation, recurrence, or onset of a serious health condition which would entitle you to CFRA leave; or (2) other circumstances beyond your control, you will be required to reimburse the Company for the Company's share of health insurance premiums paid on your behalf during your leave.

f. **Reinstatement**

If you and the Company have agreed upon a definite date of return from your leave of absence or transfer, you will be reinstated on that date unless you notify the Company that you are unable to return on that date. If the length of the leave of absence or transfer has not been established, or if it differs from the original agreement, you will be returned to work within two (2) business days, where feasible, after you notify the Company of your readiness to return.

Before you will be allowed to return to work in your regular job following a leave of absence or transfer, you must provide your supervisor with a certification from your health care provider that you can perform safely all of the essential duties of your position, with or without reasonable accommodation. If you do not provide such a release prior to or upon reporting for work, you will be sent home until a release is provided. This time before the release is provided will be unpaid.

You will be returned to the same or a comparable position upon the conclusion of your leave of absence or transfer. If the same position is not available on your scheduled return date, the Company will provide you with a comparable position on your scheduled return date or within 60 calendar days of that return date. However, you will not be entitled to any greater right to reinstatement than if you had not taken the leave. For example, if you would have been laid off regardless of the leave, or you would not have been offered a comparable position, then the employee will not be entitled to reinstatement.

Failure to return to work at the conclusion of the leave of absence may result in termination of employment, unless you are taking additional leave provided by law or Company policy or the Company has otherwise approved you to take additional time off. Once a pregnant employee has given birth and/or is no longer disabled and has exhausted PDL, the employee may apply for leave under CFRA Leave for purposes of Bonding Leave. As noted above under CFRA Bonding Leave, any leave taken for the birth, adoption, or foster care placement of a child does not have to be taken in one continuous period of time. Bonding Leave may be requested in one continuous period or in minimum two weeks' duration on any two occasions during the first year after the birth or placement of the child. Additionally, the Company may also grant additional requests for Bonding Leave lasting less than two weeks' duration at its discretion. Any Bonding Leave taken must be concluded within one year of the birth or placement of the child.

If upon return from a pregnancy disability leave you are unable to perform the essential functions of the job because of a physical or mental disability, the Company will engage in the interactive process with you and consider reasonable accommodation as appropriate.

4. Workers' Compensation Disability Leave

In accordance with state law, the Company will grant a workers' compensation disability leave if you have an occupational illness or injury. As an alternative, the Company may try to

accommodate you with modified work. Leave taken under the workers' compensation disability policy runs concurrently with family and medical leave under California law.

The Company or its insurer will not be liable for payment of workers' compensation benefits for any injury that arises out of an employee's voluntary participation in any off-duty recreational, social, or athletic activity that is not part of the employee's work-related duties.

The Company is required by law to notify the workers' compensation insurance carrier of any concerns of false or fraudulent claims. Any person who makes or causes to be made any knowingly false or fraudulent material statement or material misrepresentation for the purpose of obtaining or denying workers' compensation benefits or payments is guilty of a felony. A violation of this law is punishable by imprisonment for one to five years, or by a fine not exceeding \$150,000.00 or double the value of the fraud, whichever is greater, or both. Additional civil penalties may also be assessed.

a. **Notice and Certification Requirements**

You must report to your supervisor all workplace accidents, injuries, and illnesses no matter how minor. In addition, you must provide the Company with a certification of your workplace injury or illness, your inability to work, and/or your work restrictions, and the expected duration of your restrictions and/or inability to work, from the Company selected health-care provider unless you are entitled to designate your own personal healthcare provider.

b. **Compensation During Leave**

Workers' compensation disability leaves are without payment of your regular compensation. However, you may take accrued vacation time and any other accrued paid time off during the leave. All such payments will be integrated with any state disability, workers' compensation, or other wage reimbursement benefits for which you may be eligible. At no time will you receive a greater total payment than your regular compensation.

c. **Benefits During Leave**

If you are eligible for family and medical leave, the Company will maintain, for up to a maximum of 12 workweeks per 12-month period, any group health insurance coverage that you were provided before the leave was taken and on the same terms as if you had continued to work. If you are not eligible for family and medical leave, you will not receive continued paid group health care coverage.

You are not entitled to continued paid group health insurance coverage while on workers' compensation disability leave. However, you may continue your coverage through the Company in conjunction with COBRA or Cal-COBRA ("COBRA") guidelines by making monthly payments to the Company for the amount of the relevant premium. You should contact the Office Manager or the General Manager for further information.

Employees who elect COBRA must pay their initial premium within forty-five days of the date of election to continue their healthcare coverage. Subsequent payments must be made within the latest of: (1) thirty days; (2) the date employees are required to pay premiums to the plan, if employees are required to pay at all; or (3) the grace period allowed by the Company's insurance carrier for the payment of premiums by the employer. If payments are not received on a timely basis this may lead to retroactive termination of COBRA coverage.

d. **Reinstatement**

Upon the submission of a medical certification that you are able to return to work, you will be reinstated in accordance with applicable law. If you are disabled as defined by federal and state law, the Company will attempt to accommodate you. If you are returning from a workers' compensation disability leave that runs concurrently with family and medical leave, then the provisions of the Family and Medical Leave policy also will apply.

e. **Pre-designation**

Employees may pre-designate a primary care physician for treatment of occupational injuries in limited circumstances. Should you wish to do so, please notify the Office Manager or the General Manager.

5. **Witness and Victims of Crime Leave of Absence**

The Company acknowledges that, on occasion, employees may need to take time off to participate in judicial proceedings as a witness or because an employee or their family member was victimized by various crimes as defined under Government or Labor Code provisions.

a. **Qualifying Act of Violence Leave of Absence**

The Company will provide unpaid time off to an employee or a family member who has been the victim of crime, to seek medical care, counseling, and other safety-related services. Retaliation or discrimination against an employee taking leave as permitted under this policy is strictly prohibited.

An employee who is a victim (as defined below) may take time off to:

- Serve as required by law on an inquest jury or trial jury, so long as the employee gives reasonable advance notice to the Company;
- Appear in court to comply with a subpoena or other court order as a witness in any judicial proceeding; or
- Obtain or attempt to obtain a restraining order or other injunctive relief, to help ensure the health, safety, or welfare of the employee or their child (or a family member) where the employee is a victim of a qualifying act of violence.
- Seek, obtain, or assist a family member to seek or obtain medical attention for or to recover from injuries caused by a qualifying act of violence.
- Seek, obtain, or assist a family member to seek or obtain services from a domestic violence shelter, program, rape crisis center, or victim services organization or agency as a result of a qualifying act of violence.
- Seek, obtain, or assist a family member to seek or obtain psychological counseling or mental health services related to an experience of a qualifying act of violence.
- Participate in safety planning or take other actions to increase safety from future qualifying acts of violence.
- Provide care to a family member who is recovering from injuries caused by a qualifying act of violence.

- Relocate or engage in the process of securing a new residence due to the qualifying act of violence, including but not limited to, securing temporary or permanent housing or enrolling children in a new school or childcare.
- Seek, obtain, or assist a family member to seek or obtain civil or criminal legal services in relation to the qualifying act of violence.
- Prepare for, participate in, or attend any civil, administrative, or criminal legal proceeding related to the qualifying act of violence.
- Seek, obtain, or provide childcare or care to a care-dependent adult if the childcare or care is necessary to ensure the safety of the child or dependent adult as a result of the qualifying act of violence.

A "victim" means either of the following: 1) an individual against whom a qualifying act of violence is committed or 2) a person against whom a crime has been committed as defined in the applicable Government Code who must comply with a subpoena or court order as a witness.

A "qualifying act of violence" means any of the following:

- Domestic Violence,
- Sexual Assault,
- Stalking, or
- An act, conduct or pattern of conduct that includes any of the following:
 - An individual causes bodily injury or death to another individual
 - An individual exhibits, draws, brandishes or uses a firearm, or other dangerous weapon, with respect to another individual,
 - An individual uses, or makes a reasonably perceived or actual threat to use, force against another individual to cause physical injury or death.

For purposes of this policy, a family member includes an employee's:

- Child
- Parent
- Grandparent
- Grandchild
- Sibling
- Spouse or domestic partner (as defined in Government Code section 12945.2)

For purposes of this policy, a designated person means:

- Any individual related by blood or whose association with the employee is the equivalent of a family relationship. The designated person may be identified by the employee at the time the employee requests the leave. The Company limits an employee to one designated person per 12-month period for purposes of this policy.

If an employee is the victim of a qualifying act of violence the maximum amount of leave allowed is twelve (12) weeks. If the victim of the qualifying act of violence is a family

member of the employee who is not deceased as a result of the crime, and the employee is not the victim, and the purpose of the leave is to assist with relocation, the maximum leave allowed is five (5) days. If the victim of the qualifying act of violence is a family member who is not deceased as a result of the crime, and the employee is not the victim, and the purpose of the leave is one of the other reasons listed above, the maximum leave allowed is ten (10) days.

If an employee is eligible for California Family Rights Act (CFRA) leave, the leave will run concurrently with CFRA leave.

1. Providing Notice

Employees should inform the General Manager as soon as possible before taking time off under this policy.

On receipt of a subpoena or other court order requiring appearance in a judicial proceeding as a witness, employees must inform the General Manager immediately. Employees may be required to provide appropriate documentation, including a copy of the subpoena or other court order, as soon as possible. The Company reserves the right to require employees to provide proof of the need to attend the proceedings to the extent authorized by law. If an employee is excused from the judicial proceedings during regular working hours or released from the judicial proceeding earlier than expected, the employee should return to work as soon as possible and report to work if requested.

If you are a victim eligible to take leave to seek relief from a court to help ensure your or your child's health, safety or welfare, or to seek other outside assistance services as provided above, you must provide the Company with reasonable advance notice of your intent to take leave. If advance notice is not possible, you must provide the Company with one of the following certifications within a reasonable time after your absence:

- A police report indicating that the employee or a family member was a victim.
- A court order protecting or separating the employee or a family member of the employee from the perpetrator of the qualifying act of violence, or other evidence from the court or prosecuting attorney that the employee or family member appeared in court.
- Documentation from a licensed medical professional, domestic violence counselor, victim advocate, licensed health care provider, or counselor showing that the employee or a family member of the employee was undergoing treatment or seeking or receiving services directly related to the qualifying act of violence.
- Any other form of documentation that reasonably verifies that the qualifying act of violence occurred, including, but not limited to, a written statement signed by the employee, or an individual acting on the employee's behalf, certifying that the absence is for a purpose authorized under the applicable law.

2. Pay Provisions

Leave under this policy is unpaid, although an employee may elect to use vacation, paid sick leave or other paid time off for which the employee is eligible under Company policies.

Deductions will not be made from the salary of an exempt employee, unless leave is for at least an entire workweek and no work was performed during that time.

3. Reasonable Accommodation for Victims

Employees who are victims or have a family member (if disclosed to the Company) who is a victim of a qualifying act of violence, have a right to request reasonable accommodation(s) for their safety at work, including, for example, a transfer, reassignment, modified schedule, changed work telephone number, assistance in documenting a qualifying act of violence that occurs in the workplace, domestic violence, sexual assault, or stalking that occurs in the workplace, another workplace adjustment, or referral to a victim assistance organization.

Employees seeking reasonable accommodation should contact the General Manager who will engage in an interactive process with the employee to determine effective reasonable accommodation(s). If an employee no longer needs accommodation, they must notify the General Manager. The Company may evaluate whether a requested accommodation is an undue hardship.

Employees may be required to provide a certification of the employee's or family member's status as a victim of a qualifying act of violence. The Company will maintain the confidentiality of any document provided to them identifying an employee as a victim and not disclose this information except when legally required or as necessary to protect the employee's safety in the workplace.

b. Victims of Designated Crimes Leave of Absence (Labor Code section 230.2)

Under California Labor Code Section 230.2, employees are also entitled to take leave to attend judicial proceedings related to certain serious crimes if they are:

- A victim of the crime.
- The crime victim's "immediate family member."
- The crime victim's registered domestic partner.
- The child of the crime victim's registered domestic partner. (Cal. Lab. Code § 230.2(b)).

Crimes covered are:

- A violent felony, as defined in Section 667.5(c) of the Penal Code;
- A serious felony, as defined in Section 1192.7(c) of the Penal Code; or
- A felony theft or felony embezzlement.

"Immediate family member" is defined as an employee's:

- Spouse or registered domestic partner.
- Parent.
- Step-parent.
- Sibling.

- Step-sibling.
- Child.
- Stepchild.

Employees who wish to take this leave must provide reasonable advance notice. When notice is not feasible or an unscheduled absence occurs, an employee must provide their employer, within a reasonable time after the absence, documentation evidencing the judicial proceeding from any of the following:

- The court or government agency setting the hearing.
- The district attorney or prosecuting attorney's office.
- The victim or witness office that is advocating on the victim's behalf.

Time off under this section is unpaid. Employees may elect to use available vacation or sick time.

c. Victims of Other Designated Crimes Leave of Absence (Labor Code section 230.5)

Under California Labor Code Section 230.5, an employee who is a victim of certain covered offenses may also take time off, at the victim's request, to appear in court to be heard at any proceeding in which the victim's rights are at issue.

The covered offenses include:

- (A) Vehicular manslaughter while intoxicated, as defined in subdivision (b) of Section 191.5 of the Penal Code.
- (B) Felony child abuse likely to produce great bodily harm or a death, as defined in Section 273a of the Penal Code.
- (C) Assault resulting in the death of a child under eight years of age, as defined in Section 273ab of the Penal Code.
- (D) Felony domestic violence, as defined in Section 273.5 of the Penal Code.
- (E) Felony physical abuse of an elderly or dependent adult, as defined in subdivision (b) of Section 368 of the Penal Code.
- (F) Felony stalking, as defined in Section 646.9 of the Penal Code.
- (G) Solicitation for murder, as defined in subdivision (b) of Section 653f of the Penal Code.
- (H) A serious felony, as defined in subdivision (c) of Section 1192.7 of the Penal Code.
- (I) Hit-and-run causing death or injury, as defined in Section 20001 of the Vehicle Code.
- (J) Felony driving under the influence causing injury, as defined in Section 23153 of the Vehicle Code.
- (K) Sexual assault as set forth in Section 261, 261.5, 262, 265, 266, 266a, 266b, 266c, 266g, 266j, 267, 269, 273.4, 285, 286, 287, 288, 288.5, 289, or 311.4 of, or former Section 288a of, the Penal Code.

"Victim" is defined to include:

- Any person who suffers direct or threatened physical, psychological, or financial harm due to the commission or attempted commission of a crime or delinquent act.

- The person's spouse, registered domestic partner, parent, child, sibling, or guardian.

Employees should consult the General Manager regarding the offenses covered by this leave law. Employees who wish to take this leave must provide reasonable advance notice. When notice is not feasible, or an unscheduled absence occurs, employees must provide a certification within a reasonable time after their absence that can be any of the following:

- A police report indicating that the employee was a victim of a covered offense.
- A court order protecting or separating the employee from the perpetrator of a covered offense or other evidence from the court or prosecuting attorney that the employee has appeared in court.
- Documentation from a medical professional, domestic violence advocate or advocate for victims of sexual assault, health care provider, or counselor that the employee was undergoing treatment for physical or mental injuries or abuse resulting in victimization from a covered offense.

Time off under this section is unpaid. Employees may elect to use available vacation or sick time.

The Company will, to the extent allowed by law, maintain the confidentiality of an employee requesting leave or accommodation under these provisions.

The Company recognizes the difficulties faced by employees who are victims of or whose family members are victims of a qualifying act of violence. To support these employees, the Company will not discharge, discriminate, or retaliate against an employee for taking time off from work for the above referenced reasons.

6. Military Leave (Active and Reserve Service)

Leave without pay is provided to you when you enter military service of the Armed Forces of the United States or are in the Armed Forces Reserves. You are afforded reemployment rights and retain full seniority benefits for all prior service upon reemployment in accordance with the Uniformed Services Employment and Reemployment Rights Act and the California Military and Veterans Code. You must provide your military service orders to the General Manager for review prior to commencement of the leave.

7. Medical Leave of Absence (CFRA non-qualifying employees)

For employees not yet qualified for a Family Medical Leave (as described above), an unpaid medical leave of absence up to a maximum of eight (8) weeks may be granted for non-work-related disabilities (other than pregnancy, childbirth, and related medical conditions) with a doctor's written certificate of disability. Employees may be eligible for benefits through the State Disability and/or Family Temporary Disability Insurance programs. Employees are responsible for applying to the state for such benefits.

Employees should request any leave of absence in writing as far in advance as possible. If you are granted a Medical Leave of Absence, you will be required to use any available sick pay consistent with state and federal requirements. Such leave will begin when your doctor certifies that you are unable to work and ends when your doctor certifies that you are able to return to work. An employee returning from a medical leave of absence must present a doctor's statement declaring

the employee's fitness to return to work and perform the essential functions of the job, with or without accommodation. If you fail to return to work at your leave's expiration and have not obtained an extension of the leave, the Company may presume that you do not plan to return to work and have voluntarily terminated your employment. See the Office Manager or General Manager for all necessary forms and to answer any questions about eligibility for such leave.

O. Other Time Off

1. Funeral or Bereavement Time Off

Employees who have been employed at least 30 days and who experience a death in their immediate family will receive unpaid time off to attend funeral services and/or to take care of family arrangements for the funeral. Employees are granted time-off based on their work assignment. For field employees, up to five (5), 24-hour scheduled shifts are available; for administrative personnel, up to five (5) scheduled workdays are available. An employee may use their accrued and available vacation during this time off. An employee must obtain approval from the General Manager of the Company prior to using accrued but unused vacation. Such leave must be completed within three (3) months of the death of the family member.

"Immediate family" is defined as: parent, stepparent, father-in-law, mother-in-law, child, stepchild, brother, sister, brother-in-law, sister-in-law, grandparent, grandchild, and present spouse or domestic partner.

The Company may request documentation of the need for such leave and must be provided by the employee within one month of the request. All information received regarding such leave will be maintained confidentially.

2. Reproductive Loss Leave

Employees who have been employed by the Company for at least 30 days are eligible for reproductive loss leave. Eligible employees may take unpaid reproductive loss leave following a reproductive loss event. Employees are granted time-off based on their work assignment. For field employees, up to five (5), 24-hour scheduled shifts are available; for administrative personnel, up to five (5) scheduled workdays are available. Employees may use vacation, sick leave or any other available paid time off to which the employee is entitled.

A reproductive loss event means the day, or for a multiple day event the final day, of a failed adoption, failed surrogacy, miscarriage, stillbirth, or an unsuccessful assisted reproduction, as defined under California law. If an employee experiences more than one reproductive loss event within a 12-month period, reproductive loss leave is limited to twenty (20) days within a 12-month period.

The leave allowed under this policy is separate from any leave allowed under the Company's Family and Medical Leave policy. The five (5) days of leave do not need to be taken consecutively. The leave must be taken within three (3) months of the reproductive loss event, however, if the employee is eligible for and takes other leave allowed under state or federal law, the employee must complete the reproductive loss leave within three (3) months of the other leave.

3. Civic Duty Time Off

The Company encourages employees to serve on jury or witness duty when called. If required to serve jury or witness duty:

- Full-time non-exempt field employees will receive pay while serving on jury or witness duty for up to a maximum of one (1) day (maximum 24 hours).
- Full-time non-exempt administrative employees will receive pay while serving on jury or witness duty for up to a maximum of one (1) day (maximum 8 hours).

If required to serve additional days of jury or witness duty, full-time non-exempt employees may use accrued vacation, and once vacation is exhausted, all other time on jury or witness duty is unpaid. Exempt employees will receive their regular pay except when absent for a full week. If absent for a full week, only the first full week absent for jury duty is paid. Thereafter, exempt employees may use vacation for full weeks of absence until vacation is exhausted. Once accrued vacation is exhausted, full weeks of absence are unpaid.

You must notify the General Manager of the need for time off for jury or witness duty as soon as a notice or summons from the court or a subpoena is received. You will be required to provide written verification from the court clerk of having served.

If work time remains after any day of jury or witness duty, non-exempt employees will be expected to return to work for the remainder of their work schedule. Exempt employees may not work any portion of any day or week when the expected jury service will be for the entire work week unless specifically authorized to do so by their direct supervisor. Employees will be granted an excused absence for the length of the jury or witness duty provided proper verification of the time off is given to the General Manager.

4. Voting Time Off

If you cannot vote before or after working hours in statewide public elections because of insufficient time due to your work schedule, then you will be allowed paid time off at the beginning or end of your regular shift to go to the polls, up to a maximum of 2 hours.

You must give reasonable notice of the need to have time off to vote and must give at least three days' notice when three days' notice is possible. If notice is not provided, the time off will be without pay.

5. Time Off for Volunteer Firefighters, Reserve Peace Officers and Emergency Rescue Personnel

If you are a registered volunteer firefighter, reserve peace officer, or other emergency rescue personnel who intends to perform emergency duty during work hours, please alert a representative of the Company so that we are aware of the fact that you may have to take time off to perform emergency duty. In the event you are a volunteer firefighter, reserve peace officer, or other emergency rescue personnel and need to take time off for emergency duty, please alert your supervisor before leaving the Company premises. All time off to serve as a volunteer firefighter, reserve peace officer, or other emergency rescue personnel is unpaid.

Any employee who performs duty as a volunteer firefighter, reserve peace officer, or other emergency rescue personnel shall be permitted to take a temporary leave of absence, not to exceed

an aggregate of fourteen (14) days per calendar year, for the purpose of engaging in fire, law enforcement, or emergency rescue training.

6. Military Spouse Leave

Employees who work a minimum average of twenty (20) hours per week may receive up to ten (10) days of unpaid leave to spend time with a spouse (or registered domestic partner) that is either 1) a member of the U.S. Armed Forces who has been deployed during a period of military conflict to an area designated as a combat theater or combat zone by the U.S. Armed Forces, or 2) a member of the National Guard or Reserves who has been deployed anywhere during a military conflict. A military conflict means either a period of war declared by the U.S. Congress or a period of deployment for which a member of a reserve component of the military is ordered to active duty.

Employees who are eligible for this leave must provide the Company with both 1) notice of intention to take family military leave within two (2) business days of receiving official notice that the employee's military spouse will be on leave from deployment, and 2) documentation certifying that the employee's military spouse will be on leave from deployment during the time that the employee requests leave. Failure to timely provide this documentation may result in a denial of the requested leave. If you have any questions regarding Military Spouse Leave, please contact the General Manager.

7. Parents' Time Off for School or Day Care Activities

If you are a parent, guardian or grandparent with custody of a child in kindergarten or grades 1-12 or a licensed day care center, and you wish to take time off to visit the school or day care center of your child for an activity, you may take off up to eight hours each calendar month (up to a maximum of 40 hours each school year), per child, provided you give reasonable notice to the Company of your planned absence. All time off is considered unpaid leave. Employees wishing to take such leave may utilize their existing vacation. All accrued vacation must be used prior to requesting unpaid time off. Time off after accrued vacation has been exhausted will be without pay. The Company requires advance notice (generally, one week or more in advance) and requires documentation from the school noting the date and time of your visit. All accrued vacation must be used prior to requesting unpaid time off. Time off after accrued vacation has been exhausted will be without pay.

If both parents of a child work for the Company, only one parent – the first to provide notice – may take the time off, unless the Company approves both parents taking time off simultaneously.

You also may be granted time off to attend a school conference involving the possible suspension and/or discipline of your child. To be eligible for such leave, you must be the parent or guardian of such child, must actually be living with the child, and must have received a written notice from the principal of the school requesting your attendance at a conference to discuss the child's suspension from school. School discipline leave is not available to employees who voluntarily consult with school administrators regarding a child's performance in school. Please contact your supervisor if time off is needed to attend a disciplinary conference.

8. Time Off for Adult Literacy Programs

The Company will make reasonable accommodation(s) for any employee who reveals a literacy problem and requests that the Company assist him or her in enrolling in an adult literacy program unless undue hardship to the Company would result.

The Company will also assist employees who wish to seek literacy education training by providing employees with the location of local literacy programs.

The Company will take reasonable steps to safeguard the privacy of any employee who identifies himself or herself as an individual with a literacy problem. An employee who wishes to identify himself or herself as such an individual can contact the General Manager directly. Individuals who are performing satisfactorily will not be subject to termination of employment because they have disclosed literacy problems.

While the Company encourages employees to improve their literacy skills, the Company will not reimburse employees for the costs incurred in attending a literacy program.

9. Personal Leave of Absence

A personal leave of absence without pay may be granted at the discretion of the General Manager for a reasonable period of time up to a maximum of thirty (30) days in a 24-month period. The leave may be extended for a reasonable period of time due to special circumstances, as determined on an individual basis by management.

Requests must be submitted in writing and must be approved in writing by the General Manager before the leave begins. Requests for extensions of leaves must be submitted in writing and approved in writing by the General Manager before the extended period of a leave begins.

An employee who is granted a leave of absence must utilize any earned and accrued vacation benefits during a leave of absence. Holiday benefits will not continue to be paid during any leave of absence.

An employee is not entitled to continued paid group health insurance coverage while on a personal leave of absence. However, the employee may continue coverage through the Company in conjunction with COBRA or Cal-COBRA (COBRA) guidelines by making monthly payments to the Company for the amount of the relevant premium. Contact the General Manager for further information. The employee should discuss with the Office Manager or the General Manager arrangements to pay for the employee's cost of such coverage before the leave commences.

If an employee accepts other employment or fails to return to work on the next regularly scheduled workday following the expiration of the approved leave of absence, the employee may be considered to have voluntarily resigned.

VII. CONCLUSION

Many Company policies and employee benefits have been treated only briefly in this manual. If you have any questions or want more information, your supervisor will be glad to fill in the details for you. Should you have questions your supervisor is unable to answer, or you are uncomfortable asking your supervisor, the Field Supervisor or Office Manager, or the General Manager may be contacted directly to assist you in answering questions or resolving problems.

VIII. ADDITIONAL PROCEDURES

Additional procedures may be found in the Company IIPP (Illness and Injury Prevention Program), WVPP (Workplace Violence Prevention Program), HIPP (Heat Illness Prevention Program), Field Standard Operating Procedures, and other documents available to employees based on their position.

IX. ACKNOWLEDGEMENTS

The forms on the following pages are to be signed and returned to the Office Manager or the General Manager for inclusion in the employee's personnel file. Employees may retain a copy of the signed forms for their records.

Sequoia Safety Council

Agreement and Acknowledgement of Receipt of Employee Manual

The undersigned employee acknowledges receipt of this Employee Manual and that the undersigned has read it, understood it, and agrees to comply with it. Employee understands that the Company has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the Employee Policy Manual at any time. Any such changes will be communicated to Employee in writing.

Employee further understands and acknowledges this Employee Manual is not intended to preclude or dissuade employees from engaging in activities protected by state or federal law, including the National Labor Relations Act, such as discussing wages, benefits, or terms and conditions of employment, raising complaints about working conditions for their and their fellow employees' mutual aid or protection, or other legally required or allowed activities.

No statement or representation by a supervisor or manager or any other employee, whether oral or written, can supplement or modify this Manual. Changes can only be made if approved in writing by the General Manager of Sequoia Safety Council. I also understand that any delay or failure by Sequoia Safety Council to enforce any rule, regulation, or procedure contained in the Employee Policy Manual will not constitute a waiver of Sequoia Safety Council's right to do so in the future.

Employee Printed Name

Employee Signature

Date

Sequoia Safety Council

Acknowledgement of At-Will Employment

I understand and agree that my employment may be terminated by the Company at any time, with or without cause, and with or without notice, at the option of either the Company or myself. I also understand and agree that the Company retains the right to demote, transfer, change my job duties, and change my compensation at any time with or without notice and with or without cause in its sole discretion. The Company and Employee further agree that this at-will employment policy cannot be amended, modified, or altered in any way by oral statements or in any other way, and can only be altered by way of a written amendment signed by the General Manager.

Employee Printed Name

Employee Signature

Date

Acknowledgement of Meal and Rest Periods Policy

Meal Periods for Employees

Non-exempt employees are provided with an unpaid duty-free meal period of a minimum of 30 minutes. An uninterrupted off-duty meal period must be taken if you work more than 5 hours in any day unless your workday is concluded in 6 hours or less and the meal period has been waived by the mutual consent of the Company and the employee. The meal period is expected to be started by the fifth hour of work. Non-exempt employees are provided with a second unpaid uninterrupted duty-free meal period of a minimum of 30 minutes when the employee works more than 10 hours in a workday, except that if the total hours worked is no more than 12 hours, the second meal period may be waived by mutual consent of the Company and the employee. Any second meal period must be started by the tenth hour of work.

Every nonexempt employee must record on their timecards when each meal period begins and ends. In no event shall a meal period last for less than 30 minutes. Meal periods cannot be taken at the beginning or end of shifts. No work is to be performed during the meal period. If an employee is unable to take a 30-minute duty free meal period on a given day or is unable to start the meal period by the fifth hour of work or tenth hour of work, or the meal period is interrupted for work related reasons, the employee must notify the employee's supervisor immediately. Employees are free to leave the premises during meal periods.

Rest Periods for Employees

Each non-exempt employee is authorized, permitted, and expected to take a minimum net ten-minute paid rest period for each four hours of work or major portion thereof. The rest period is to be taken near the middle of the 4-hour work period. During an eight-hour workday, employees will be expected to take two minimum net ten-minute rest periods. Additional rest periods are authorized and permitted if employees work longer workdays. For example, employees who work up to 6 hours are entitled to one rest period, employees who work more than 6 hours up to 10 hours are entitled to two rest periods, and employees who work 10 to 14 hours are entitled to three rest periods. An employee may not "skip" a rest period for the purpose of taking extra time at lunch or leaving early. It is each non-exempt employee's responsibility to inform his/her supervisor in advance if the employee believes some work responsibility will prevent him/her from taking a rest period. Employees are not to perform work during the rest period(s). In the event an employee is unable to take a rest period as required, the employee must notify the Field Supervisor or Office Manager, or the General Manager immediately. Employees are free to spend their meal and rest period times as they choose and are free to leave the premises during those periods, as applicable for their position.

Employees are expected to observe assigned working hours and the time allowed for meal and rest periods. Do not abuse these break periods by taking more time than is allowed. In the event an employee has any questions regarding the Company's meal/rest period policy, please see the Field Supervisor, the Office Manager or the General Manager.

Meal and Rest Period Distinctives for Field Employees

Because of the nature of EMS work, in addition to the requirements above, there are specific requirements for those who work as ambulance employees.

1. All rest and meal periods are paid time.
2. Ambulance employees must remain on-call during rest and meal breaks and must be available to respond when alerted to a call.

Sequoia Safety Council

3. Meal breaks cannot be in the first or last hour of the work shift and must be at least two (2) hours apart.
4. Rest and meal breaks must be uninterrupted.

Rest and Meal Break Opportunities for Field Employees:

Rest and meal break opportunities occur throughout the shift. Given the dynamic nature of EMS work, breaks for field employees may be taken in a variety of ways. This is not an all-inclusive list of every possible break opportunity:

- 1) **Area of Station** – You and your partner are free to utilize the ambulance to obtain food or conduct lawful and appropriate personal business while in the area of the station.
- 2) **At Station** – When at station, you are encouraged to rest and relax as much as possible after the daily vehicle inspection and station chores are completed.
 - a. You may conduct lawful and appropriate personal business while at the station. The stations are furnished with kitchens, bathrooms, showers, beds, and laundry facilities. Television and WIFI are also provided.
- 3) **Long Distance Transfer** – Take a break prior to making contact with your patient. Upon transfer of care at the receiving facility, take another break prior to returning to ensure you are rested for the drive.
- 4) **Stand-By or Special Event** – Breaks may occur when there is a break in the action, such as halftime or intermission. Rotate taking breaks with your partner.
- 5) **Bed Delay** – When possible, alternate attending to the patient to rotate break opportunities.
- 6) **Pending Paperwork** – The crew is free to take a break at the hospital when the ambulance has been readied for the next call.
- 7) **On-Call Status** – Employees shall remain on-call during rest and meal breaks and must be available to respond immediately when alerted to a call. Employees shall monitor their communications devices during meal and rest breaks. Employees shall not take a break in an area where there is no reception for their alerting devices. Do not notify EMS Communications of break status.
- 8) **Reporting** – Sequoia Safety Council is obligated to make rest and meal break opportunities available to you. It is your obligation to use the opportunities and report when you have not had an opportunity for a break. If you have not had a break opportunity, please notify your supervisor immediately so a break can be arranged. Document the missed break on your timecard.

You must report any missed meal or rest periods via email to the on-duty supervisor. In the absence of an on-duty supervisor, submit the missed meal or rest periods to the General Manager. Missed breaks must be reported no later than twelve (12) hours after the end of the shift in which the missed break occurred. The claim will be verified, and you will be paid accordingly.

Employee Printed Name

Employee Signature

Date

Sequoia Safety Council

FIELD EMPLOYEES ONLY: Agreement & Acknowledgement of 24-hour Shift of Duty

This agreement and acknowledgement is between Sequoia Safety Council, Inc. and the ambulance driver or attendant (Employee) signing below. Whenever Employee is scheduled for a 24-hour shift of duty, the following terms shall apply:

1. **Scheduled Meal and Sleep Periods**

- Three meal periods of one hour each and a sleeping period of eight hours shall be regularly scheduled. The sleeping period shall be from 2200 to 0600 hours. Sequoia Safety Council, Inc. will provide adequate dormitory and kitchen facilities.

2. **Treatment of Meal and Sleep Periods**

- The meal and sleep periods shall be excluded from "daily time worked" for the purpose of obtaining relief daily overtime under Industrial Welfare Commission Order No.9-2001, § 3(K). Notwithstanding this exclusion, it is agreed that the meal and sleep periods shall be paid at Employee's straight-time rate.

3. **No Daily Overtime**

- No daily overtime shall be paid for any part of any scheduled shifts.

4. **Payment of Weekly Overtime**

- All time worked in excess of 40 hours in a single workweek will be paid at one- and one-half times Employee's regular straight-time rate. For purposes of calculating weekly overtime, meal and sleep periods shall be counted.

Employee Printed Name

Employee Signature

Date

General Manager Signature: _____

Date _____

This agreement is designed and intended to comply with Calif. Stats. 1999, 134 (AB No. 60); Industrial Welfare Commission Order No. 9-2001, § 3(K); Statement on Special provision for Ambulance Industry Adopted by the Industrial Welfare Commission on October 16, 1981; the decisions of the California Courts appeal in Auchmoody v. v.911 Emergency Service, 214 Cal. App. 3d 1510 (1989), and Monzon v Schaefer Ambulance Service, 224 Cal. App. 3d 16 (1990); and the Fair Labor Standards Act of 1938, as amended, 29 USC. § 201 et seq., and as interpreted by the Administrator of the Wage and Hour Division of the US Department of Labor, 29 CFR § 785.22

Acknowledgement of Equal Employment Practices Policy

Equal Employment Practices

The Company is committed to providing a professional work environment free from discrimination and harassment, including discrimination and harassment based on a protected category, and an environment free from retaliation for participating in any protected activity covered by this policy. The Company is committed to providing equal employment opportunities to all employees and applicants for employment. Accordingly, the Company has adopted and maintains this anti-discrimination policy designed to encourage professional and respectful behavior and prevent discriminatory and harassing conduct in the workplace. The Company will implement appropriate corrective action(s), up to and including formal discipline, in response to misconduct--including violations of the Company's anti-discrimination policy--even if the violation does not rise to the level of unlawful conduct. The Company prohibits discrimination or harassment based on the following categories: race (including natural hair texture and protective hair styles), color, religion, religious creed (including religious dress and grooming practices), national origin, ancestry, citizenship, physical or mental disability, medical condition (including cancer and genetic characteristics), genetic information, marital status, sex (including pregnancy, childbirth, breastfeeding, or related medical conditions), reproductive health decision making, gender, gender identity, gender expression, use of cannabis off the job and away from the workplace, age (40 years and over), sexual orientation, veteran and/or military status, qualifying act of violence victim status, political affiliation, the intersection or combination of two or more protected statuses, and any other status protected by state or federal law.

In addition, the Company prohibits retaliation against a person who engages in activities protected under this policy. Reporting, or assisting in reporting, suspected violations of this policy and cooperating in investigations or proceedings arising out of a violation of this policy are protected activities under this policy. All employees are expected to assume responsibility for maintaining a work environment that is free from discrimination, harassment, and retaliation. Employees are encouraged to promptly report conduct that they believe violates this policy so that we have an opportunity to address and resolve any concerns. Managers and supervisors are required to promptly report conduct that they believe violates this policy. The Company is committed to responding to alleged violations of this policy in a timely and fair manner and to taking appropriate action aimed at ending the prohibited conduct. **You are required to make a reasonable effort to bring forward any allegations of unlawful harassment or discrimination so the Company may stop such wrongdoing and prevent future occurrences.**

This policy applies to applicants to and employees (coworkers, supervisors, and managers) of the Company. The policy also applies to contractors and volunteers in the Company's workplace. In addition, this policy extends to conduct with a connection to an employee's work, even when the conduct takes place away from Company premises, such as a business trip or business-related social function.

1. Unlawful Discrimination

As used in this policy, discrimination is defined as the unequal treatment of an employee or applicant in any aspect of employment, including discrimination based solely or in part on the employee's, or applicant's, protected category. Protected categories include: race (including natural hair texture and protective hair styles), color, religion, religious creed (including religious dress and grooming practices), national origin, ancestry, citizenship, physical or mental disability, medical condition (including cancer and genetic characteristics), genetic information, marital status, sex (including pregnancy, childbirth, breastfeeding, or related medical conditions), reproductive health decision making, gender, gender identity, gender expression, use of cannabis off the job and away from the workplace, age (40 years and

over), sexual orientation, veteran and/or military status, qualifying act of violence victim status, political affiliation, the intersection or combination of two or more protected statuses, and any other status protected by state or federal law. Discrimination includes unequal treatment based upon the employee or applicant's association with a member of these protected classes.

Discrimination may include, but is not necessarily limited to: hostile or demeaning behavior towards applicants or employees because of their protected category; allowing the applicant's or employee's protected category to be a factor in hiring, promotion, compensation or other employment-related decisions unless otherwise permitted by applicable law, and providing unwarranted assistance or withholding work-related assistance, cooperation, and/or information to applicants or employees based on their protected status. The Company further prohibits discrimination against customers on the basis of race (including natural hair texture and protective hair styles).

2. Reasonable Accommodation of Persons with Disabilities or Religious Belief or Practice

To comply with applicable laws ensuring equal employment opportunities to qualified individuals with disabilities and medical conditions, the Company will make reasonable accommodation(s) for the known physical or mental disability or medical condition of an otherwise qualified individual who is an applicant or an employee unless undue hardship would result. Any such applicant, employee, or intern who requires accommodation in order to perform the essential functions of the job should contact the General Manager and request accommodation. The Company will engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodation(s), if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition. The individual with the disability should specify what accommodation he or she needs to perform the job. If the accommodation is reasonable and will not impose an undue hardship, the Company will make the accommodation. The Company may also propose alternative accommodation(s).

An applicant, employee or unpaid intern who requires accommodation of a religious belief or practice should also contact the General Manager to discuss the need for accommodation. If the accommodation request is reasonable and will not impose an undue hardship on the Company, the Company will make the accommodation.

3. Policy Against Unlawful Harassment

In accordance with applicable law, the Company prohibits sexual harassment and harassment because of race (including natural hair texture and protective hair styles), color, religion, religious creed (including religious dress and grooming practices), national origin, ancestry, citizenship, physical or mental disability, medical condition (including cancer and genetic characteristics), genetic information, marital status, sex (including pregnancy, childbirth, breastfeeding, or related medical conditions), reproductive health decision making, gender, gender identity, gender expression, use of cannabis off the job and away from the workplace, age (40 years and over), sexual orientation, veteran and/or military status, qualifying act of violence victim status, political affiliation, the intersection or combination of two or more protected statuses, and any other status protected by state or federal law including harassment of employees, independent contractors and business representatives. All such harassment is unlawful and will not be tolerated.

The Company is committed to taking all reasonable steps to prevent harassment from occurring. Any employee, including a supervisor or manager, who engages in unlawful harassment will be subject to

discipline, up to and including immediate termination. In addition, any person who engages in, or is accused of, unlawful harassment, may be suspended and required, at the Company's discretion, to remain off Company premises pending the outcome of an investigation.

a. **Inappropriate Harassment Defined**

Inappropriate harassment includes conduct that is:

- (1) unwelcome;
- (2) related to a protected category identified in the paragraph above;
- (3) offensive to the recipient and to a reasonable person; and
- (4) severe or pervasive so that the conduct unreasonably interferes with the employee's work performance or creates an intimidating, hostile or offensive work environment.

If the conduct is related to a protected category, then the following might constitute unlawful harassment: jokes, graffiti, comments, stories, photographs, gestures, e-mail, written materials, threats of job detriment, or actual changes to an employee's compensation, workload, or assignments. Harassment can be in the form of verbal conduct such as vulgar remarks, ethnic jokes, and threats of physical harm. Harassment may be in the form of physical conduct such as inappropriate touching, blocking of movement, vulgar gestures, hitting, shoving, or other physically threatening conduct such as invading an individual's personal space.

b. **Sexual Harassment Defined**

This section addresses sexual harassment, a specific type of unlawful harassment. Sexual harassment is defined as unwanted sexual advances, requests for sexual favors or visual, verbal or physical conduct of a sexual nature when:

- (1) submission to such conduct is made a term or condition of employment; or
- (2) submission to or rejection of such conduct is used as a basis for employment decisions affecting the individual; or
- (3) such conduct has the purpose or effect of unreasonably interfering with an employee's work performance or creating an intimidating, hostile or offensive working environment.

Sexual harassment is generally categorized into two types:

1. **Quid Pro Quo Sexual Harassment ("this for that")**
 - Submission to sexual conduct is made explicitly or implicitly a term or condition of an individual's employment.
 - Submission to or rejection of the conduct by an employee is used as the basis for employment decisions affecting the employee.
2. **Hostile Work Environment Sexual Harassment**
 - Conduct of a sexual nature or on the basis of sex by any person in the workplace that unreasonably interferes with an employee's work performance and/or creates an intimidating, hostile or otherwise offensive working environment.

- Sexual harassment also may be defined as unwanted sexual advances or visual, verbal, or physical conduct of a sexual nature. This definition includes many forms of offensive behavior. The following is a partial list:
 - Unwanted sexual advances.
 - Offering employment benefits in exchange for sexual favors.
 - Making or threatening reprisals after a negative response to sexual advances.
 - Visual conduct: leering, making sexual gestures, displaying sexually suggestive objects or pictures, cartoons, or posters.
 - Verbal conduct: making or using derogatory comments, epithets, slurs, sexually explicit jokes, or comments about an employee's body or dress.
 - Verbal sexual advances or propositions.
 - Verbal abuse of a sexual nature, graphic verbal commentary about an individual's body, sexually degrading words to describe an individual, suggestive or obscene letters, notes, or invitations.
 - Physical conduct including touching, assaulting, impeding, or blocking movements.
 - Favoritism toward employees who engage in consensual romantic or sexual relationships with their supervisor may, in some situations, create a hostile environment for other employees. A romantic relationship between a supervisor and subordinate will, in most instances, be a violation of Company policy regardless of whether or not it creates a hostile environment for other employees.

It is unlawful for males to sexually harass females or other males, and for females to sexually harass males or other females. Individuals of any gender can be the target of sexual harassment. Sexual harassment on the job is unlawful whether it involves coworker harassment, harassment by a supervisor or manager, harassment by or of independent contractors of the Company, or by or of persons doing business with or for the Company.

The Company prohibits sexual harassment of employees, applicants, interns, and independent contractors by non-employees. Should you believe you are being sexually harassed by a customer, vendor or other person not employed by the Company, immediately bring your concern to the attention of the Company. Immediate and appropriate corrective action will be taken.

4. Reporting Procedure Regarding Unlawful Discrimination and Unlawful Harassment

Any employee or applicant who witnesses or experiences behavior that they believe violates this policy is encouraged to immediately tell the offending individual that the behavior is inappropriate and, if they feel comfortable doing so, to tell the offending individual to stop the behavior. The applicant or employee should also immediately report the alleged violation to their supervisor, the Field Supervisor or Office Manager, or the General Manager. There is no chain of command when contacting the General Manager; an individual does not need supervisor or manager approval to do this. If the alleged offender is the employee's supervisor or manager, the employee should report the conduct to any other manager. A complaint may be brought forward verbally or in writing. Supervisors or managers who learn of any potential violation of this policy are required to immediately

report the matter to the General Manager and must follow that officer's instructions as to how best to proceed.

If you believe you have been subjected to any form of unlawful harassment or discrimination, provide a written or verbal report to the General Manager as soon as possible. The report should be specific and should include the names of the individuals involved and the names of any witnesses. The Company will undertake a fair, timely, adequate, and impartial investigation. The Company will strive for a timely response to you as the complainant, and for timely closure of the issues. The Company will keep the investigation confidential, to the extent possible; however, because interviews of employees may occur, the Company cannot guarantee that all aspects of the investigation will remain completely confidential.

If the person to whom you report your concern about discrimination or harassment does not address your concern in a timely way or does not address the concern in a manner that you believe is adequate, you should report the concern to one of the other persons referenced above. Supervisors are required to immediately report to the General Manager all complaints of discrimination and/or harassment, as well as any observed conduct that violates this policy.

If the Company determines that harassment or discrimination has occurred that violates this policy or the law, effective remedial action will be taken commensurate with the severity of the offense up to and including immediate termination. Appropriate action will be taken in all cases to deter any further harassment or discrimination. Any employee, including a supervisor or manager, who engages in discriminatory conduct toward an employee, intern and/or independent contractor of the Company, or any person doing business with or for the Company will be subject to discipline up to and including termination.

5. Protection Against Retaliation

The law also prohibits retaliation against any employee who uses this complaint procedure or who files, testifies, assists, or participates in any manner in any investigation, proceeding or hearing concerning unlawful discrimination or unlawful harassment. Any report of retaliatory conduct will be investigated in accordance with the Company's investigation procedure outlined above. If a complaint of retaliation is substantiated, appropriate disciplinary action, up to and including termination, will be taken against the person(s) engaging in the retaliatory conduct. The Company will not retaliate against any employee for filing a good faith complaint and will not knowingly permit retaliation by management or co-workers.

6. Disciplinary Action and Liability for Unlawful Harassment

Any employee of the Company, including any supervisor or manager, who is found to have engaged in harassment or discrimination in violation of this policy is subject to disciplinary action, up to and including termination from employment. In addition, an employee who engages in harassment may be held personally liable for monetary damages. The Company will not pay damages assessed personally against an employee for engaging in unlawful harassment or retaliation.

In addition to the Company's internal complaint procedure, employees should also be aware that the federal Equal Employment Opportunity Commission ("EEOC") and the California Civil Rights Department ("CCRD") investigate and prosecute complaints of discrimination and harassment in employment. Employees who believe they have been discriminated against or harassed may file a

Sequoia Safety Council

complaint with either of these agencies. Both the EEOC and the CCRD serve as neutral fact finders and attempt to help the parties voluntarily resolve disputes.

For more information, contact the General Manager. You also may contact the nearest office of the CCRD or EEOC, as listed in the telephone directory, or on the internet at contact.center@calcivilrights.ca.gov or www.cacivilrights.ca.gov or www.eeoc.gov/employees.

Employee Printed Name

Employee Signature

Date